

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

**NOTICE TO ANTICIPATE RETURN DAY
(IN TERMS OF UNIFORM RULE 6(8))**

KINDLY TAKE NOTICE that the Respondent hereby anticipates the return day of the Rule Nisi granted by the Honourable Acting Justice Mphego on 16 April 2026.

TAKE NOTICE FURTHER that the matter is set down for hearing on **FRIDAY, 24 APRIL 2026 at 10H00**, or as soon thereafter as the matter may be heard in the Urgent Motion Court.

THE GROUNDS FOR ANTICIPATION ARE AS FOLLOWS:

1. **Procedural Right:** In terms of Uniform Rule 6(8) and Paragraph 7 of the Court Order dated 16 April 2026, the Respondent is entitled to anticipate the return day upon 24 hours' written notice.
2. **Prior Notification:** Written notice of the intention to anticipate was served on the Applicant's attorneys of record on Wednesday, 22 April 2026 at 11h32, satisfying the 24-hour notice requirement.
3. **Substantive Urgency & Irreparable Harm:** The Respondent is currently enduring a documented humanitarian crisis, including the obstruction of statutory benefits and a lack of

access to basic utilities (water/electricity). Every day the interim order remains in place without judicial oversight causes the Respondent irreparable harm and facilitates institutional attrition.

4. Failure of Good Faith: Despite the Applicant's claim of "extreme urgency" in obtaining the initial order, they have utilised the subsequent period for procedural stalling and "institutional silence," necessitating an immediate hearing to ensure the interests of justice.

5. Document Production: The hearing coincides with the deadline for the Applicant to produce forensic clinical documentation essential to the Respondent's defence and the public interest.

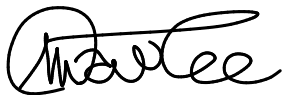
ANNEXURES:

Annexure NTA1: Email correspondence addressed to the Applicant's legal representatives, dated 20 April 2026.

Annexure NTA2: Email correspondence addressed to the Applicant's legal representatives, dated 22 April 2026.

Annexure WW6: Affidavit of Destitution deposed to by the Respondent.

DATED at CAPE TOWN on this 23rd day of APRIL 2026.



SR. WILBUR W MATTHEE

Respondent in Person

15 Bellevue Street, Voorbrug,
Cape Town, 7100
Email: info@ethichawks.co.za
Tel: 069 635 1435

TO: THE REGISTRAR OF THE HIGH COURT

Cape Town

AND TO: DENEYS ATTORNEYS

Attorneys for the Applicant

Per: **JASON WHYTE**

Email: jason.whyte@deneys.co.za; frances.barker@deneys.co.za

ANNEXURE NTA1

Email Correspondence

Respondent to Applicant's Legal Representatives

Dated: 20 April 2026

Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll



Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

1 message

Wilbur William Matthee <wilburmat@gmail.com>

Mon, 20 Apr 2026 at 11:55

To: nhanekom@judiciary.org.za

Cc: jason.whyte@deney.co.za, frances.barker@deney.co.za, olebogeng.motlhaping@deney.co.za

Bcc: Sr Wilbur William Matthee <g.boy.willy@gmail.com>

To:
The Registrar, High Court of South Africa, Western Cape Division
[Registrar email address]

Cc:
Jason Whyte (Deneys Attorneys) – jason.whyte@deney.co.za
Frances Barker / Olebogeng Motlhaping (as copied in annexures) – [email addresses if available]

Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Dear Honourable Registrar,

I refer to the above matter and write in my capacity as the Respondent, acting in person.

1. Filing of Supplementary Answering Affidavit and Counter-Application

Pursuant to Uniform Rule 6(5)(e) and the practice confirmed in Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC), I hereby file the following documents with this Honourable Court:

- Supplementary Answering Affidavit (Final Consolidated) – responding to the Applicant’s founding papers and incorporating a counter-application for declaratory relief;
- Notice of Counter-Application for Declaratory Relief – which is unconditional and will proceed independently even if the Applicant withdraws its main application;
- Index of Annexures containing 22 supporting exhibits as referenced in the affidavit.

These documents are served simultaneously on the Applicant’s attorneys, Deneys.

2. Request to Enroll Counter-Application with Main Application

I respectfully request that the counter-application be enrolled for hearing simultaneously with the main application under the same case number, or on such other date as this Honourable Court may determine. In the event the main application is withdrawn, I request that the counter-application proceed on its own.

The declaratory relief sought is not abstract or hypothetical – it will:

- Break the administrative deadlock with the Department of Employment and Labour regarding my UIF benefits;
- Establish facts binding on the Labour Court through res judicata and estoppel;
- Vindicate my good faith and professional reputation, which the Applicant has attacked under oath.

3. Service on the Applicant’s Attorneys

A copy of this email and all filed papers is served on Deneys Attorneys at the email address above.

Kindly acknowledge receipt of these filings and confirm the date on which the consolidated matter (main application + counter-application) will be placed on the roll.

I remain destitute, self-represented, and without income. My full circumstances are set out in Annexure WW6 (Affidavit of Destitution) filed herewith.

If your client fails to produce the documents by the above deadline without a valid, sworn explanation (e.g., legal privilege or impossibility), I will, without further notice, immediately file a notice to anticipate the return day in terms of:

- Uniform Rule of Court 6(8); and
- Paragraph 7 of the interim order dated 16 April 2026, which expressly grants me leave to anticipate the return day upon 24 hours' written notice to the applicant.

Upon anticipation, I will move for an order:

- Discharging the rule nisi and setting aside the interim interdict in its entirety;
- Granting the declaratory relief sought in my counter-application;
- Awarding a punitive costs order against your client on the scale as between attorney and client.

Your client has until Friday close of business to comply. Failure to do so will result in immediate court action.

Thank you for your assistance.

IMPORTANT NOTICE REGARDING MY EMAIL ADDRESS

Please be advised that my email address info@ethichawks.co.za has been suspended and is no longer active. All formal correspondence, including the documents demanded below, must be sent to my alternative email address:

wilburmat@gmail.com

I confirm that I will monitor this address for your response. Any correspondence sent to the suspended EthicHawks address will not be received.

Yours Professionally,

Wilbur William Matthee
Respondent (acting in person)
15 Bellevue Street, Voorbrug, Cape Town, 7001
Email: wilburmat@gmail.com
Mobile: 069 635 1435

Copy to: Jason Whyte, Deneys Attorneys (via email)

Ethics Hawks promotes ethical leadership, governance integrity, and psychosocial safety in organisations. This correspondence may contain confidential or legally relevant information intended only for the recipient. Unauthorised use or disclosure is prohibited.



ANNEXURE NTA2

Email Correspondence

Respondent to Applicant's Legal Representatives

Dated: 22 April 2026 at 11h32

Formal Notice of Intention to Anticipate Return Day in terms of Uniform Rule 6(8)



**FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)
– MATTHEE V AFROCENTRIC CASE NO. 2026-086906**

1 message

Wilbur Matthee <info@ethichawks.co.za> Wed, 22 Apr 2026 at 11:32
To: jason.whyte@deneys.co.za
Cc: frances.barker@deneys.co.za, olebogeng.motlhaping@deneys.co.za
Bcc: wilburmat@gmail.com

TO: Jason Whyte/Legal Council

1. Your communication of 20 April 2026 is noted. Continued silence during a documented humanitarian crisis confirms a bad-faith reliance on procedural stalling.
2. Notice is hereby given of the intention to anticipate the return day under Uniform Rule 6(8).
3. Filing will occur on Thursday for a hearing on Friday, 24 April 2026.
4. The Court will be moved to distinguish between the Applicant’s self-created urgency and the Respondent’s substantive imminent danger.
5. The attempt to utilize the public holiday weekend as a procedural vacuum is neutralized.
6. I see you in court on Friday. Ensure the requested forensic documentation is produced.

Sr. Wilbur W Matthee
Specialist Registered Nurse | PGDip HSM (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance

ANNEXURE NTA3

Email Response

Applicant's Attorneys (Jason Whyte, Deneys Attorneys) to Respondent

Dated: 22 April 2026 at 13h37

Opposition to Anticipation and Threats of Punitive Costs Order

From : jason.whyte@deney.co.za

To : "Wilbur Matthee" <info@ethichawks.co.za>

Cc : "Frances Barker" <Frances.Barker@deney.co.za>,"Olebogeng Motlhaping" <Olebogeng.Motlhaping@deney.co.za>

Subject : RE: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Date : 22 Apr 2026 13:37

Dear Mr Matthee

We confirm receipt of your email sent at 11h32 today, 22 April 2026.

We draw your attention to paragraph 14.1 of your supplementary answering affidavit (which we point out was served on 20 April 2026) in which you state:

"I hereby formally invite and put the Applicant on notice to produce the following documents within 5 (five) days of service of this affidavit" (your own emphasis).

And in paragraph 14.3 you state:

"If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day ..."

Accordingly, on your own terms, our client has until close of business on 28 April 2026 to elect whether it is able to accede to your demand regarding discovery. Our client is considering its response to you in accordance with this deadline.

You now appear to distance yourself from the representation made to our client under oath. Notwithstanding our client's views regarding the demand for discovery, your conduct now amounts to an abuse of court process and is vexatious in the extreme. Should you proceed to have the return date set down as threatened for Friday, 24 April 2026, we shall request the Judge presiding to adjourn the matter until 28 May 2026 and that you be ordered to pay our client's wasted costs on the attorney-client scale.

Kindly be guided accordingly.

Kind regards

Jason Whyte | Director
jason.whyte@deney.co.za

Deneys Cape Town, South Africa
9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
Tel: +27 21 405 1208 | Mobile: +27 83 236 3059

ANNEXURE NTA4

Email Reply — Respondent to Applicant's Attorneys

With UI-19 Employer Declaration (Medscheme Holdings Pty Ltd, signed 19 January 2026)

Dated: 22 April 2026 at 15h03

Rebuttal of Applicant's Conflation of Discovery and Emergency Timelines; Confirming Termination Code 6 and Gross Remuneration of R42,796

From : info@ethichawks.co.za

To : <jason.whyte@deney.co.za>

Cc : <frances.barker@deney.co.za>,<olebogeng.motlhaping@deney.co.za>

Subject : RE: Notice to Anticipate Return Day – Case No: 2026-086906

Date : 22 Apr 2026 15:03

Mr. Whyte,

1. Your characterization of the Respondent's conduct as "vexatious" is noted and rejected.
2. Your attempt to conflate a discovery deadline with a Rule 6(8) anticipation is a fundamental legal error. There are currently two distinct "clocks" governing this matter, and they operate on separate tracks:
 - (a). The Discovery Clock: The 5-day invitation for document production pertains to the Merits of the case. It is a timeline for trial preparation.
 - (b). The Emergency Clock: The Notice to Anticipate under Uniform Rule 6(8) pertains to the Interim Status of the case. It is a timeline for Survival.
3. The "Discovery Clock" does not—and cannot—arrest the "Emergency Clock." A procedural invitation for discovery is not a waiver of the statutory right to seek immediate judicial relief from an interim order that facilitates a humanitarian crisis. The Respondent's right to dignity, access to water, and survival is not subject to your client's administrative convenience or a 5-day election period.
4. The Applicant's claim of "extreme urgency" to obtain the ex parte order on 16 April is now in direct conflict with your current request for a delay. This contradiction confirms that the Applicant's "urgency" was a tactical label, whereas the Respondent's urgency—documented by 48 hours without food and a lack of basic utilities—is a substantive, physical reality.
5. Be advised that the strategy of "litigation attrition"—including the obstruction of statutory benefits and the resulting state of destitution—is now a matter of record. Your threats of punitive costs against a respondent in a state of documented imminent danger further evidence the Applicant's bad faith and will be placed before the court.
6. The Respondent will not be intimidated into a monthly adjournment while in a state of constitutional emergency. The hearing proceeds on Friday, 24 April 2026. The High Court will be moved to weigh your client's desire for corporate secrecy against the Respondent's right to exist.
7. The "5-day deadline" for documents remains an active forensic demand. If the Applicant chooses to withhold those documents on Friday while maintaining a gag order, you do so at the risk of an adverse judicial inference.

Kindly be guided accordingly.

Sr. Wilbur W Matthee
Specialist Registered Nurse
Respondent in Person

ANNEXURE WW6

Affidavit of Destitution

Deposed to by Respondent Wilbur William Matthee
Kindly Refer to Annexure WW6 in Supplementary Affidavit

Documenting Humanitarian Crisis, Obstruction of Statutory UIF Benefits, and State of Destitution

ANNEXURE NTA4.1

UI-19 Employer Declaration

Medscheme Holdings Pty Ltd (Authorised: Natasha Johnson, ID No.
6909300157084)

Dated: 19 January 2026

Unemployment Insurance Act 63 of 2001 Termination Code: 6 (Resigned / Constructive Dismissal)
Gross Remuneration Declared: R42,796 Confirming UIF Entitlement and Administrative Deadlock

UNEMPLOYMENT INSURANCE ACT 63 OF 2001
Employers Declaration of Employees for the month of

U-19
14

Information to be supplied in terms of Section 56(1&3) read with Regulation 13(1&2)

An employer must by the seventh day of each month inform the Commissioner of any changes arising during the previous month regarding the employer's contact details or employees remuneration details including new appointments and termination of service. The employer must forward this form to the **Unemployment Insurance Fund** at (012) 337-1943/44 or 337-1580/81/82 or submit same at any branch of the UIF which is closest to the employer. The completed form can also be faxed to any of the following numbers: **Pta** (012) 309 5142/5286; **Jhb** (011) 497 3293; **Dbn** (031) 366 2156; **Polokwane** (015) 290 1670; **Mmabatho** (018) 384 2658; **East Ldn** (043) 701 3263; **Blftn** (051) 447 9353; **CT** (021) 441 8024; **Wtb** (013) 656 0233; **PE** (041) 586 1541; **Gmn** (011) 873 2219; **George** (044) 873 2568; **Pmb** (033) 394 5069; **Kimberley** (053) 832 7218.

1. EMPLOYER DETAILS

1.1 UIF Employer Reference No

0	0	8	1	2	6	6
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 /

3

 Branch No

2	2	0	3	2
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 1.2 PAYE Reference No (If registered with SARS)

7	2	0	0	7	2	0	4	2	5
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1.3 Trading name of business Medscheme Holdings Pty(Ltd) 1.4 Physical Address 37 Conrad Road,Florida North,1708

1.5 Address where employees listed in Item 2 work (if different to the address in 1.4) 1.6 Postal address P O Box 1101,Florida North,1708

1.7 Co. Reg.No (CIPRO No)

1	9	7	0	0	1	5	0	1	4	0	7	-	-	-	-
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 1.10 Phone No 011 671 6489 1.11 Authorised person** N Johnson

1.8 E-mail address Natasha.Johnson@med 1.9 Fax No 011 671 6489
scheme.co.za

2. EMPLOYEE DETAILS

A Surname	B Initial s	C ID Number (13 Digit bar-coded RSA ID No)													D* Total (Gross) Remuneration paid to Employee Per Month		E* Total Hours Worked during Month	F Commencement date of Employment						G Termination Date						H Reason for Termination (Use Termination Codes as supplied at the bottom of the page)	I Indicate whether contributor or non- contributor (YES OR NO)	J *** If non- Contributor state reason (Use codes at bottom of page)																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																														
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I, Natasha Johnson, ID No 6909300157084, declare that the above information is true and correct. I understand that it is an offence to make a false statement.



AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

EMPLOYER SIGNATURE _____

DATE 19 January 2026

DESCRIPTIONS	
**	If the employer is not resident in the RSA, or is a body corporate not registered in the RSA, an authorised person must carry out the duties of the employer in terms of this Act.
D*	Remuneration means actual basic salary plus payment in kind (Declare actual gross salary) If paid Weekly, convert wages to monthly salary (weekly wages X 52/12)
E*	Total Hours Worked ie. Actual hours worked during the month (only applicable for employees that are paid per hour) Employers may also submit these details electronically from payrolls or on the UIF's website at www.labour.gov.za Tel. no (012) 337 1680/1700
①	Only Applicable for Commercial Employers

Code	(J) Reason for Non-Contribution ***
1	Temporary employees (less than 24 hours per month)
2	Learners in terms of the Skills Development Act
3	Employees in the National and Provincial spheres of Government
4	Employees who are repatriated at the end of their contract of service
5	Employees who earn commission only
6	No income paid for the payroll period
7	Employees in receipt of an Old Age Pension from the State.
8	Employees who receive a pension payment from Employer
9	Above the ceiling (Old Act)

REASON FOR TERMINATION CODES

2	Deceased	6	Resigned	10	Illness /Medically boarded	14	Business Closed
3	Retired	7	Constructive Dismissal	11	Retrenched/Staff Reduction	15	Death of Domestic Employer
4	Dismissed	8	Insolvency/Liquidation	12	Transfer to another Branch	16	Voluntary Severance Package
5	Contract Expired	9	Maternity/Adoption	13	Absconded		

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No:

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

(Reg: 1988/000570/06)

and

WILBUR WILLIAM MATTHEE

Respondent

NOTICE OF INTENTION TO OPPOSE

**TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT
AND TO: DENEYS INC, ATTORNEYS FOR THE APPLICANT**

(Email: jason.whyte@deneys.co.za)

KINDLY TAKE NOTICE that:

1. The Respondent, WILBUR WILLIAM MATTHEE, hereby gives notice of his intention to oppose the urgent application brought by the Applicant in the above-captioned matter.
2. The Respondent is a self-represented litigant. His address for service of all further process and documents in this matter is:

15 Bellevue Street
Voorbrug

Cape Town
7001
Email: info@ethichawks.co.za

3. The Respondent will deliver a full Answering Affidavit in due course, in accordance with such timetable as this Honourable Court may determine. The Respondent requests a reasonable opportunity of not less than 48 to 72 hours within which to do so.

4. The Respondent further intends to raise, inter alia, the following points in limine:

4.1 The matter was served on the Respondent at approximately 21:42 on 15 April 2026, less than 16 hours before the scheduled hearing, rendering it impossible for the Respondent to obtain legal representation or prepare a considered response. The urgency, to the extent it exists, is entirely self-created by the Applicant who was aware of the Respondent's forensic findings since at least October 2025. This constitutes an abuse of court process.

4.2 Service did not comply with the requirements of Rule 4 of the Uniform Rules of Court in that the Respondent was not properly served in a manner affording him adequate opportunity to oppose.

4.3 The Applicant has failed to make out a case for urgent relief in accordance with the requirements of Rule 6(12), in particular by relying on urgency that is self-created.

5. The Respondent places the Applicant and this Honourable Court on notice that:

5.1 The settlement demand of R7,307,642.72 is a quantified legal claim for occupational detriment, unlawful salary deductions, and related statutory breaches, which claims are formally before the Labour Court (Case Nos. 2026-077546 and 2026-083299). Seeking settlement of a legitimate and pending legal claim does not constitute extortion under South African law.

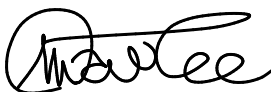
5.2 The Respondent's disclosures constitute Protected Disclosures within the meaning of the Protected Disclosures Act 26 of 2000 ("PDA") and concern systemic clinical and financial governance failures affecting 1.9 million GEMS beneficiaries.

5.3 The Respondent denies that any intended disclosure involves or requires the release of individual patient medical records or "special personal information" as defined in section 26 of the Protection of Personal Information Act 4 of 2013 ("POPIA"). The disclosure pertains to systemic integration architecture failures between the Gexus and DMS platforms, actuarial miscalculations, and governance failures — all matters of public interest.

WHEREFORE the Respondent respectfully requests this Honourable Court to:

- (a) Postpone the hearing of the urgent application for a period of not less than 48 to 72 hours to enable the Respondent to obtain legal representation and to prepare and deliver a full Answering Affidavit;
- (b) In the alternative, strike the application from the urgent roll on the grounds of self-created urgency and/or abuse of process; and
- (c) Grant any further and/or alternative relief as this Honourable Court deems fit.

DATED AT CAPE TOWN ON THIS 16 DAY OF APRIL 2026



WILBUR WILLIAM MATTHEE

Respondent (Self-Represented)

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: THE REGISTRAR

Western Cape Division, Cape Town

TO: DENEYS INC

Attorneys for the Applicant

9th Floor, 117 Strand Street, Cape Town, 8001

Email: jason.whyte@deney.co.za

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: 160/2026

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

(Reg: 1988/000570/06)

and

WILBUR WILLIAM MATTHEE

Respondent

ANSWERING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state that:

INTRODUCTION

1. I am an adult male South African citizen with identity number 8909035151087. I reside at 15 Bellevue Street, Voorbrug, Cape Town, 7001. I am the Respondent in these proceedings. I appear herein in person without legal representation, having been afforded insufficient time to retain counsel following service of the application papers on me at approximately 21:42 on 15 April 2026.

2. Save where the context indicates otherwise, the facts contained herein fall within my own personal knowledge and are true and correct. Where I make submissions of a legal nature, I do so on my own understanding and, to the extent necessary, reserve the right to supplement this affidavit once I have obtained legal representation.

3. I confirm that I hold a Postgraduate Diploma in Health Services Management (NQF Level 8, CPUT), a BTech in Psychiatric Nursing/Midwifery/Community Nursing and Communication, and am a Specialist Registered Nurse with approximately 18 years of clinical governance experience. I am the founder of EthicHawks Forensic Governance and Compliance Consultancy.

4. This affidavit is deposed in opposition to the Applicant's urgent application for an interim interdict (rule nisi). I oppose both the procedural basis of the application (urgency and service) and its substantive merits.

POINT IN LIMINE: URGENCY AND SERVICE

5. I raise the following points in limine which are dispositive of the application at the threshold:

5.1. **THE PUBLIC RECORD:** The information the Applicant seeks to interdict is already contained in my served and filed Statement of Claim in the Labour Court and my Section 162 Application in the High Court. Under the principle of open justice, these are public documents. One cannot interdict the disclosure of information that is already sitting in the public court files. This application is a redundant attempt to 'un-ring a bell' that has already been rung.

5.2. **SELF-CREATED URGENCY:** The Applicant was aware of my forensic findings regarding the Gexus/DMS integration failure, the alleged governance failures at GEMS, and my protected disclosure concerns since at least October/November 2025. The Applicant's attorneys, Deneys, sent a cease-and-desist letter on 15 April 2026 at what appears to be business hours, indicating awareness of the matter throughout the day. The application papers were only served on me at approximately 08:53 on 16 April 2026. The Applicant has accordingly manufactured its own urgency by delaying service to prevent me from obtaining legal representation. This constitutes an abuse of the rules of court. I refer this Court to the authority in *Salt and Another v Smith* 1991 (2) SA 186 (NmHC) and the principle established in *Luna Meubels Vervaardigers (Edms) Bpk v Makin and Another* 1977 (4) SA 135 (W), that urgency must not be self-created.

5.3 **IMPROPER SERVICE:** The papers were served on me less than 2 hours before the scheduled hearing on 16 April 2026. Under Rule 6(12)(b) of the Uniform Rules of Court, an applicant in urgent proceedings is required to set out explicitly the reasons why service in the ordinary manner is not appropriate and to ensure that the respondent has a reasonable opportunity to prepare. No adequate opportunity was afforded to me to prepare or to brief counsel. The service is accordingly defective and the application falls to be struck from the roll. The Applicant's conduct in serving the finalized papers at 08:53 AM for a 10:00 AM hearing is a gross violation of the Uniform Rules of Court. It is physically and legally impossible for a respondent to read, digest, and reply to a complex High Court application in 67 minutes. This is a deliberate attempt to 'steamroll' a self-represented whistleblower and obtain an order by default."

SUBSTANTIVE RESPONSE TO FOUNDING AFFIDAVIT

A. The Settlement Demand is a Quantified Legal Claim, Not Extortion

6. The Applicant's characterisation of my settlement demand of R7,307,642.72 as "extortion" (para 9, 49, 51 of the founding affidavit) is denied and is legally incorrect. The demand is a fully itemised and legally quantified claim for:

6.1 Direct Restitution (R1,027,107.12): Comprising 24 months of back-pay/substitution arising from the unlawful salary deductions and constructive dismissal.

6.2 Property Loss (R145,000.00): Representing the total loss of fixed property directly resulting from the Applicant's occupational detriment.

6.3 Professional Death Compensation (R5,135,535.60): A 10-year compensatory future loss of earnings claim arising from the permanent destruction of my professional career and reputation by the Applicant's conduct.

6.4 Clinical Provision (R750,000.00): A 10-year specialist psychosocial and clinical care fund to address the profound PTSD and psychiatric injury resulting from targeted occupational detriment.

6.5 Statutory Costs (R250,000.00): Representing the forensic audit costs and operational expenses of EthicHawks incurred in documenting the systemic failures and governance breaches.

7. These claims are substantially identical to the claims formally filed in the Labour Court under Case Nos. 2026-077546 (BCEA section 77A claim for unlawful salary deductions) and 2026-083299 (Statement of Claim for constructive dismissal and related claims, filed 9 April 2026). The Applicant's own founding affidavit acknowledges these proceedings at paragraph 25.

8. The R7.3 million referenced by the Applicant is not a 'demand for silence' (extortion). It is the prayed-for relief in my pre-existing Labour Court litigation for lost income and benefits due to the Applicant's occupational detriment against me. Seeking the resolution of a pending legal claim is a standard litigation procedure, not a criminal act.

9. It is a fundamental principle of our law that an offer to settle a legitimate legal claim which is already before a court, even in robust or forceful terms, does not constitute extortion. The demand was not for money to suppress a fabricated claim — it was a settlement proposal backed by pending litigation. Seeking to resolve legitimate legal claims through settlement is not only lawful, but is encouraged by our courts. I refer to *Nortje en 'n Ander v Prokureur-Generaal*, Kaap 1978 (2) SA 659 (C) on the distinction between threats of harm and assertions of legal rights.

10. The Applicant conflates the forcefulness of my communications, born of genuine distress and occupational injury, with criminal conduct. The language I used in my emails of 14 and 15 April 2026 was urgent and direct. It was not a threat to cause unlawful harm — it was a declaration that I would exercise lawful statutory and regulatory rights. This distinction is legally critical.

B. The Forensic Disclosure Does Not Threaten Individual Patient Data

11. The Applicant's suggestion (paras 46, 47, 73.1 of the founding affidavit) that my proposed disclosure constitutes a threatened breach of POPIA in respect of 1.9 million GEMS beneficiaries

is denied, is misleading to this Court, and is designed to manufacture a basis for irreparable harm that does not in fact exist.

12. The "Mahlangu RCA" and "forensic payload" to which the Applicant refers are documents relating to a systemic clinical integration failure between the Gexus and DMS software platforms operated by Medscheme. The documents:

12.1 Demonstrate that an automated "non-adherence letter" was erroneously generated and sent to a GEMS member (Mrs Mahlangu) due to an integration gap between Gexus and DMS — not any action by the member.

12.2 Identify a structural governance failure in how the two platforms communicate patient medication benefit category changes.

12.3 Constitute an internal root cause analysis reflecting systemic operational risk — not a document containing the individual health records of 1.9 million beneficiaries.

13. The disclosure I intend to make to trade unions and regulators concerns: (a) the existence of a systemic integration gap; (b) its financial and clinical implications; and (c) the fact that the Board appears to have been aware of this risk and failed to disclose it as a material governance matter. This is a matter of institutional and governance-level information, not a data dump of patient records.

14. Accordingly, the POPIA argument raised by the Applicant is a deliberate overstatement intended to frighten this Court into granting relief. I deny that any POPIA breach is intended or would result from the disclosures I propose to make.

C. The Terminological Correction Evidences Good Faith

15. The Applicant relies heavily (paras 36, 37, 58 of the founding affidavit) on my email of 15 April 2026 (Annexure GVW5) in which I corrected my use of the word "leakage."

16. This correction is evidence of my forensic credibility and good faith, not — as the Applicant suggests — of a concession that undermines my case. The correction was a voluntary terminological refinement made in the interests of precision:

16.1 The word "leakage" implied money physically leaving the scheme through fraud or misappropriation.

16.2 What I documented is more accurately described as: (a) erosion of member day-to-day benefits; (b) corruption of claims data; (c) operational waste; and (d) plausible inflation of total claims expenditure — arising from the systemic Gexus/DMS integration gap.

16.3 The financial impact — an inflated claims environment contributing to the 9.5% premium increase borne by 1.9 million government employees — remains documented and unchanged.

17. A whistleblower who voluntarily corrects imprecise language before any court intervention is demonstrating exactly the kind of good faith that the PDA and our courts seek to encourage. The Applicant's attempt to weaponized this correction as an admission of bad faith or absence of evidence is rejected.

D. The Protected Disclosures Act Defence

18. The Applicant argues at paragraph 52 of the founding affidavit that neither the Companies Act 71 of 2008 nor the Protected Disclosures Act 26 of 2000 affords protection to disclosures made by a person who, at the time of the disclosure, is no longer an employee.

19. This legal submission is disputed. I submit as follows:

19.1 The PDA defines "employee" in section 1 as including a "former employee." Section 1 read with section 3 of the PDA extends protection to disclosures made by former employees in respect of improper conduct that occurred during their employment.

19.2 The information I possess and propose to disclose was obtained during my employment with Medscheme in my capacity as Care Coordinator/Case Manager dealing with GEMS member clinical claims. The improper conduct (the Gexus/DMS integration failure and the governance failures surrounding it) occurred during and continued beyond my employment.

19.3 The fact that my employment has ended does not extinguish my statutory duty to report improper conduct that affects public health and safety. The Mahlangu case involves the clinical management of a GEMS beneficiary. Failure to disclose a known systemic risk to patient clinical outcomes is a patient safety issue which I, as a registered healthcare professional, am obligated to report under the Nursing Act 33 of 2005 and the Health Professions Act 56 of 1974.

20. Even if the PDA protection were found not to apply (which is denied), the common law right of a citizen to approach regulatory and oversight bodies, trade unions, and public institutions with evidence of governance failures is well established. The Applicant is not entitled to a court order preventing a citizen from exercising these rights.

E. The Public Interest Dimension

21. The Applicant characterises my disclosures as purely self-interested and designed to coerce payment. This is denied. The following public interest considerations are relevant to this Court's exercise of its discretion:

21.1 GEMS is a medical scheme serving approximately 1.9 million government employees, including nurses, police officers, teachers, and other essential workers. The clinical integrity of GEMS's administration is a public interest matter of the highest order.

22.2 The 9.5% premium increase approved for 2026 (as referenced in Actuarial Practice Note 303 — "APN 303") requires justification on the basis of accurate claims data. If the Gexus/DMS integration gap has contributed to inflated claims data that underpinned this increase, GEMS members are entitled to know this.

23.3. The Applicant seeks to stop me from explaining the APN 303 Risk Loading to the Unions. This calculation is what drives the 9.5% hike. It is not 'proprietary trade secret'—it is the actuarial basis for a premium hike that affects 2.4 million lives. The public interest in knowing why their premiums are increasing by 9.5% outweighs the Applicant's desire to hide an administrative integration gap

24.3 Medscheme's dual role as both payroll deductor and scheme administrator for GEMS creates structural governance concerns that fall squarely within the oversight mandate of the Council for Medical Schemes under the Medical Schemes Act 131 of 1998.

25.4 AfroCentric Investment Corporation is a JSE-listed entity (JSE: ACT). If the Gexus/DMS integration failure represents a material risk that was not disclosed in the Applicant's 8 April 2026 Integrated Report, this is a matter directly engaging the Applicant's disclosure obligations under the JSE Listings Requirements and the Companies Act.

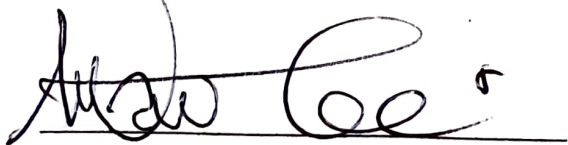
25. The balance of convenience does not favour the Applicant. An interim interdict silencing a former employee's protected disclosures concerning governance failures affecting nearly 2 million public servants is a drastic remedy that strikes at the constitutional rights to freedom of expression and access to information. These rights must be weighed against the Applicant's commercial interests.

PRAYER

WHEREFORE the Respondent respectfully prays that this Honourable Court:

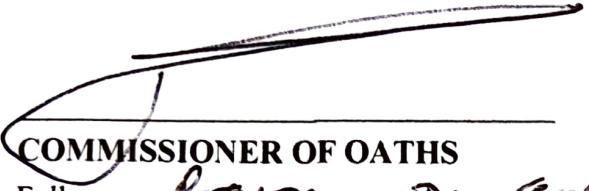
1. Dismiss the Applicant's application for urgent interim relief and/or strike the application from the urgent roll, with costs;
2. In the alternative, postpone the matter for a period of not less than 48 to 72 hours to enable the Respondent to obtain legal representation and file a full Answering Affidavit;
3. Declare that the Respondent's proposed disclosures to trade unions and regulatory bodies constitute Protected Disclosures within the meaning of the Protected Disclosures Act 26 of 2000, read with the Nursing Act 33 of 2005 and the Health Professions Act 56 of 1974;
4. In respect of costs: that the Applicant bear the costs of this application on the scale as between attorney and client, given the abuse of process constituted by the midnight service and the attempt to characterise a legitimate legal claim as extortion; and
5. Grant any further and/or alternative relief as this Honourable Court deems just and equitable.

I hereby declare that the contents of this affidavit are within my personal knowledge, true and correct.


WILBUR WILLIAM MATTHEE

Deponent

I CERTIFY that this affidavit was SIGNED AND SWORN TO before me at DELFT on this the 16TH day of April 2026, the deponent having acknowledged that he knows and understands the contents of this affidavit, he has no objection to taking the prescribed oath, and considers it binding on his conscience.



 COMMISSIONER OF OATHS

Full name: PASTOR BENJAMIN J. MASEMOLA

Designation: BD 25513

PASTOR BENJAMIN J. MASEMOLA
 MARRIAGE OFFICER
 COMMISSIONER OF OATHS
 No. 18 DIGTEBY CRESCENT
 VOORBRUG DELFT 7100
 Cell: 082 891 0844

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**
CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED	Applicant
and	
WILBUR WILLIAM MATTHEE	Respondent

INDEX OF ANNEXURES

SUPPLEMENTARY ANSWERING AFFIDAVIT (FINAL CONSOLIDATED)

Respondent Acting in Person — Case No. 2026-086906

This bundle contains **22** annexures filed in support of the Respondent's Supplementary Answering Affidavit. Each annexure is preceded by a tab page identifying the document by reference, date, category, description, and its relevance to these proceedings. The annexures are listed below in chronological order and by reference number.

Total Annexures: 22 | Period covered: January 2024 – April 2026 | Respondent: Wilbur William Matthee (acting in person)

CATEGORY	ANNEXURE REFERENCE(S)
<i>Employment Record / Contract</i>	A1
<i>Recruitment Documentation</i>	WW3
<i>Impact Statement</i>	IMP1
<i>Internal Escalation Emails</i>	EXEC1
<i>Board GRC Escalations (3)</i>	GRC1, GRC2, WW4
<i>CCMA Papers</i>	OA1, RA1
<i>Exit Documentation (4)</i>	EXIT2, EXIT3, EXIT4, EXIT3-COS
<i>Correspondence — Attorneys / DEL</i>	WW1, WW5
<i>Labour Court Papers</i>	WW2
<i>Founding Papers Cross-Reference (3)</i>	GVW4, GVW5, DEC1
<i>Affidavit of Destitution</i>	WW6

<i>Forensic Root Cause Analysis</i>	VICT1
<i>Professional Reference</i>	RESU1

FULL CHRONOLOGICAL INDEX

REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
A1	9 April 2024 (signed 18 April 2024)	<i>Employment Record</i>	Employment Contract — Respondent designated "Care Coordinator" (IRC78739), signed by GM Barbara Johnson.	Proves title imposed without consultation. Contradicts Applicant's use of "Case Manager" in founding papers. Fatal contradiction with Certificate of Service.
WW3	29 January 2024	<i>Recruitment Email Chain</i>	Vacancy email chain: Neo Sekgoka (Human Capital Intern) communicates "Specialist Care Manager" assessment. Respondent's email of 29 Jan 2024 at 14:14 voluntarily discloses pending blood-alcohol trial and provides updated CV.	Establishes radical transparency during recruitment. Proves Respondent was not induced by misrepresentation. Counters any attempt to use the pending trial to impugn character.
IMP1	2 November 2025	<i>Impact Statement</i>	Impact Statement submitted by Respondent to HR Business Partner — documents chronic stress, erosion of self-confidence, isolation, and professional stagnation caused by the hostile work environment created by Mary-Ann Jones; cites specific incidents including no-win directives, out-of-hours demands, and denial of written record.	Establishes subjective element of constructive dismissal. Contemporaneous record of deteriorating employment conditions predating resignation.
EXEC1	4 December 2025	<i>Internal Escalation Email</i>	Executive Leadership Escalation email from Respondent's Medscheme email account — documents: (1) unlawful salary deduction >40% during mental health admission; (2) continuous retaliation and victimisation; (3) 20% reduction in performance metrics; (4) 30+ days institutional silence. Requests paid recuperation leave, financial settlement independently assessed by Risk & Compliance, and institutional commitments.	Final good-faith internal attempt prior to CCMA referral. Satisfies requirement to exhaust internal remedies. Directly contradicts any suggestion of bad faith or vexatious conduct.
GRC1	9 December 2025	<i>Board GRC Escalation (1st)</i>	Formal GRC Escalation to Dr ATM Mokgokong (Chairman, Social & Ethics Committee) with 38 attachments. Includes executive summary table of King IV governance failures (Principles 2, 3, 14, 16). Formal request for independent investigation and Board-mediated resolution. Filed prior to Manyati opposing affidavit.	Establishes Board-level notice of governance failures before OA1 was filed. Demonstrates protected disclosure made in good faith. Grounds King IV / Companies Act governance argument.

REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
OA1	10 December 2025	<i>CCMA Opposing Affidavit</i>	Notice of Opposition and Answering Affidavit of Xolile Vincent Manyati, Senior Employee Relations Specialist (CCMA Case No. WECT23564-25, Medscheme Holdings v Wilbur Matthee). Paragraph 6.3: PTSD and depression characterised as "an excuse" and "an afterthought". Respondent misstated as "care coordinator". Punitive costs sought.	Primary evidence of Applicant's bad faith. Non-medical deponent attacks uncontested psychiatric diagnosis under oath. Respondent's designation misstated in a sworn document. Directly contradicts Applicant's position in this application that it acts in good faith.
GRC2	11 December 2025	<i>Board GRC Escalation (2nd)</i>	Second Board-Level GRC Escalation: "Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk". Attaches OA1 as Annexure A. Identifies five categories of institutional bad faith: (1) dismissal of psychiatric condition; (2) misrepresentation of title; (3) character attacks; (4) punitive cost demand; (5) trivialisation of financial destitution. Requests Board acknowledgment by 12 December 2025 at 12:00.	Proves Board was placed on notice of OA1's bad faith within 24 hours of its filing. Establishes deliberate institutional silence at Board level. Grounds res judicata argument in counter-application.
RA1	11 December 2025	<i>CCMA Replying Affidavit</i>	Respondent's Replying Affidavit to CCMA Condonation Opposition (Case WEC123564-25), signed at Delft. Rebuts Manyati affidavit in full. Establishes continuous harm doctrine (Gauteng Department of Health v Tsomakae [2017]). Documents OA1 as independent post-referral unfair labour practice. Responds to punitive costs demand and prejudice argument. Demonstrates overwhelming prospects of success.	Establishes legal basis for CCMA jurisdiction. Continuous harm doctrine applied. Demonstrates Respondent's consistent principled litigation conduct.
WW4	16–18 December 2025	<i>Board GRC Escalation (3rd) / Retraction / Suppression Email</i>	Three documents: (1) Maximum Severity GRC3 Escalation 16 Dec 2025 — Formal Memorandum to Board Audit & Risk Committee regarding management interference in GEMS Case 000655789. Dependent 02, suppression of findings, and retaliation (audio recording of Mary-Ann Jones stating refusal "is insubordination"); 24-hour compliance window. (2) Voluntary Retraction email 17 Dec 2025 — sent on public holiday, procedurally invalidating deadline; immediately retracted with apology. (3) Monwabisi Kula (CRO) suppression email 18 Dec 2025 — instructing Respondent to cease emailing directors.	Three separate grounds: (1) Establishes patient-safety protected disclosure re GEMS 000655789. (2) Voluntary retraction proves procedural good faith — vexatious litigants do not retract. (3) Kula email constitutes direct suppression of protected disclosure by the CRO — key evidence of retaliation.
EXIT2	14–15 January 2026	<i>Exit Documents Request Chain</i>	Email chain: Respondent's email 14 Jan 2026 to Sipokazi Makaula requesting retirement and UIF forms.	Evidences deliberate administrative obstruction of exit document processing.

REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
			Makaula response 15 Jan 2026 requesting basic identity details despite the Respondent having been identified by name in the Manyati CCMA affidavit filed the previous month.	Manyati's affidavit identified Respondent by name, designating, title, and CCMA case number; any claim that identity was unknown is untenable.
EXIT3	15–19 January 2026	UIF Non-Compliance Notice (5-message chain)	URGENT Notice of Statutory Non-Compliance (UIF). Includes uFiling portal screenshot: MEDSCHEME HOLDINGS PTY LTD (201103-202702) — June 2025 flagged "No Information" despite UIF deduction appearing on payslip. Demands UI-19, Service Certificate and Umbrella Fund Withdrawal Forms by 19 Jan 2026 at 12:00. Sipokazi Makaula response 19 Jan 2026 provides documents but incorrectly asserts that resignation bars UIF claim. Includes Sanlam withdrawal email chain 15 Jan 2026.	Establishes UIF non-remittance irregularity for June 2025. Makaula's resignation-bar assertion is legally incorrect re constructive dismissal. Direct cause of administrative deadlock with the Department of Employment and Labour. Grounds declaratory relief prayer.
EXIT4	19 January 2026	Certificate of Service — Correction Required (4-message chain)	Respondent's letter to Monwabisi Kula and Lindiwe Miyambu objecting to Certificate reflecting "Care Coordinator" — aligned with Manyati CCMA affidavit title rather than payroll records. Reference to "Naming Convention" Teams meeting (attended by Sipokazi Makaula and Nthabiseng Nkatane) where Operational Manager directed identifier updates. Cheryl-Dawn Modern's response 19 Jan 2026 at 15:40 maintaining "Care Coordinator" and asserting no naming-convention changes implemented. Respondent's final reply at 16:30 placing Certificate on Labour Court record. Screenshot of Respondent's Medscheme email signature dated 15 October 2025 showing title "Case Manager: GEMS Active Disease Risk Management".	Proves Applicant knowingly refused to correct erroneous Certificate. Modern's response directly contradicts Respondent's email signature and "Naming Convention" Teams meeting record. Grounds fatal contradiction argument in paragraph 15 of the affidavit.
EXIT3-COS	19 January 2026	Certificate of Service (as issued)	Certificate of Service issued by Medscheme Holdings upon Respondent's departure — reflects designation "Care Coordinator". This designation is contrary to: (1) payroll records; (2) the "Naming Convention" Teams meeting record; (3) the Respondent's professional Medscheme email signature ("Case Manager"); and (4) the Applicant's own founding affidavit in this application, which designates the Respondent as "Case Manager".	The primary physical document evidencing the fatal contradiction. Relied upon by the Department of Employment and Labour to withhold UIF benefits. Establishes that the Applicant cannot simultaneously call the Respondent a "Case Manager" in interdict papers and a "Care Coordinator" in exit documentation.
WW1	15 April 2026	Deneys Attorneys Letter	Letter from Jason Whyte of Deneys Attorneys to Respondent alleging that the Respondent's demand was	Directly prompted Respondent's same-day provision of fully itemised R7,307,642.72 quantification

REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
			"unquantified" and relying on this to support an allegation of extortion.	(Annexure GVV4). A genuine extortionist does not itemise at the opposing party's request. Deneys' own letter defeats the extortion allegation.
WW2	9 April 2026	<i>Labour Court Statement of Claim</i>	Labour Court Statement of Claim filed by Respondent (Case No. 2026-083299) — includes express reservation of right to quantify damages, establishing that the claim was on record before the quantification was provided.	Demonstrates that the R7,307,642.72 quantification was not a new demand or threat — it was the first full Rand expression of an existing, filed Labour Court claim. Defeats extortion allegation.
GVW4	15 April 2026	<i>Quantification Schedule — R7,307,642.72</i>	Fully itemised quantification of the Respondent's damages (R7,307,642.72) provided on 15 April 2026 to Deneys Attorneys at their express written request. Breakdown by head of damages aligned with Labour Court claim. (Filed in Applicant's founding papers.)	Evidences good faith and genuine litigant conduct. Represents less than 0.24% of the estimated annual Governance Tax (R3.016bn). Under the Protected Disclosures Bill 2026, a 25% whistleblower award on recovered funds would yield R754m — making the extortion characterisation policy-blind.
GVW5	15 April 2026 at 20:44	<i>Correction Email — "Leakage"</i>	Voluntary email from Respondent to Applicant at 20h44 on 15 April 2026: "I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint."	A bad-faith actor does not issue voluntary corrections. This email is direct evidence of good faith and careful epistemic standards in communication. Applicant's reliance on the original use of "leakage" to allege bad faith is an abuse of process.
WW5	15 April 2026	<i>DEL Email — Refusal to Release Benefits</i>	Email from the Department of Employment and Labour dated 15 April 2026 confirming refusal to release UIF benefits to Respondent.	Establishes the concrete and immediate harm of the administrative deadlock created by the erroneous Certificate of Service and UI-19 form. Demonstrates tangible advantage to be obtained from declaratory relief — not an abstract or hypothetical interest.
WW6	April 2026	<i>Affidavit of Destitution</i>	Affidavit sworn by Respondent confirming: (1) no current income; (2) no savings, investments, or significant assets; (3) inability to afford transport to attend court; (4) inability to afford legal representation; (5) dependence on family and charity; (6) request for waiver of filing fees and security for costs.	Context for all procedural conduct. Explains inability to attend the 16 April 2026 hearing. Grounds request for attorney-client costs against Applicant for dragging a destitute respondent into urgent proceedings on 67 minutes' notice.

REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
VICT1	2025	<i>Root Cause Analysis (Forensic)</i>	Root Cause Analysis: Gexus/DMS Integration Gap — forensic analysis establishing that the systemic integration failure generates false non-adherence data, compelling actuaries to apply maximum APN 303 risk loading, inflating the GEMS premium increase from the CMS-stipulated 3.3–4% to 9.5%. Estimated excess cost: R3.016 billion per annum across 1.9 million GEMS members.	Core substantive protected disclosure. Establishes public interest at stake. Grounds the APN 303 / NHI public interest arguments. Demonstrates objective basis for Respondent's disclosures — not speculation but empirical data-driven analysis. Applicant's own paragraph 40 admits the Gexus/DMS platforms manage the relevant data.
RESU1	2026	<i>Letter of Recommendation — Dr P.M.J. Ohm</i>	Professional reference letter from Dr P.M.J. Ohm, medical doctor, Mitchells Plain District Hospital Emergency Unit, where Respondent works as shift leader: confirms "depth of clinical knowledge", ability to "de-escalate any heated situation with a calm tone and demeanour", and commitment to "protect patient dignity".	Independent, objective, professional evidence of clinical competence and mental fitness. Directly contradicts Manyati's sworn characterisation of PTSD as an "excuse". A specialist medical practitioner's assessment outweighs a non-medical HR official's lay opinion — particularly when made under oath.
DEC1	2026	<i>Supporting Declaration</i>	Supporting declaration filed in the Applicant's founding papers.	Cross-referenced in founding papers. Already before the Court.

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN
CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

**NOTICE OF COUNTER-APPLICATION FOR DECLARATORY
RELIEF**

TO: THE REGISTRAR OF THE HIGH COURT, WESTERN CAPE DIVISION, CAPE TOWN

AND TO: THE APPLICANT'S ATTORNEYS, DENEYS (JASON WHYTE —
jason.whyte@deneys.co.za)

KINDLY TAKE NOTICE that the Respondent hereby institutes a counter-application for the declaratory relief set out in **Part Q** of the Supplementary Answering Affidavit.

TAKE FURTHER NOTICE that this counter-application is **not conditional** upon the Applicant proceeding with its main application. The Respondent seeks the declaratory orders independently and the counter-application will proceed even if the Applicant withdraws its main application under Case No. **2026/086906**.

TAKE FURTHER NOTICE that the Respondent will move for an order in terms of the prayer contained in **Part R** of the Supplementary Answering Affidavit, read with the prayer below.

TAKE FURTHER NOTICE that the Respondent has elected to incorporate the counter-application in his answering papers, as permitted by **Rule 6(5)(e)** of the Uniform Rules of Court and the practice confirmed in *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*.

TAKE FURTHER NOTICE that the Respondent will apply for an order that the counter-application be enrolled for hearing simultaneously with the main application, or on such other date as this Honourable Court may determine, and that in the event the main application is withdrawn, the counter-application shall proceed on its own.

DATED at CAPE TOWN on this 20th day of APRIL 2026.

WILBUR WILLIAM MATTHEE

Respondent (acting in person)

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: The Registrar, High Court, Western Cape Division, Cape Town

CC: Deneys Attorneys (Jason Whyte) — jason.whyte@deneys.co.za

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

SUPPLEMENTARY ANSWERING AFFIDAVIT

I, the undersigned, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state:

1. INTRODUCTION, PROFESSIONAL STANDING, AND DESTITUTION

- 1.1 I am an adult male **Specialist Registered Nurse (NQF Level 8)** and hold a **Postgraduate Diploma in Health Services Management**. I am also a Forensic Governance Specialist and the founder of EthicHawks Forensic Governance and Compliance Consultancy.
- 1.2 I appear in person because I am **destitute**. I have no income, no transport money, and cannot afford legal representation. I attach a separate Affidavit of Destitution marked "**WW6**".
- 1.3 This affidavit supplements my answering affidavit filed on **16 April 2026**. I reserve the right to supplement further upon obtaining legal representation and discovery.

2. THE APPLICANT'S BAD FAITH: CONTRASTING DR OHM'S LETTER WITH THE OPPOSING AFFIDAVIT

- 2.1 I attach as **Annexure RESU1** a letter of recommendation from Dr P.M.J. Ohm, a team leader medical doctor practising at Mitchells Plain District Hospital Emergency Unit, where I work as a shift leader. Dr Ohm states that I have "*depth of clinical knowledge*", "*de-escalate any heated situation with a calm tone and demeanour*",

and "*protect patient dignity*". This letter constitutes objective, professional evidence of my competence, good faith, and mental fitness.

- 2.2 In stark contrast, the Applicant — through its representative **Mr Xolile Vincent Manyati** (a Senior Employee Relations Specialist who has never met me and is not a medical professional) — deposed to an opposing affidavit in the CCMA matter (Case No. WECT23564-25), one filed *after* my first Board-level escalation (see **Annexure GRC1** and **GRC2**). In that sworn affidavit, Mr Manyati stated under oath that my documented PTSD and depression were "**an excuse**" and "**an afterthought**" (see Annexure OA1, paragraph 6.3).
- 2.3 The Applicant has **never produced any medical evidence** contradicting my psychiatric condition. A specialist psychiatrist's report confirming my diagnosis and occupational detriment was provided to the Applicant. They have chosen to ignore it.
- 2.4 This conduct constitutes **bad faith** — it is a reckless disregard for the truth, made under oath. It demonstrates that the Applicant is prepared to swear to falsehoods to defeat a whistleblower. This Honourable Court should take judicial notice of this pattern of dishonesty when evaluating the Applicant's claim to "*irreparable harm*".

KEY LEGAL POINT — CLEAN HANDS DOCTRINE

A party seeking equitable relief must come to Court with clean hands. The Applicant's willingness to contradict an uncontested psychiatric report under oath, through a layperson deponent, denudes its application of the good faith necessary to sustain urgent interdict relief. See: *Setlogelo v Setlogelo 1914 AD 221* (requirements for interdict include absence of undue hardship and clean hands).

3. POINTS IN LIMINE

- 3.1 **Improper Service:** The Applicant served its founding papers on me at **08:53 on 16 April 2026** for a hearing at **10:00 the same day** — a period of only **67 minutes** to respond. I filed a notice to oppose and an answering affidavit, but could not attend court because I am destitute. The Applicant's conduct constitutes an **abuse of process**. The rule nisi should be discharged on this ground alone.
- 3.2 **Self-Created Urgency:** The Applicant was aware of my forensic findings since **October 2025**. It chose to take no action until I set a deadline of 16 April 2026. The urgency is **entirely self-created** and cannot found urgent relief. See: *Luna Meubels*

Vervvaardigers (Edms) Bpk v Makin (t/a Makin's Furniture Manufacturers) 1977 (4) SA 135 (W).

POINTS IN LIMINE — SUMMARY

This Honourable Court is respectfully invited to discharge the rule nisi on the following **preliminary grounds**, without reaching the merits: (1) improper service — 67-minute notice for an urgent hearing; (2) self-created urgency — applicant dormant since October 2025.

3A. FAILURE TO SATISFY INTERDICT REQUIREMENTS: EXISTENCE OF ALTERNATIVE REMEDIES

3A.1 I respectfully submit that the Applicant's request for an interdict must fail as it cannot prove the **absence of an alternative satisfactory remedy**. The Applicant is a corporate employer with full access to standard internal disciplinary mechanisms and the ordinary procedures of the Labour Court. By choosing to bypass its own internal grievance and disciplinary frameworks — and instead dragging a destitute former employee into the **Urgent High Court on 67 minutes' notice** — the Applicant is attempting to weaponise this Court to suppress a statutory protected disclosure. An urgent High Court interdict is not a substitute for standard dispute resolution.

ALTERNATIVE REMEDY — LEGAL STANDARD

A fundamental requirement for final (and interim) interdict relief is that the applicant must demonstrate the absence of an alternative, adequate remedy. See: *Setlogelo v Setlogelo 1914 AD 221*; *Olympic Passenger Services (Pty) Ltd v Ramlagan 1957 (2) SA 382 (D)*. The Applicant has access to its internal grievance mechanisms, the CCMA, and the Labour Court — all of which are adequate alternative remedies. The Applicant's deliberate election to bypass these constitutes an abuse of the urgent court roll.

4. QUANTIFICATION IN RESPONSE TO "UNQUANTIFIED" COMPLAINT

- 4.1 On 15 April 2026, Deneys Attorneys sent a letter (**Annexure WW1**) stating that my demand was "*unquantified*" and that this supported an allegation of extortion.
- 4.2 In direct response, I sent a fully itemised quantification of **R7,307,642.72 (Annexure GVW4** to the founding affidavit).

- 4.3 That quantification was not a new demand. It was the **first full Rand expression** of the same claim already filed in the Labour Court on **9 April 2026**. My Labour Court Statement of Claim expressly reserved the right to quantify (**Annexure WW2**).
- 4.4 **A person engaged in extortion does not quantify at the request of the opposing party.** My conduct is that of a genuine litigant.

5. VOLUNTARY CORRECTION OF "LEAKAGE" — EVIDENCE OF GOOD FAITH

- 5.1 The Applicant criticises me for using the word *"leakage"* and then correcting myself (founding affidavit paras 36, 37, 58).
- 5.2 On 15 April 2026 at **20h44**, I voluntarily sent a correction email (**Annexure GVW5**): *"I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint."*
- 5.3 **A bad-faith actor does not issue voluntary corrections.** My correction is direct evidence of good faith.

6. TRANSPARENCY: VOLUNTARY DISCLOSURE OF PENDING TRIAL

- 6.1 In **January 2024**, during recruitment, I voluntarily disclosed a pending trial relating to blood alcohol levels to the Applicant's Human Capital department (**Annexure WW3**). I provided an updated CV before employment.
- 6.2 The Applicant initially recruited me for the post of **Specialist Care Manager**.
- 6.3 However, at the point of signing the employment agreement, the Applicant unexpectedly presented me with a contract reflecting the **diminished title of "Care Coordinator"**, without any prior consultation or explanation for this sudden alteration.
- 6.4 Subsequently, during a recorded meeting '**naming convention**' with the Operational Manager and Human Capital, this discrepancy was formally addressed and my title was rightfully updated to reflect my NQF Level 8 qualification, establishing my correct designation as **Case Manager**.
- 6.5 The voluntary disclosure detailed in paragraph 6.1 is a demonstration of my **radical transparency**. I bring this to the Court's attention to categorically state that the pending trial is entirely irrelevant to these proceedings, involves no element of dishonesty or extortion, and **cannot be used by the Applicant to retroactively impugn my character** or my actions as a whistleblower.

7. PROCEDURAL INTEGRITY: RETRACTION OF MY OWN GRC ESCALATION

- 7.1 On **16 December 2025**, I sent a GRC Escalation to the Board. When I realised it was sent on a public holiday — invalidating my deadline — I immediately retracted it and apologised (**Annexure WW4**).
- 7.2 **A vexatious litigant does not retract his own documents.** I respect process and have demonstrated this consistently.

8. NECESSITY AND PROPORTIONALITY OF MY TONE

- 8.1 Between October 2025 and April 2026, I exhausted all internal remedies: grievances, Board escalation, a letter to the Group CEO. The Applicant responded with silence, suppression, and a CEO who **breached my confidentiality**.
- 8.2 By April 2026, the **9.5% premium increase** had been approved. The Department of Employment and Labour refused to unblock my benefits (**Annexure WW5**).
- 8.3 My explicit tone was **necessary and proportionate**. I threatened no violence or unlawful act — only protected disclosures to trade unions and regulators, which are expressly contemplated by the Protected Disclosures Act 26 of 2000.

9. PUBLIC INTEREST: APN 303 AND THE R3 BILLION "GOVERNANCE TAX"

- 9.1 At paragraph 40 of their Founding Affidavit, the Applicant admits that the **Gexus and DMS platforms** manage chronic care pathways and adherence data. Actuaries rely entirely on Gexus/DMS data to build statutory financial models under **Actuarial Practice Note 303 (APN 303)**.
- 9.2 As proven in my Root Cause Analysis (**Annexure VICT1**), the systemic integration gap generates **false non-adherence data**. Actuaries are compelled to apply maximum APN 303 risk loading, inflating the premium increase from the CMS-stipulated **3.3%–4% to 9.8%** then refuted to **9.5%.%**.

PUBLIC INTEREST — FISCAL QUANTUM

The excessive 4.5% premium inflation constitutes an artificial "**Governance Tax**" costing approximately **1.9 million GEMS members** an estimated **R3.016 billion annually**. This is a matter of overwhelming public interest directly relevant to the Applicant's claim that it suffers any harm from my disclosures.

10. NO POPIA BREACH

10.1 I intend to disclose **systemic governance failures**, not individual patient records. The POPIA argument advanced by the Applicant is a deliberate overstatement designed to suppress legitimate whistleblowing activity.

11. THE PROTECTED DISCLOSURES BILL, 2026 — PUBLIC POLICY AND PROPORTIONALITY

11.1 On **8 April 2026**, the Minister of Justice and Constitutional Development published the **Protected Disclosures Bill, 2026** for public comment. The Bill proposes to repeal the existing PDA and introduce, inter alia, financial awards for whistleblowers of up to **25% of any monetary sanction** imposed on an employer as a result of a protected disclosure.

11.2 The Bill was driven by the Zondo Commission's findings that the current Act does not sufficiently protect whistleblowers. The Minister explicitly stated that the Bill aims to *"incentivise our whistleblowers"* and that *"the person who has made the disclosure could receive an amount that does not exceed one fourth of the monetary sanction"*.

POLICY PROPORTIONALITY ARGUMENT

If Parliament considers it legitimate to reward whistleblowers with up to **25% of recovered funds** (which on R3.016bn would equal **R754 million**), the Applicant's characterisation of my **R7,307,642.72 claim** (representing less than **0.24%** of the annual waste exposed) as *"extortion"* is not only legally flawed — it is **policy-blind and contrary to the express direction of national legislation**.

12. PUBLIC POLICY AND THE NATIONAL HEALTH INSURANCE (NHI) ACT

12.1 The **National Health Insurance Act 20 of 2023** aims to achieve universal access to quality healthcare. Its success depends entirely on the integrity of health data and governance systems.

12.2 The systemic Gexus/DMS integration gap corrupts clinical data, leading to operational waste and inflated claims. The R3.016 billion Governance Tax is a **direct threat to the NHI's fiscal sustainability**.

- 12.3 As a Specialist Registered Nurse and Health Services Manager, I am bound by the **Nursing Act 33 of 2005** to advocate for the profession and manage and coordinate nursing care effectively. My escalation of the integration gap was not insubordination — it was the **fulfilment of my professional and ethical duties**.
- 12.4 It would constitute a **perversion of justice** for this Court to grant an interdict that punishes me for upholding the very governance and accountability that the NHI requires to succeed.

13. THE PROTECTED DISCLOSURES ACT APPLIES TO FORMER EMPLOYEES

- 13.1 Section 1 of the PDA expressly includes a **"former employee"** within the definition of *"employee"*. My disclosures relate to improper conduct that occurred during my employment. The Applicant's contrary submission is accordingly incorrect in law.

14. FORMAL INVITATION TO PRODUCE DISCOVERY — PUTTING THE APPLICANT ON NOTICE

- 14.1 I hereby formally invite and put the Applicant on notice to produce the following documents within **5 (five) days** of service of this affidavit:
- 14.1.1 The unredacted GEMS CMS Business Plan justifying the **9.5% premium increase for 2026**;
- 14.1.2 The **APN 303 Actuarial Risk Profiling Logs** fed from the Gexus and DMS platforms covering the period October 2024 to October 2025;
- 14.1.3 The unedited Microsoft Teams recording titled *"Naming Convention"* (or any similar recording) containing management discussions regarding the suppression of my findings or the alteration of my job title;
- 14.1.4 Correction of my **UI19 form** to allow access to unemployment benefits;
- 14.1.5 Correction of my **Certificate of Service** to reflect my actual designation as *Case Manager / Specialist Nurse*;
- 14.1.6 Submission of **non-remitted UIF contributions for June 2025**.
- 14.2 The Applicant's refusal or failure to produce these documents will entitle this Court to **draw an adverse inference** against the Applicant.
- 14.3 **WARNING:** If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day in terms of **Uniform Rule 6(8)** (as permitted by

paragraph 7 of the interim order dated 16 April 2026) and move for an order discharging the rule nisi with a **punitive costs order**.

14.4 I anticipate that the Applicant may attempt to resist the production of the unredacted GEMS CMS Business Plan and APN 303 actuarial logs by citing **commercial confidentiality or privilege**.

14.4.1 Such a defence is **fatally flawed** and falls to be dismissed for two reasons:

(a) **Waiver of Confidentiality:** The Applicant's CEO recklessly distributed my protected complaint directly to the very individuals implicated in the systemic failure, thereby **destroying any veil of privilege**. The Applicant cannot weaponise "*confidentiality*" against this Court when it failed to practise it internally.

(b) **Independent Auditor / In Camera Review:** To eliminate any genuine concern regarding proprietary trade secrets, I hereby **tender** that the unredacted documents be provided to an independent, mutually agreed-upon IT auditor or actuary, or alternatively, be submitted for an *in camera* review by the presiding Judge. The objective is solely to **verify the forensic irregularities** confirming my root cause analysis, not to expose trade secrets.

14.5 I am acutely aware that discovery in motion proceedings is exceptional under **Rule 35(13)**. However, the Applicant has approached this Urgent Court seeking equitable relief (an interdict) against me.

14.6 The Applicant **cannot seek the Court's protection** while actively suppressing the exact empirical evidence — specifically the APN 303 logs and the Microsoft Teams recording — that constitutes my complete and absolute defence to their allegations of insubordination and vexatious conduct. The Applicant must approach this Court with **clean hands**. Withholding evidence that proves a respondent's statutory defence under the Protected Disclosures Act is a **gross abuse of process**.

14.7 For the avoidance of doubt, the mechanism I am utilising to anticipate the return date is not an abuse of the urgent roll, but a **direct exercise of the judicial mechanism** expressly provided to me.

14.8 During the initial hearing, the presiding Judge explicitly granted me the "**golden bridge**" to utilise Uniform Rule 6(8) to anticipate the return date upon 24 hours' notice. Should the Applicant fail to produce the requested records within the stipulated 3 days, my subsequent anticipation of the return date will be the **lawful**

execution of that judicial directive, necessitated by the Applicant's own refusal to be transparent.

DISPUTE OF FACT — PRE-EMPTED

The Applicant may attempt to manufacture a "*dispute of fact*" to stall my counter-application. My defence and counter-application are grounded not in subjective interpretation, but in **objective, immutable data**: actuarial logs, statutory prescripts (Nursing Act 33 of 2005), and mathematical quantification aligned with the Protected Disclosures Bill of 2026. The Applicant **cannot create a genuine dispute of fact** simply by issuing bare denials against objective algorithmic outputs.

15. FATAL CONTRADICTION IN THE APPLICANT'S PAPERS

15.1 The Applicant's founding affidavit designates me as "**Case Manager**". Yet on my Certificate of Service, the Applicant deliberately downgraded my title to diminish my credibility. The Applicant **cannot simultaneously rely on my status as Case Manager** to seek an interdict while erasing that same title in the Labour Court and before the Department of Employment and Labour.

FATAL CONTRADICTION — DESIGNATION INCONSISTENCY

The Applicant designates the Respondent as "**Case Manager**" in its founding affidavit while simultaneously erasing that designation on the Certificate of Service submitted to the Labour Court and the Department of Employment and Labour. See contradiction table below.

DOCUMENT	DESIGNATION APPLIED
Founding Affidavit (this application)	Case Manager
Certificate of Service (Labour Court / DEL)	Downgraded title — used to support the opposing affidavit submitted at the CCMA

16. JUDICIAL NOTICE OF PRIOR VEXATIOUS CONDUCT

16.1 This Court struck my previous urgent application (Case No. **2026-066952**) from the roll with costs, expressing its displeasure with the manner in which it was brought. The Applicant now repeats the same pattern: an application lacking genuine urgency, based on unsubstantiated allegations of "*extortion*".

16.2 As held in *Mkhatshwa v Mkhatshwa 2021 (5) SA 447 (CC)*, vexatious litigation warrants punitive costs.

**PART Q: COUNTER-APPLICATION FOR DECLARATORY RELIEF
(UNCONDITIONAL)**

- 17.1 I hereby institute a **counter-application for declaratory relief**. This counter-application is **not conditional** upon the Applicant proceeding with its main application. I seek these declaratory orders independently, and the counter-application will proceed even if the Applicant withdraws its main application under Case No. **2026/086906**
- 17.2 I submit that this Honourable Court has jurisdiction to grant declaratory relief in terms of **section 19(1)(a)(iii) of the Superior Courts Act, 2013**, which provides that a Division has jurisdiction over "*the granting of declaratory orders*". Furthermore, to the extent the Applicant may argue that aspects of this counter-application touch upon Labour Court jurisdiction, I rely on the doctrine of **causa continentia**. The Applicant deliberately elected to institute these urgent proceedings in the High Court, placing the factual matrix of my disclosures directly before this forum. It is in the interests of justice, and to avoid a multiplicity of actions, that this Court disposes of the counter-application within the very forum the Applicant itself chose.
- 17.3 I further submit that the relief sought is **not abstract or hypothetical**. There is a tangible and immediate advantage to be obtained:
- 17.3.1 The declaratory orders will immediately **break the administrative deadlock** with the Department of Employment and Labour, allowing me access to unlawfully withheld statutory social security benefits (UIF, retirement funds);
- 17.3.2 The declaratory orders will **vindicate my reputation** and establish my good faith, which the Applicant has falsely attacked in its founding papers and in the CCMA proceedings.

AUTHORITY: NEW CLICKS — COUNTER-APPLICATION IN ANSWERING PAPERS

The counter-application is properly brought within my answering papers. I rely on *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*, which confirms that a respondent may, in an answering affidavit, seek declaratory relief, and that a counter-application may be brought within the same papers.

- 17.4 I rely on the Constitutional Court's decision in *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*, which confirms that a respondent may, in an answering affidavit, seek declaratory relief and that a counter-application may be brought within the same papers.
- 17.5 I further rely on the Eastern Cape High Court decision in *Eastern Cape High Court, Bhisho (Case No. 148/2020)*, where the respondents filed a counter-application within their answering affidavit seeking declaratory relief. The fact that my counter-application is not conditional on the main application proceeding is consistent with the inherent jurisdiction of this Court to grant declaratory relief *whenever it is just and convenient to do so*.
- 17.6 I expressly confirm that I will pursue this counter-application **regardless of whether the Applicant withdraws its main application**. The declaratory relief is necessary to remedy the ongoing harm I suffer and to break the administrative deadlock that the Applicant has created through its unlawful conduct.
- 17.7 For the avoidance of doubt, and to pre-empt any dilatory points regarding **non-joinder**, I confirm that no relief or costs are sought against the Department of Employment and Labour, the Council for Medical Schemes, or the National Department of Health. Their mention in these papers is strictly contextual — to demonstrate the **immediate administrative harm** I am suffering and the national public interest at stake. Consequently, their formal joinder is **not required in law** for this Court to grant the declaratory relief against the Applicant.

PART R: PRAYER FOR DECLARATORY RELIEF (COUNTER-APPLICATION)

WHEREFORE the Respondent prays that this Honourable Court grants the following declaratory findings in the counter-application:

- R.1 That the Root Cause Analysis (**Annexure VICT1**) and the subsequent escalations regarding the Gexus/DMS integration gap constitute **Protected Disclosures made in**

good faith and in the public interest within the meaning of the Protected Disclosures Act 26 of 2000;

R.2 That the Respondent's voluntary correction of the word "*leakage*" (**Annexure GVW5**) and his voluntary retraction of the GRC Escalation due to a procedural error (**Annexure WW4**) are evidence of **good faith**, and the Applicant's reliance on these events to allege bad faith is an **abuse of process**;

R.3 That the Respondent's quantification of **R7,307,642.72** on 15 April 2026 was a **good-faith articulation** of his existing Labour Court claim (Case No. **2026-083299**) and does **not** constitute extortion;

R.4 That the Applicant is ordered to comply with the formal invitation to produce discovery set out in paragraph 14 above within **5 (five) days** of this order;

R.5 That the Respondent be granted any **further and/or alternative relief** as this Honourable Court deems just and equitable;

R.6 That the **costs of the counter-application** be paid by the Applicant on the scale as between **attorney and client**.

R.7 I submit that this Honourable Court has jurisdiction to grant declaratory relief in terms of section 19(1)(a)(iii) of the Superior Courts Act, 2013. Furthermore, to the extent the Applicant may argue that aspects of this counter-application touch upon Labour Court jurisdiction, I rely on the doctrine of causa continentia. The Applicant deliberately elected to institute these urgent proceedings in the High Court, placing the factual matrix of my disclosures directly before this forum. It is in the interests of justice, and to avoid a multiplicity of actions, that the High Court disposes of the counter-application within the very forum the Applicant itself chose.

PART S: PRAYER FOR RELIEF IN THE MAIN APPLICATION

(Opposition to the Applicant's interdict — this remains unchanged)

In addition to the counter-application, the Respondent prays that this Honourable Court:

S.1 **Discharge the rule nisi** issued on 16 April 2026 and set aside the interim interdict in its entirety, with costs on the scale as between **attorney and client**, such costs to be paid by the Applicant;

S.2 Grant the **declaratory findings** set out in paragraph 17 above;

S.3 Order the Applicant to comply with the formal invitation to produce discovery set out in paragraph 14 within **5 (five) days**;

S.4 Grant any further and/or alternative relief as this Honourable Court deems just and equitable.

S5. An order directing that the declaratory relief sought herein be granted on an urgent basis, as this Honourable Court is the only forum presently seized with the factual matrix capable of intervening to break the ongoing administrative deadlock with the Department of Employment and Labour. It is respectfully submitted that immediate judicial intervention by this Court is the sole remedy available to halt the continuous, irreparable financial prejudice and destitution being suffered by the Respondent.

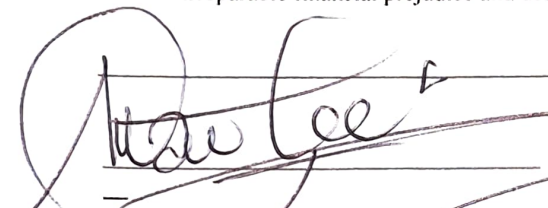
 RESPONDENT SR. WILBUR W. MATTHEE <i>Specialist Registered Nurse (NQF Level 8)</i> <i>Forensic Governance Specialist</i>	 COMMISSIONER OF OATHS PASTOR BENJAMIN J. MASEMOLA Full name: MARRIAGE OFFICER Address: COMMISSIONER OF OATHS Capacity: No. 18 DIGTEBY CRESCENT Cell: VOORBRUG DELFT 7100 Cell: 082 891 0844
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EXHIBIT LIST

EXHIBIT	DESCRIPTION
RESU1	Letter of recommendation – Dr P.M.J. Ohm (Mitchells Plain District Hospital Emergency Unit)
OA1	CCMA opposing affidavit (Xolile Vincent Manyati, Case No. WECT23564-25) – paragraph 6.3 alleging PTSD/depression was "an excuse" and "an afterthought"
GRC1	First Board-level GRC Escalation – filed prior to Manyati opposing affidavit
GRC2	Second Board-level GRC Escalation – filed prior to Manyati opposing affidavit
WW1	Letter from Deneys Attorneys dated 15 April 2026 alleging demand was "unquantified"
WW2	Labour Court Statement of Claim – reservation of right to quantify clause
WW3	Vacancy email chain – January 2024 voluntary disclosure of pending trial

EXHIBIT	DESCRIPTION
WW4	GRC Escalation (16 December 2025) and voluntary retraction / apology (17 December 2025)
WW5	Department of Employment and Labour email – 15 April 2026 (refusal to release benefits)
WW6	Affidavit of Destitution (filed herewith)
GVW4	Itemised quantification of R7,307,642.72 (already filed in founding papers)
GVW5	Correction email of 15 April 2026 at 20h44 withdrawing word "leakage"
VICT1	Root Cause Analysis: Gexus/DMS Integration Gap – APN 303 actuarial impact
EXIT3	Exit documentation / Certificate of Service (erroneous designation)
DEC1	Supporting declaration (already filed in founding papers)

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
A1

Date: 9 April 2024 (signed 18 April 2024)

Category: *Employment Record*

Description:
Employment Contract — Respondent designated "Care Coordinator" (IRC78739), signed by GM Barbara Johnson.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS
 Proves title imposed without consultation. Contradicts Applicant's use of "Case Manager" in founding papers. Fatal contradiction with Certificate of Service.

[Document follows immediately after this tab]

09 April 2024

W Matthee
C/O AFROCENTRIC HEALTH (RF) (Pty) Ltd

Dear Wilbur,

INTERNAL APPOINTMENT: Care Coordinator

We are pleased to offer you the position Care Coordinator (Reference IRC78739) within AfroCentric Health (RF) (Pty) Ltd with effect from 01 May 2024. This position is situated at Cape Town.

The Key elements of your duties and responsibilities will be as discussed with you and may be revised from time to time thereafter.

CONDITIONS OF EMPLOYMENT

1. PROBATION

You will be required to successfully complete a probationary period of **six (6)** continuous months in this new position. In terms of the Group Talent Acquisition Policy, you will not be permitted to apply for any vacant position internally during this probation period.

2. REMUNERATION

We are pleased to advise you that your total package on a cost to company basis will be **R490,032.00 per annum**, payable by bank transfer into your Bank account.

The above cost to company figure includes all your contributions towards Medical Aid, Pension Fund, Group Life Assurance and Disability Assurance. If you are required to use your cell phone for business purposes, this will be deemed to be part of your cost to company package.

The Grade for your position based on our Grading Model is that of **B4M1**.

3. RETIREMENT FUNDING INCOME

www.afrocentric.za.com



AfroCentric Investment Corporation Limited Reg #1988/000570/06
T +27 11 671 2000
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709



DIRECTORS:

Dr ATM Mokgokong (Chairman), MJ Madungandaba (Deputy Chairman), GN Van Wyk (CEO), JW Boonzaaier (CFO), M Chauke, MK Dippenaar, JB Fernandes, PB Hanratty, AM le Roux, KN Mkhize, Dr ND Munisi

Group Company Secretary: LSM Mpumlwana



A percentage between **78** and **90** (78 / 80 / 85 / 90) of your total cost to company figure, as selected by yourself, will constitute your "**Retirement Funding Income**". All contributions, both employer and employee, to the Pension / Provident Fund, Group Risk Benefits such as Life and Disability Schemes will be based on this figure.

4. LEAVE ENTITLEMENT

Your annual leave entitlement will be **seventeen (17)** working days per annum.

5. HOURS OF WORK

You will be required to work **forty-five (45) hours per week**. Your working hours are flexible and will be scheduled by the Business Unit and may include a Saturday which is deemed part of your normal working week. You will be entitled to a thirty (30) minute lunch break as scheduled. Any work performed on a Saturday will be paid at normal rates. Your working hours will be determined by the requirements of the Business Unit to which you are assigned to from time to time and may be amended to suit the operational requirements of the Business Unit.

It is a condition of employment that, as and when the need arises, you will be required to work overtime. Payment, or time off in lieu of overtime worked, hours more than forty-five (45) working hours per week, will be made in accordance with the Human Capital Payroll and Benefits Management Policy.

6. OTHER CONDITIONS OF EMPLOYMENT

All other conditions of employment not specifically mentioned in this letter remain unchanged.

7. PACKAGE RESTRUCTURING

Please feel free to have a package structuring calculation/discussion with your Line Manager or the HC Business Partner responsible for your Business Unit before accepting this offer of employment. Package restructuring takes place during June/July.

Candidate Initial _____ GM Initial BQ

8. OFFER ACCEPTANCE

Kindly sign and return the copy of this letter to your HC Business Partner. Also note that this offer is valid for three (3) days from receipt.

Please initial every page and sign in full on the last page of this document before returning to your HC Business Partner.

We would like to take this opportunity to wish you well in your new position.

Yours sincerely,



Barbara Johnson
General Manager: GEMS Operations.5
AfroCentric Health (RF) (Pty) Ltd

18 April 2024

Date Signed

Candidate Initial _____ GM Initial 

I ACCEPT OFFER extended to me for the position of Care Coordinator within AfroCentric Health (RF) (Pty) Ltd at Roodepoort. I will take up the position on 01 May 2024.

I hereby acknowledge that I have read the contents of this document and fully understand and agree to abide by the provisions thereof. I also acknowledge that the contents of this document are confidential, and I will not disclose the contents to any party within the working environment.

I acknowledge that I have not been induced to complete this contract by any representations made to me by any person/s and hereby confirm that I have entered into this contract of my own free will.

By accepting this offer of appointment, I undertake to keep abreast with updates pertaining to all company policies and procedures regularly and adhere to them.

W Matthee

DATE SIGNED

Candidate Initial _____ GM Initial BG

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW3

Date: 29 January 2024

Category: *Recruitment Email Chain*

Description:

Vacancy email chain: Neo Sekgoka (Human Capital Intern) communicates "Specialist Care Manager" assessment. Respondent's email of 29 Jan 2024 at 14:14 voluntarily discloses pending blood-alcohol trial and provides updated CV.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes radical transparency during recruitment. Proves Respondent was not induced by misrepresentation. Counters any attempt to use the pending trial to impugn character.

[Document follows immediately after this tab]



Vacancy - Specialist Care Manager

6 messages

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Mon, 29 Jan 2024 at 08:36

Good day

Thank you for showing interest in the abovementioned position. As a part of our hiring process, we send out assessments related to the position to test your skills.

You will find an attachment to this mail covering all the instructions related to the assessment. You will also find the link to the assessment in the attachment. In order to complete the assessment successfully, you will need to go through the instructions carefully.

The due date of the assessment is **30 January 2024** @ 12am/Midday.

Don't forget to send pivotal assessment document.

Wishing you all the best!



Neo Sekgoka

Human Capital Intern

- +27 (011) 671 4819
- neo.sekgoka@afrocentrichealth.com



Please consider the environment before printing this email

Always aligning our leaders & people with the business purpose.

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6 attachments

 **image001.png**
1 KB

 **image002.png**
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 **image003.png**
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 **image004.png**
1 KB

 **image005.png**
29 KB

 **PT Assessment Instructions_ Medscheme (002) (Case manager etc.).docx**
15 KB

Wilbur William Matthee <wilburmat@gmail.com> Mon, 29 Jan 2024 at 09:33
To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Thank you, will do.
[Quoted text hidden]

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com> Mon, 29 Jan 2024 at 11:06
To: Wilbur William Matthee <wilburmat@gmail.com>

May you kindly send me everything I have requested for before the end of business dau
[Quoted text hidden]
[Quoted text hidden]

Wilbur William Matthee <wilburmat@gmail.com> Mon, 29 Jan 2024 at 12:02
To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Thank you, will do.
[Quoted text hidden]

Wilbur William Matthee <wilburmat@gmail.com> Mon, 29 Jan 2024 at 14:14
To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Hello Neo

I hope you are well. I have just completed the online assessment as requested. I will submit the other required documents now.

My MIT fingerprint test was done in December 2023, i have the report and will send that to you on request. I have to update my CV with regards to the statement I made "criminal record" clear, in the report it states that i have a pending trial for pending blood results for the level of alcohol in my system. I do not want this statement to determine the success of my application so I have provided you with the updated CV.

thank you so much for your assistance with this.

Regards,
Sr. W. Matthee
[Quoted text hidden]

 **WillCvJan update.pdf**
752 KB

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com> Mon, 29 Jan 2024 at 14:20
To: Wilbur William Matthee <wilburmat@gmail.com>

May you kindly fill in the consent form as we do our own fingerprint checks. We do not allow any fingerprint checks that were done by the candidate themselves unless otherwise specific.

[Quoted text hidden]
[Quoted text hidden]

ANNEXURE

IMP1

Date: 2 November 2025

Category: *Impact Statement*

Description:
Impact Statement submitted by Respondent to HR Business Partner — documents chronic stress, erosion of self-confidence, isolation, and professional stagnation caused by the hostile work environment created by Mary-Ann Jones; cites specific incidents including no-win directives, out-of-hours demands, and denial of written record.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS
Establishes subjective element of constructive dismissal. Contemporaneous record of deteriorating employment conditions predating resignation.

[Document follows immediately after this tab]

Wilbur Matthee

From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: Sunday, 02 November 2025 23:10
To: Wilbur Matthee

This message originated from outside your organization

Impact Statement

To: Human Resources Department
 From: Wilbur Matthee
 Date: 02 November 2025
 Subject: Impact Statement Regarding Hostile Work Environment Created by Mary-Ann Jones

Dear HR Business Partner,

I am providing this statement to outline the profound professional and personal impact that the sustained hostile work environment, created by my manager, Mary-Ann Jones, has had on me. The attached transcript from 31 October 2025 provides concrete evidence of the behaviors that have led to this deterioration.

1. Impact on My Mental and Emotional Well-being:

The constant state of anxiety and hyper-vigilance required to navigate interactions with Mary-Ann Jones has been exhausting and debilitating. I am consistently placed in "no-win" situations where any action I take—whether showing initiative or seeking clarity—is framed as a failure or an act of insubordination. This has led to:

- Chronic Stress and Anxiety: I feel a constant sense of dread about work, fearing the next unexpected directive or accusation. The out-of-hours phone call demanding my return to the office is a prime example of this, causing immediate shock and distress.
- Erosion of Self-Confidence: Being repeatedly told that my professional actions are wrong, and having my reality denied (such as being told I did not send a follow-up email when I have proof that I did), has systematically undermined my confidence in my own judgment and abilities.
- Feeling of Isolation: The accusation that seeking clarity from my teammates is "undermining" or "creating noise" has made me feel isolated and unable to communicate freely with my colleagues, which is essential for a collaborative team environment.

2. Impact on My Professional Performance and Stagnation:

The environment fostered by [Mary-Ann Jones] is one that actively discourages growth, questions, and initiative. This has directly impacted my ability to perform and develop in my role:

- Fear of Initiative: I am now hesitant to act independently or make decisions for fear they will be weaponized against me, as was the case with the CMBR referral.
- Inability to Seek Clarification: I feel I cannot ask necessary questions to understand my tasks or company policy, as this is labeled as "reacting" instead of "responding." This creates a high-risk environment where I am set up to fail.
- Preoccupation with Conflict: An inordinate amount of my mental energy is spent documenting interactions, anticipating problems, and defending my actions, rather than focusing on my core duties and adding value to the company.

3. The Overall Toll:

The cumulative effect of these experiences has made my work environment intolerable. The repeated suggestions from Mary-Ann Jones that I should ask to be removed from her team confirm my feeling that I am not wanted and that there is no path forward for me under her leadership. This is not a simple personality clash; it is a sustained campaign that has negatively impacted my health and my career.

I came to Afrocentric Health eager to contribute and grow. My intention has always been to be a dedicated and valuable employee. The current situation under Mary-Ann Jones has made that impossible.

I trust that you will treat this matter with the urgency and seriousness it deserves.

Sincerely,



FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL

4 messages

Wilbur William Matthee <wilburmat@gmail.com> Fri, 12 Dec 2025 at 03:29
To: lebohang.mpumlwana@afrocentrichealth.com
Cc: ferfam.bruno@gmail.com, alice@aliceleroux.co.za, Gretchen.veldman@afrocentrichealth.com, gerald.vanwyk@afrocentrichealth.com, munisinf@global.co.za
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

TO:

The Board of Directors (via Company Secretary)

AFROCENTRIC HEALTH (RF) (PTY) LTD

37 Conrad Road, Florida North, 1709

CC:

Mr./Ms. Gerald Van Wyk (Chief Executive Officer)

Chair of the Audit & Risk Committee

Chair of the Social & Ethics Committee

Group Human Resources Department

DATE: 11 December 2025

Dear Board of Directors,

I, Wilbur Matthee, hereby give notice of the immediate termination of my contract of employment with Medscheme Holdings, effective 12 December 2025.

This resignation is not voluntary. I am terminating my employment because the employer, Medscheme Holdings (A Division of AfroCentric Health), has rendered the continuation of the employment relationship irretrievably intolerable through its malicious, calculated, and institutional conduct.

This termination constitutes an Automatically Unfair Constructive Dismissal in terms of the Labour Relations Act (LRA).

1. Grounds for Intolerability: Institutional Malice and Victimisation

The conditions rendering my continued employment intolerable are proven by the employer's formal legal submission in the matter of Wilbur Matthee and Medscheme Holdings (CCMA Case Ref. Number: WECT23364-25), specifically the Respondent's Answering Affidavit signed under oath on 10 December 2025.

The Affidavit contains specific statements that constitute severe and ongoing occupational detriment, victimisation, and unfair labour practice, including:

Malicious Character Attacks: The Affidavit labels me as having an "untruthful character," engaging in a "fishing expedition," and acting with "sloppiness and lack of regard" for the Commission. This ad hominem attack, under oath, fundamentally destroys the trust and confidence necessary for any employment relationship.

Institutionalised Victimisation: The Affidavit explicitly dismisses my claims of victimisation and mental health issues as having "no relevance" and being used to "sensationalize" the dispute (Sections 6.3 and 8.5). This demonstrates that the victimisation is ongoing, officially sanctioned, and institutionalised through the Respondent's legal representation.

2. Legal Basis: Automatically Unfair Constructive Dismissal

The employer's conduct, as documented in the sworn Affidavit, makes this termination an Automatically Unfair Constructive Dismissal in terms of the following sections of the Labour Relations Act (LRA):

Section 186(1)(e): The employee terminated the contract of employment because the employer made continued employment intolerable.

Section 187(1)(h): The reason for the employer's conduct is directly linked to an act of retaliation against a Protected Disclosure (the P1 Material Risk Report and subsequent updates regarding discrimination and victimisation).

3. Conclusion and Formal Notice

The content of the Respondent's Opposing Affidavit eliminates any conceivable possibility of restoring the employment relationship. I consider myself to have been dismissed by the employer's malicious conduct.

I have already formally informed the Board of the governance failure related to this P1 risk and the ongoing victimisation. All further matters relating to this dispute, including the claim for maximum compensation and a demand for punitive costs (Attorney-and-Client scale), will be handled at the CCMA/Labour Court, and via my External Whistleblower disclosures to the JSE, FSCA, CMS, DEPARTMENT OF EMPLOYMENT & LABOUR - INSPECTION & ENFORCEMENT + B-BBEE, . Pending complete governance failure.

Yours sincerely,

Wilbur Matthee

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: wilburmat@gmail.com

Fri, 12 Dec 2025 at 03:30



Address not found

Your message wasn't delivered to
Gretchen.veldman@afrocentrichealth.com
because the address couldn't be found, or is
unable to receive mail.

ANNEXURE
EXEC1

Date: 4 December 2025

Category: *Internal Escalation Email*

Description:

Executive Leadership Escalation email from Respondent's Medscheme email account — documents: (1) unlawful salary deduction >40% during mental health admission; (2) continuous retaliation and victimisation; (3) 20% reduction in performance metrics; (4) 30+ days institutional silence. Requests paid recuperation leave, financial settlement independently assessed by Risk & Compliance, and institutional commitments.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Final good-faith internal attempt prior to CCMA referral. Satisfies requirement to exhaust internal remedies. Directly contradicts any suggestion of bad faith or vexatious conduct.

[Document follows immediately after this tab]



Urgent intervention required

1 message

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Thu, 04 Dec 2025 at 12:21

To: Wilbur William Matthee <wilburmat@gmail.com>

Dear Executive Leadership,

This correspondence serves as my final and good-faith attempt to resolve, internally and without escalation, the severe and ongoing harm I have been subjected to as a direct result of the company's repeated institutional failures.

Over the past months, I have experienced serious and documented misconduct, including:

1. Unlawful salary deductions exceeding 40% of my monthly income without my consent or consultation. This during a motivated mental health admission, awaiting a bed informed by the HRBP that the deduction was taken on the principle of no work no pay which did not require consultation.
2. Continuous intimidation, retaliation, and victimisation by my direct manager despite a lodged grievance. After a formal request to be temporary removal from her team. No action.
3. Awaiting feedback from manager as discrepancies found in up to 20% reduction in some cases of my monthly actual performance metrics that led to poor outcomes even missed opportunities in performance bonuses.
4. Prolonged silence and inaction from HR and senior leadership and union despite formal complaints. Currently +30days to date no response.

These actions have caused significant financial strain, forced me into a cycle of unexpected debt which i am struggling to manage, and resulted in severe psychological distress. My capacity to work in an environment that continues to permit such conduct has reached its limit.

Given the seriousness of these failures, I am formally requesting the restorative measures:

1. Paid Recuperation Leave & Guaranteed Reintegration

A period of fully paid special leave, allowing adequate time for psychological recovery.

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Upon return, a permanent and immediate transfer to a new department.

2. Financial Settlement Determined by Risk & Compliance

I request a comprehensive financial settlement, independently assessed by the Head of Risk & Compliance, covering:

Financial losses caused by the unlawful deduction.

Debt incurred as a direct result of these actions.

Compensation for emotional distress, harassment, and institutional negligence.

The company's full legal exposure for:

Unfair labour practice

Discrimination

Failure to provide a safe working environment

Reputational and operational risks should the matter escalate externally.

3. Institutional Commitments

A written, irrevocable guarantee of no retaliation, present or future.

Next Steps

I am willing to meet with this leadership group and a neutral mediator within 14 days from date 04 December 2025.

If a signed agreement in principle is not provided by 14 working days, I will immediately proceed with the following simultaneous actions: As I feel I have exhausted all avenues this far to have the incidents resolved and this is my final resort.

1. File cases with the CCMA for unfair labour practices, and discrimination.

2. Lodge a formal complaint with the Department of Employment and Labour regarding the unlawful salary deduction.

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3. Submit a complaint to the South African Human Rights Commission.

I am really at my breaking point now no motivation to come to work.

All evidence is already compiled and ready for submission.

I trust that the company will choose a constructive, internal resolution over a protracted and public legal dispute. I await your urgent response.

Kind regards,

Wilbur Matthee

This email is subject to a disclaimer which may be found on our website by clicking on this link:
https://www.medscheme.co.za/EX_Medscheme_VS07/Documents/PDF/Medscheme%20Limited%20Terms%20of%20Use.pdf.

If you would prefer, the disclaimer can be emailed to you by clicking:
mailto:Meds_disclaimer@medscheme.co.za .

ANNEXURE
GRC1

Date: 9 December 2025

Category: *Board GRC Escalation (1st)*

Description:

Formal GRC Escalation to Dr ATM Mokgokong (Chairman, Social & Ethics Committee) with 38 attachments. Includes executive summary table of King IV governance failures (Principles 2, 3, 14, 16). Formal request for independent investigation and Board-mediated resolution. Filed prior to Manyati opposing affidavit.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes Board-level notice of governance failures before OA1 was filed. Demonstrates protected disclosure made in good faith. Grounds King IV / Companies Act governance argument.

[Document follows immediately after this tab]



CONFIDENTIAL – LEGAL PRIVILEGE_URGENT: MATERIAL GOVERNANCE FAILURE – DISCRIMINATION, VICTIMISATION & INSTITUTIONAL SILENCE REQUIRING IMMEDIATE BOARD INTERVENTION

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za
Cc: shadi.chuake@gmail.com, alice@aliceleroux.co.za, ferfam.bruno@gmail.com, lebohang.mpumlwa@afrocentrichealth.com

Tue, 09 Dec 2025 at 09:23

1. INTRODUCTION:

Dear Chairperson,

I write to you in your capacity as Chair of the Social & Ethics Committee regarding a matter of serious corporate governance failure that requires immediate board-level intervention. As an employee of Medscheme, a subsidiary of AfroCentric Health, I have been subjected to nine months of documented discrimination, victimization, and institutional failure to act.

Despite exhausting internal channels—including formal grievances to HR leading to executive level after 30 days of institutional silence—the misconduct continues unabated. With CCMA litigation now imminent (Case number: WECT23564-25), I bring this to your attention as a final attempt to resolve what represents not only severe personal harm but material legal, reputational, and operational risk to the company.

2. EXECUTIVE SUMMARY OF GOVERNANCE FAILURES

The core failures involve:

Governance Failure Specific Incident Date Evidence

Discrimination Public gender identity discrimination (“Wilma” incident) 23 Sept 2025 Att. B

Retaliation one of multiple incidents Doubled unpaid leave after discrimination complaint 25 Sept 2025 Att. C

Procedural failure senior management whitewashing complaint as “typo” after poor investigation 1 Oct 2025 Att. B

Institutional Silence 30+ days no response to second formal grievance from Hr and union Nov-Dec 2025 Att. D

Unlawful Conduct >40%salary deduction without consultation July 2025 Att. E

Duty of Care one of a few Failure Punitive response to medical emergency 20 May 2025 Att. F

3. KING IV PRINCIPLES VIOLATIONS

This matter engages multiple King IV Principles:

Principle 2 (Exercise ethical leadership):

- Senior management's whitewashing of a serious discrimination complaint
- Hr and union's 30-day silence on a formal grievances

Principle 3 (Responsible corporate citizenship):

- Failure to address discrimination against vulnerable employee
- Breach of Employment Equity Act and Labour Relations Act

Principle 14 (Stakeholder relationships):

- Complete breakdown in employee relations
- Failure to address legitimate stakeholder concerns

Principle 16 (Governance of risk):

- Unaddressed legal, reputational, and operational risks
- Failure of internal controls in grievance procedures

4. MATERIAL RISKS TO THE COMPANY

A. Legal & Regulatory Risks:

- Multiple violations of EEA, LRA, BCEA
- Potential fines up to R1.5 million or 10% of turnover (EEA)
- Personal liability for directors under Section 60 of EEA
- Pending CCMA case with high likelihood of success

B. Reputational Risks:

- Public discrimination finding against JSE-listed company
- Possible media exposure of institution failure to protect vulnerable employee
- Impact on B-BBEE certification (discrimination claims negatively score)
- Investor and client confidence erosion

C. Operational Risks:

- Toxic workplace culture evidenced by similar complaints
- Loss of staff
- Productivity impact from ongoing disputes

D. Financial Risks:

- Potential arbitration award: R3 - R4.5 million
- Legal costs: R500,000+
- Management time diversion: 200+ hours

5. EVIDENCE OF INSTITUTIONAL BAD FAITH

1. Whitewashing of Serious Complaint: Senior management declared a clear act of gender identity discrimination as a “typo” following poor investigation (Attachment B).
2. Retaliation Against Complainant one example: Manager doubled unpaid leave immediately after discrimination complaint (Attachment C).
3. Unlawful Financial Deduction: >40% salary cut without consultation during mental health leave (Attachment E).
4. Complete Institutional Silence: 30+ days no response to formal grievances followed escalation (Attachment D).
5. Procedural Obstruction: Refusal to provide meeting agenda, record meetings, or respond in writing to serious allegations resulting in escalation to ethics board member

6. REQUEST FOR BOARD-LEVEL INTERVENTION

Given the complete failure of management and HR structures, I request:

A. Immediate Actions :

1. Appointment of independent investigator to review entire matter
2. Suspension of involved manager pending investigation
3. Temporary removal of HRBP from any involvement in this matter

B. Board-Mediated Resolution Process:

1. Direct board-level mediation possibly before CCMA proceedings
2. Independent valuation of settlement by external experts
3. Governance review of HR and management practices

C. Governance Remediation:

1. Review of whistleblower and grievance procedures
2. Training on discrimination and ethical leadership
3. Cultural assessment of the division involved

7. PROPOSED RESOLUTION PATHWAY

To avoid protracted litigation and further reputational damage, I propose:

1. Board-Mediated Settlement: Direct involvement of Social & Ethics Committee
2. Independent Investigation: Legal firm to assess liability
3. Fair Settlement: Based on actual damages, statutory entitlements, and aggravated damages for institutional bad faith and financial ruin
4. Governance Reform: Commitment to systemic changes

8. ATTACHED EVIDENCE

Attachment B: Discrimination Evidence – “Wilma” incident & HR whitewash

Attachment C: Retaliation Evidence – Doubled unpaid leave after complaint

Attachment D: Institutional Silence – 30-day grievance black hole

Attachment E: Unlawful Deduction - >40% salary cut without consultation

Attachment F: Medical Evidence – Work-related health impact

Attachment G: CCMA Referral Documents

9. URGENCY AND NEXT STEPS

Awaiting CCMA in-lamine/conciliation date. Without board intervention, this will proceed to public arbitration with guaranteed reputational damage.

I request an urgent meeting with the Social & Ethics Committee or its designated representatives by Friday 12:00 12 December 2025.

All communications should be directed to me via email [wilburmat@gmail.com] I will forward copies to my trusted advisor.

10. CONCLUSION

This is not merely an employment dispute but a significant governance failure involving discrimination, failure to act, systemic procedural abuse, and the devastating financial ruin of a protected employee. The board’s intervention is required to:

1. Uphold the company’s ethical commitments
2. Mitigate material risks
3. Demonstrate responsible leadership
4. Avoid certain reputational and financial damage

I remain available for immediate engagement.

Sincerely,

Wilbur William Matthee

Specialist nurse Health services management.

Medscheme(A division of AfroCentric Health).

wilburmat@gmail.com

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE

OA1

Date: 10 December 2025**Category:** *CCMA Opposing Affidavit***Description:**

Notice of Opposition and Answering Affidavit of Xolile Vincent Manyati, Senior Employee Relations Specialist (CCMA Case No. WECT23564-25, Medscheme Holdings v Wilbur Matthee). Paragraph 6.3: PTSD and depression characterised as "an excuse" and "an afterthought". Respondent misstated as "care coordinator". Punitive costs sought.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Primary evidence of Applicant's bad faith. Non-medical deponent attacks uncontested psychiatric diagnosis under oath. Respondent's designation misstated in a sworn document. Directly contradicts Applicant's position in this application that it acts in good faith.

[Document follows immediately after this tab]

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE**Applicant**

And

MEDSCHEME HOLDINGS**Respondent**

NOTICE OF OPPOSITION OF CONDONATION APPLICATION

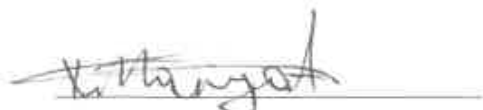
Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address: IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.


XOLILE VINCENT MANYATI

Respondent representative

To: Wilbur Matthee
Per email: wilburmat@gmail.com

And to: Case Management Officer
CCMA
Per email: CMS@CCMA.org.za

**IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION
HELD AT CAPE TOWN**

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE

APPLICANT

And

MEDSCHEME HOLDINGS

RESPONDENT

RESPONDENT'S ANSWERING AFFIDAVIT

I the undersigned **Mr. Xolile Vincent Manyathi** do hereby make an oath and say:

1. I am an adult male and the respondent in this matter. I am duly authorized to make this affidavit as a Senior Employee Relations Specialist employed by Afrocentric Health (Pty) Ltd, the holding company.
2. I am duly authorized to depose of this affidavit. The facts contained herein are both true and correct and fall within my personal knowledge, unless otherwise indicated or the contrary appears from the facts.
3. The applicant in this matter is **Mr. Wilbur Matthee**, who is employed as a care coordinator at Gems business unit under Medscheme Holdings.

4. LEGAL FRAMEWORK:

- 4.1 In terms of the Labour Relations Act 66 of 1995, as amended, if there is a dispute about unfair labour practice, the employee may refer the dispute in writing, however the referral must be made within **90 days** of the date of the act or omission which allegedly constitutes the unfair labour practice. If the employee shows good cause at any time, the council or the commission may permit the employee to refer the dispute after the 90-day time limit has expired.

4.2 Section 191 (2) stipulates that if the applicant shows good cause at any time, the council or CCMA may permit the applicant to refer the dispute after the 90-day time limit has expired. In the case of **Shoprite Checkers (Pty) Ltd CCMA & Others (1998) 19 ILJ 892 (LC) p 21-22, (1998) 5 BLLR 510 (LC)** the honourable judge summarised the law in this regard as follows: "Section 191(2) enjoins an applicant to show good cause before a commission may permit her to refer the dispute after the time limit has expired. The section makes it clear that condonation is not there merely for the asking. The applicant must tender an adequate explanation for the delay. The Commissioner must also consider this explanation. Due regard must be had to the other generally accepted requirements for the grant of condonation as contemplated in the words good cause...."

4.3 From the above, it is clear that before the commissioner can grant condonation, the applicant must furnish **justifiable reasons** for the late request. The fundamental question is, therefore, whether the applicant has good grounds for not referring the dispute in time and does his explanation satisfy the factors as mentioned below.

4.4 To that end, in the case of **Dlamini v Progress Housekeeping CC (2001) 22 ILJ 1024 (CCMA) 1028** the commissioner indicated that in determining whether to grant condonation or not the following factors needs to be taken into account: the **degree of lateness**, the **degree of fault**, the **reasonableness of the explanation**, the **prejudice to the parties**, the **prospect of success in the main dispute**. The aforementioned factors were re-iterated in the case of **Job L. Boshop v Mac Donalds Transport NC5139 7 July 2000 CCMA**.

5. **BACKGROUND:**

5.1 The Applicant is employed as the care coordinator in Medscheme and is based at the employer's offices in Cape Town.

5.2 On the or about **July 2025** the Applicant was absent due to health reasons, the employees leave days got exhausted due to this prolonged absence and because of previous intermittent sick leaves taken. All the employees' leave days were exhausted, including sick leave and annual leave were exhausted at the time.

5.3 The Respondent's process is that before it can apply a no work no pay principle, it firstly exhausts the employees annual leave in leu of sick leave when sick leave is finished, it also assists employees with special leave which in this case it also did in order to accommodate the employee. This is the case in this matter where the respondent firstly used annual leave of the

employee in lieu of sick leave absence. The employee was not paid as he was not at work and had no leave days, however this was not a deduction, but an employee did not render any services and therefore was not paid rightfully so.

6. DEGREE OF LATENESS:

6.1 Disputes of Unfair labour practice must be referred to CCMA within 90 days of the date of the act or omission.

6.2 It is interesting to note that the Applicant deliberately leaves out the information of how late his referral is. This is consistent with his untruthful character, he is aware how long is his matter out of the prescribed time frames of the CCMA, yet he does not state that information. The Applicant's referral is more than 40 days late; I submit that this is excessive, especially for someone who had all the time in the world to refer the matter to the CCMA.

6.3 According to the Applicant he got to be aware of what he needed to do in November or December due to mental issues, but the employee has been working all along since August without any mental issues, but the applicant failed to explain how he got to know of his oversight 40 days later. The employee was addressed by his management team and HR on the issue of unpaid leave. It is also difficult to accept the argument of mental issues from the applicant, as he raised the issue of the alleged victimization in August or September, maybe that was also an oversight. So, when the matter of victimisation was dealt with in August or September why did the employee not refer the matter of unfair deduction then, as clearly there were no mental problems then. The mental issues are an excuse and this whole referral is an afterthought matter. The applicant's failure to take accountability of his lateness and lack of proper pleadings about the degree of lateness on his part, shows his lack of regard for the commission, its processes, and resources.

6.4 The rationale for referring the matter within the required time frames is *inter alia*, to avoid potential prejudice that the Applicant may suffer at the hands of the Respondent. In this case it cannot be argued that the delay was occasioned by the Respondent but by the sloppiness and lack of regard of the most reasonable periods placed by the legislature.

7 REASON FOR LATENESS:

7.1 It is the employer's contention that the Applicant has not provided a compelling explanation for the lateness of his referral to the CCMA. It is interesting to note that the Applicant in his referral claims that he only became aware of what he needed to do in November 2025 but that is not

true as the employee raised another matter with Cheryl-Dawn who is a HR business partner in August/September. Applicant still does not explain how he became aware of his rights in this matter or the lack thereof, this is difficult to accept as the truth as the applicant is the member of the union and if he needed advice he would have gotten it from union representative. It is further interesting that the employee chose not to include this information in his referral affidavit to the CCMA but just makes references that he was ignored by the company.

7.2 The Respondent made the Applicant aware of the reasons why he was not fully paid on the **23rd of July 2025**, when the applicant enquired about the shortfall on his salary, however the applicant only referred the matter to CCMA on the **5th of December 2025** which was more than 40 days late and more than 120 days later from the date of the act or omission.

7.3 The reasons advanced by the Applicant are not truthful, and for that reason alone the CCMA must not entertain this application. In the matter between **Molla v Shal & NO others (2007) 28 ILJ 1028 (LAC)**: Zondo JP as he then was with McCall AJA and Kruger AJA. Concurring held: [34] "I do not have the slightest hesitation in concluding that this is a case where the period of delay is excessive and the appellant's purported explanation for the delay is no explanation at all. If ever there was a case in which one can conclude that good cause has not been shown for condonation without considering the prospects of success, then this is the one. Where in an application for condonation, the delay is excessive and no explanation has been given for that delay or an "explanation" has been given but such explanation amounts to no explanation at all, I do not think it is necessary to consider the prospects of success."

7.4 The Applicant has failed to proffer plausible reasons for the delay. On this ground alone the application should be dismissed, and this abuse of the CCMA services should be condemned with the contempt that it deserves.

8 PROSPECTS OF SUCCESS:

8.1 I submit the Applicant has no prospects of success to the main case. The Respondent acted in line with the law and its own policy that when an employee is sick it will utilize sick leave, once sick leave is exhausted, and employee continues to be absent it will utilize annual leave in lieu of sick leave and once all leaves are exhausted it will then apply unpaid leave. There is nothing illegal about that and the lack of explanation from the applicant as to how the respondent acted unlawfully shows clearly that the employee does not know what he is referring to. The contractual obligation between the respondent and the applicant is that the employer will pay an employee after the employee has rendered his services and not merely for being an employee. It is very clear on what the Applicant did, that to breach the rule as he did, the

consequences thereof of are a dismissal. There is no evidence nor reasons that the applicant will provide to show that he was supposed to be paid a full salary for the month of **July**.

- 8.2 The Applicant's submission lacks explanation on the prospect of success, and a mere claim of unfair labour practice cannot be seen as a prospect of success, and the matter has been wrongly referred as well.
- 8.3 The applicant did not even follow an internal process of formally logging a grievance regarding the alleged unlawful deduction after it was addressed in August but decided to only communicate about it in November which is after the prescription period and then on the 4th of December wrote to the company executive members just before he referred the matter to the CCMA. The respondent submits that this is just a ploy by an applicant to force the company to pay him salary that he is not legally entitled to.
- 8.4 The respondent submits that it did everything to help the employee with his absence to an extent that there was special leave approved for him at the time because the respondent was acting as a responsible employer. The issue of unpaid leave was addressed by his management team (Mapule Mashele) who is the senior manager and HR team that supports the Gems business unit. The respondent will argue that the applicant was addressed on the issue of unpaid leave several times.
- 8.5 The respondent submits that the applicant has really no prospects of success as his reasons given around victimization and intimidation have no relevance but are used to sensationalize his dispute and have nothing to do with main dispute. It further makes it difficult even to understand as to what the real dispute of the applicant is.
- 8.6 The applicant has failed to discharge compelling reasons that are convincing that he has prospects of success other than mere accusations of victimization and intimidation. Therefore, the responded submits that the condonation application of the applicant should be dismissed as there are no prospects of success should the matter go to the main case. The applicant has not even demonstrated that he has a reasonable chance of succeeding nor has he provided facts and evidence to support his claims.

9 PREJUDICE:

- 9.1 Having regard to submissions made above it is my view that the Respondent will suffer severe prejudice should the application be granted because the Respondent will be required to use resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute, considering that the delay has been caused by the applicant in this instance. Respondents will also have to take management and HR out of the office to bring them to the CCMA as witnesses for something that the applicant is aware of why he was not paid and that management assisted him to not be further negatively affected by his absence through approving special leave for him.
- 9.2 It would be unfair to now hold the Respondent to ransom given that the Applicant has erred in this regard.
- 9.3 It will be prejudicial for the respondent to be expected to go through the main case without any good cause shown by the applicant in terms of the prospects of success in the main.

In conclusion:

The Applicant's affidavit is riddled with untruthful submissions, meaning he has not been truthful or forthcoming and expects the CCMA to grant him condonation even though his application is just a mere ask without factual basis. This is just a fishing expedition and abuse of the system. It is therefore my considered view that this application should be dismissed with cost.

The applicant will not succeed in the main case if the reasons is just a claim of unlawful deduction and victimisation.

It is further submitted that the Applicant does not have prospects of success in the main application as it the Respondent's view that there is no unfair labour practice that the applicant has been subjected to.

It is further submitted by the respondent that whether there is good cause shown on the lateness but that cannot be the only determining factor in granting of condonation, but the applicant should satisfy all the elements which I believe he has not given sufficient evidence or explanation in terms of prospects of success and prejudice.

It is clear that the applicant will not succeed in the main if the reasons is just a claim of unlawful deduction or invalid no work no pay claim.

~~Notary~~

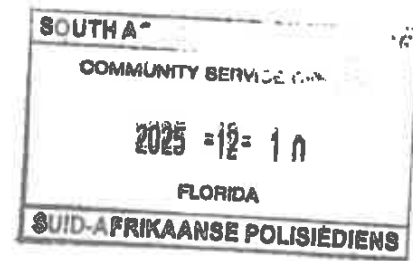
Deponent

I certify that on this 10 day of December 2025, the deponent signed the declaration in my presence and declared that:

- a) I know and understand the contents hereof;
- b) I have no objection to taking this oath;
- c) I consider this oath to be binding on my conscience and uttered the words: "I swear that the contents of the declaration are true, so help me God."

Notary
Commissioner of Oaths

CS
7268154-3
Notary J.B.



ANNEXURE GRC2

Date: 11 December 2025

Category: *Board GRC Escalation (2nd)*

Description:

Second Board-Level GRC Escalation: "Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk". Attaches OA1 as Annexure A. Identifies five categories of institutional bad faith: (1) dismissal of psychiatric condition; (2) misrepresentation of title; (3) character attacks; (4) punitive cost demand; (5) trivialisation of financial destitution. Requests Board acknowledgment by 12 December 2025 at 12:00.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Proves Board was placed on notice of OA1's bad faith within 24 hours of its filing. Establishes deliberate institutional silence at Board level. Grounds res judicata argument in counter-application.

[Document follows immediately after this tab]



URGENT UPDATE: Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Thu, 11 Dec 2025 at 03:33

Dear Chairs and Company Secretary,

I write to provide an urgent update directly relevant to the material governance risks I reported to your committees.

As you are aware, after exhausting all internal channels—including executive leadership who de-escalated the matter back to the source of the harm (narrative at the executive level has been procedurally closed)—I was forced to file a dispute with the CCMA and notify your committees of the systemic failures.

On 10 December 2025, the company's legal representative, Mr. Xollie Vincent Manyati, filed an Opposing Affidavit with the CCMA seeking to have my case dismissed on technical grounds (case WEC123564-25). A copy is attached for your immediate attention.

This document is not merely a legal filing; it is a tangible exhibit of the very institutional bad faith and procedural abuse I have been reporting. It demonstrates that the company's response to a serious discrimination and victimisation case is to:

1. Ignore the Substance Entirely: The affidavit makes no attempt to address the core allegations of discrimination ("Wilma" incident), victimisation, or the breach of duty of care. It focuses solely on a technical argument about timing, confirming the company's strategy is to avoid scrutiny of its conduct.
2. Engage in Factual Misrepresentation: It dismissively misstates my professional title, indicating a lack of diligence or a deliberate attempt to diminish my standing.
3. Attack the Complainant's Character: It contains unfounded personal attacks, labelling me as having an "untruthful character," which is a common tactic to intimidate and discredit rather than engage with facts.
4. Demonstrate a Punitive Posture: It shockingly requests that the CCMA dismiss my application "with cost," an extraordinary demand intended to punish an employee who is already in documented financial distress due to the company's actions.
5. Trivialise Severe Harm: It argues the company would suffer "severe prejudice" from the cost of travelling from Johannesburg to Cape Town for a hearing, while I am facing destitution and a health crisis. This juxtaposition reveals a profound failure of ethical perspective and duty of care.

Governance Implications:

This legal response is a direct outcome of the executive failure to intervene meaningfully. It signifies that the corporate apparatus is now being used to legally oppose an employee in crisis rather than to investigate and remediate the serious underlying issues. I have prepared a comprehensive point-by-point rebuttal to this affidavit for submission to the CCMA, which details the factual inaccuracies, continuous nature of the harm, and the bad faith inherent in the Respondent's opposition. 81

- Materially increases legal and reputational risk by creating a public record of aggressive opposition to a discrimination complainant.
- Validates the allegation of a cover-up and institutional bad faith.
- Directly engages the mandate of the Social & Ethics Committee (monitoring the company's activities regarding the EEA and ethical conduct) and the Risk Committee (overseeing material legal and reputational risk).

My urgent plea for interim relief to prevent destitution stands. This affidavit only heightens the immediacy of the required intervention.

I therefore reiterate my request for the Board's committees to:

1. Acknowledge receipt of this escalating evidence.
1. Intervene to ensure an independent, external investigation into the entire matter.
2. Mandate the provision of interim relief (paid leave, hardship payment) to prevent irreversible personal harm.
3. Review the strategy being employed by the company's legal and HR representatives in this matter.

The choice is now stark: the Board can oversee a fair, external process to resolve a serious internal failure, or it can allow the company's resources to be used to litigate against an employee it has harmed, guaranteeing greater public exposure and liability.

I remain available for any direct communication from the Board or its designated independent representative.

Please note: To prevent another procedural deadlock like the 30-day institutional silence I experienced previously, I require, at minimum, a formal acknowledgment of receipt of this update by Friday, 12 December 2025, at 12:00 sharp.

Sincerely,

Wilbur Matthee

Attached: Respondent's Opposing Affidavit (10 Dec 2025)



00206B9D9F42251210140327.pdf

251 KB

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE

RA1

Date: 11 December 2025

Category: *CCMA Replying Affidavit*

Description:

Respondent's Replying Affidavit to CCMA Condonation Opposition (Case WEC123564-25), signed at Delft. Rebuts Manyati affidavit in full. Establishes continuous harm doctrine (Gauteng Department of Health v Tsomakae [2017]). Documents OA1 as independent post-referral unfair labour practice. Responds to punitive costs demand and prejudice argument. Demonstrates overwhelming prospects of success.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes legal basis for CCMA jurisdiction. Continuous harm doctrine applied. Demonstrates Respondent's consistent principled litigation conduct.

[Document follows immediately after this tab]

**IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION HELD AT
CAPE TOWN**

CASE NO.: **WEC123564-25**

In the matter between:

WILBUR MATTHEE **APPLICANT**

and

MEDSCHEME HOLDINGS (A Division of AfroCentric Health)
RESPONDENT

**APPLICANT'S REPLYING AFFIDAVIT TO THE RESPONDENT'S OPPOSITION TO
CONDONATION**

I, the undersigned, WILBUR WILLIAM MATTHEE, do hereby make oath and state:

1. INTRODUCTION AND AUTHORITY

1.1. I am an adult male, the Applicant in this matter, and a Health Services Management Nurse Specialist (Care Manager) employed by the Respondent at its GEMS business unit in Cape Town.

1.2. The facts herein are within my personal knowledge, true and correct, unless otherwise stated. I have personal and direct knowledge of all events and communications referenced.

1.3. I am opposing the Respondent's application to dismiss my condonation request and will demonstrate that: (a) the harm was continuous, placing my referral within time; and alternatively, (b) compelling good cause exists for condonation.

2. CORRECTION OF FACTUAL INACCURACIES AND UNFOUNDED ATTACKS

2.1. I must correct material errors and reject unfounded attacks in the affidavit of Mr. Manyathi, which undermine its credibility.

2.2. Correction of My Position: I am not a "care coordinator" as dismissively stated, but a Health Services Management Nurse Specialist (Care Manager). This reflects a pattern of the Respondent's inattention to accuracy.

2.3. Rejection of the Irrelevant "Dismissal" Argument: My case concerns unfair labour practices, not dismissal. The Respondent's unsolicited argument that my actions warranted dismissal is highly prejudicial and attempts to improperly influence the Commissioner.

2.4. Rejection of the Inappropriate Prayer for Costs: The demand for costs in a CCMA condonation application is punitive and underscores the Respondent's aggressive posture to intimidate me, given my documented financial distress.

2.5. Rejection of Character Attacks: I categorically reject allegations of an "untruthful character." My submissions are backed by documentary evidence. The Respondent's personal attacks are a strategy to distract from their lack of substantive defence.

SECTION 3: THE RESPONDENT'S AFFIDAVIT AS ESCALATING VICTIMISATION & INSTITUTIONAL MALICE

3.1 Aggravated Attack on Protected Characteristics & Medical Condition

The Applicant is compelled to address the content and tone of the Respondent's Affidavit by Mr. Xollie Vincent Manyathi. This document does not constitute a legal defence but represents a continuation and escalation of the very unfair labour practices at issue, providing compelling grounds for enhanced, punitive damages.

3.1.1 The affidavit deliberately and maliciously dismisses my medically documented psychiatric condition—a direct consequence of the Respondent's own discriminatory and victimising conduct—as a cynical “excuse” and “afterthought”. This is not legal argument; it is a direct attack on a protected characteristic (disability/medical condition) that compounds the initial discrimination.

3.1.2 By weaponising my mental health crisis—caused by their actions—against me in a formal legal proceeding, the Respondent demonstrates institutional contempt for employee wellbeing and a shocking disregard for the duty of care. This transforms a health condition into a tool for further victimisation.

3.2 Financial Intimidation & Weaponisation of Process

3.2.1 The Respondent's aggressive and unwarranted demand for costs in a routine condonation application, made with full knowledge of my documented financial destitution (as detailed in previous communications), serves no legitimate legal purpose.

3.2.2 This demand is a deliberate act of financial intimidation, calculated to exert psychological pressure and deter me from pursuing my rights. It exploits my vulnerable financial position—a position created by the Respondent's own unlawful deductions—to threaten further ruin.

3.3 Bad Faith, Personal Attacks & Abuse of Process

3.3.1 The affidavit is riddled with gratuitous personal attacks, labelling me as “untruthful” and characterising my application as an “abuse of the CCMA services”. These are not legal submissions but ad hominem assaults intended to poison the well and discredit me personally.

3.3.2 This demonstrates the Respondent's utter lack of remorse, systemic bad faith, and commitment to continued hostility. It confirms that the initial misconduct was not an aberration but reflective of an organisational culture that attacks rather than addresses complaints.

3.3.3 The affidavit itself thereby eliminates any conceivable possibility of restoring the employment relationship. It proves the victimisation is not historical but ongoing and institutionalised, perpetrated now through the Respondent's legal representatives.

3.4 This Affidavit as Independent Grounds for Maximum & Punitive Damages

3.4.1 The Respondent's choice to respond to serious discrimination allegations with further aggression in a sworn affidavit constitutes an independent, post-referral unfair labour practice (victimisation). It is a conscious decision to escalate rather than remediate.

3.4.2 This conduct warrants a significant punitive damages premium in any award. It proves the need for a deterrent sanction to signal that using legal process to further victimise complainants is unacceptable.

3.4.3 The Commissioner is urged to consider this affidavit not merely as a defence to condonation, but as powerful evidence of the Respondent's character and the imperative for a maximum compensatory and punitive award.

4. THE TRUE NATURE OF THE DISPUTE: A CONTINUOUS PATTERN OF UNFAIR LABOUR PRACTICES

4.1. This dispute encompasses multiple, interconnected unfair labour practices forming a continuous course of conduct from July 2025 to December 2025:

- a. Unfair Labour Practice – Unlawful Deduction & Failure to Accommodate (July 2025).
- b. Unfair Discrimination & Harassment (the "Wilma" incident, 23 September 2025).
- c. Victimisation & Retaliation (doubled unpaid leave, punitive management).
- d. Institutional Bad Faith & Procedural Failure (30-day silence on grievances, whitewashing of complaints, bad-faith de-escalation).

5. THE UNLAWFUL NATURE OF THE JULY 2025 SALARY DEDUCTION

5.1. The Respondent misrepresents the July 2025 incident as a lawful "no work, no pay" application. In reality, its implementation was procedurally unfair and discriminatory.

5.2. Failure to Consult and Lack of Procedural Fairness: The Respondent deducted over 40% of my salary without any prior consultation, despite my explicit request to stagger the amount to prevent destitution. This refusal to engage constituted a lack of procedural fairness.

5.3. Failure to Provide Reasonable Accommodation: My absence was due to a documented psychiatric condition. The employer has a duty to make reasonable accommodation. My request to stagger the deduction was a minimal adjustment. The refusal, while I was in a vulnerable post-hospitalization state, constitutes discrimination based on my medical condition.

5.4. Derogatory Comments and Victimization: The manager's comment that "The Respondent is not a loan company" followed by I "would not feel the missing chunk... because I receive online deliveries weekly" was derogatory and proves the refusal to accommodate was motivated by malicious intent, converting a deduction into an act of victimisation.

6. THE CONTINUOUS HARM AND INSTITUTIONAL BAD FAITH THAT FOLLOWED

6.1. The July incident established a pattern of unfairness that continued unabated, demonstrating a continuous course of conduct:

- a. September 2025: I experienced public discrimination (the "Wilma" incident) and immediate retaliation (doubled unpaid leave).
- b. October 2025: Senior management whitewashed the discrimination complaint as a "typo," HR and union accept demonstrating institutional bad faith.
- c. November 2025: I filed a formal grievance about the hostile environment. The Respondent met this with 30 days of institutional silence. HR and union.
- d. Early December 2025 – The Escalation and De-escalation:
 - i. On 4 December 2025, after 30 days of silence from HR and the union followed by +20 days silence by senior management, I escalated the entire matter to executive leadership.
 - ii. The executive leadership de-escalated the matter back to the very department and manager accused of causing the harm.
 - iii. Faced with being returned to the source of the problem, I had no reasonable alternative and filed the CCMA referral.
 - iv. The de-escalated department contacted me to schedule a meeting notifying them of the case is now with the CCMA. I stipulated basic safeguards: a clear agenda and a recorded meeting to ensure transparency.
 - v. The department refused these basic terms, creating a procedural deadlock.

vi. I therefore formally notified the department that I could not attend without safeguards and would seek oversight elsewhere.

vii. As the next logical step, and true to my word, I formally notified the Board's Social & Ethics and Risk Committees the following day. This was a good-faith report of a material governance failure.

6.2. This sequence proves my actions were sequential, reasonable, and forced by the Respondent's conduct. The "delay" encompasses the period I was cycled through this broken internal process.

7. PRIMARY LEGAL ARGUMENT: THE HARM WAS CONTINUOUS, RESETTING THE REFERRAL CLOCK

7.1. Legal Principle: Where unfair labour practices constitute a continuing wrong, the 90-day period for referral resets for as long as the conduct persists. The last act in the continuum sets the clock *Gauteng Department of Health v Tsomakae* (GAJB 5554-16) [2017].

7.2. Application: The Respondent's misconduct was a continuous course of conduct that only culminated with the institutional bad faith and refusal to engage transparently in early December 2025. My referral is therefore within 90 days of the last confirming act of the continuing wrong.

8. ALTERNATIVE ARGUMENT: COMPELLING GOOD CAUSE FOR CONDONATION

Should the Commissioner find the continuous harm principle not fully applicable, I demonstrate compelling good cause.

8.1. Reason for Delay – Exhaustion of Remedies: Any delay was due to my good-faith exhaustion of every internal and governance channel, a process systematically thwarted by the Respondent. The CCMA referral was a last resort made promptly once this became clear.

8.2. Prospects of Success are Overwhelming: I possess direct evidence for each allegation (payslips, screenshots, emails, medical certificates). The Respondent's affidavit avoids engaging with this substance.

8.3. Prejudice: The prejudice to me—destitution, health crisis—if denied a hearing is catastrophic. Any administrative inconvenience to the Respondent is negligible.

9. THE RESPONDENT’S CLAIM OF “PREJUDICE” IS WITHOUT MERIT AND DEMONSTRATES ITS BAD FAITH

9.1. The Respondent claims in its affidavit (paragraph 9.1) that it will suffer “severe prejudice” should my application proceed because it would need to use “resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute.”

9.2. This claim is disingenuous and reveals the Respondent’s true disregard for the seriousness of this matter and the imbalance of power:

- a. ****Relative Prejudice is Wholly Mismatched:**** The Respondent, a large JSE-listed corporate entity, complains of the administrative and financial inconvenience of travel. I, an individual employee, am facing ****actual destitution, inability to afford food and medication, and severe health deterioration****. To equate corporate travel logistics with the threat to an individual’s basic survival and health is not only irrational but morally indefensible. Any prejudice to the Respondent is purely financial and administrative; the prejudice to me is existential.
- b. ****The Respondent Created This Dispute Through Its Own Conduct:**** The Respondent’s suggestion that it is being held to ransom is an inversion of reality. The dispute exists ****solely because of the Respondent’s own actions****: its unlawful deduction, its discriminatory conduct, its victimisation, and its systemic failure to address my grievances. Having created the harm, it cannot now claim prejudice when called to account for it.
- c. ****Travel is a Normal Business Cost in a National Company:**** The Respondent, as a national healthcare administrator, operates across the country. Requiring managers to travel for a formal legal proceeding regarding serious misconduct within its ranks

is a normal cost of doing business and upholding the law. Framing this as an undue burden is an admission that it views its own legal and ethical accountability as an optional inconvenience.

D. ****Modern Technology Provides Alternatives:**** Should travel genuinely be a concern, the Respondent could have explored or proposed virtual mediation or arbitration. Its failure to do so and immediate leap to claiming “severe prejudice” underscores its strategy to use cost as a barrier to justice.

- d. ****The Claim Undermines the CCMA’s Authority:**** Implicit in the Respondent’s argument is the suggestion that an employee in one city should be barred from justice if the employer’s head office is in another. This strikes at the heart of the CCMA’s national mandate to provide accessible dispute resolution for all employees, regardless of geography.

9.3. Conclusion on Prejudice: The Respondent’s claim of prejudice is not a valid legal objection but a tactical one, designed to portray me as an inconvenience rather than a wronged employee seeking redress. The overwhelming and documented prejudice lies with me. To deny condonation based on the Respondent’s purported travel costs would be a grave miscarriage of justice, prioritising corporate convenience over an individual’s right to be heard on matters of discrimination, victimisation, and survival.

10. CONCLUSION

10.1. My referral is, on the correct legal analysis, within time due to the continuous nature of the harm. Alternatively, more than sufficient good cause exists.

10.2. To dismiss this application on a technicality would sanction the Respondent’s strategy of institutional bad faith and deny justice.

11. PRAYER FOR RELIEF

I respectfully request that the Honourable Commissioner:

- 11.1. Find that my referral was made within the prescribed time due to the continuous harm.
- 11.2. In the alternative, grant condonation for the late referral.
- 11.3. Dismiss the Respondent's opposition.
- 11.4. Proceed to set the matter down for conciliation/arbitration.
- 11.5. Grant such further relief as deemed just.

SIGNED at DELFT on this 11TH day of December 2025.

WILBUR WILLIAM MATTHEE
APPLICANT

SWORN TO AND SIGNED BEFORE ME AT DELFT ON THIS 11th DAY OF
DECEMBER 2025, THE DEPONENT HAVING ACKNOWLEDGED THAT HE KNOWS AND
UNDERSTANDS THE CONTENTS OF THIS AFFIDAVIT, THAT HE HAS NO OBJECTION TO
TAKING THE PRESCRIBED OATH, AND THAT HE CONSIDERS THE OATH BINDING ON HIS
CONSCIENCE.

COMMISSIONER OF OATHS

FULL NAME: DAVID JOHANNES

BUSINESS ADDRESS:

APPOINTMENT EXPIRES:



11 DEC 2025

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW4

Date: 16–18 December 2025**Category:** *Board GRC Escalation (3rd) / Retraction / Suppression Email***Description:**

Three documents: (1) Maximum Severity GRC3 Escalation 16 Dec 2025 — Formal Memorandum to Board Audit & Risk Committee regarding management interference in GEMS Case 000655789 Dependent 02, suppression of findings, and retaliation (audio recording of Mary-Ann Jones stating refusal "is insubordination"); 24-hour compliance window. (2) Voluntary Retraction email 17 Dec 2025 — sent on public holiday, procedurally invalidating deadline; immediately retracted with apology. (3) Monwabisi Kula (CRO) suppression email 18 Dec 2025 — instructing Respondent to cease emailing directors.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Three separate grounds: (1) Establishes patient-safety protected disclosure re GEMS 000655789. (2) Voluntary retraction proves procedural good faith — vexatious litigants do not retract. (3) Kula email constitutes direct suppression of protected disclosure by the CRO — key evidence of retaliation.

[Document follows immediately after this tab]



MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alice@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Tue, 16 Dec 2025 at 09:35

PART 1: FORMAL MEMORANDUM TO THE BOARD AUDIT & RISK COMMITTEE

1. Purpose of Escalation

This memorandum constitutes a Maximum Severity Governance, Risk, and Compliance (GRC) escalation to the Board Audit & Risk Committee. It follows confirmed management interference in a concluded investigation, suppression of substantiated findings, retaliatory conduct against the investigator, and failure to implement corrective action.

Collectively, these actions have exposed the organisation to material regulatory, labour, ethical, and reputational risk, and are directly causing psychological harm to staff.

2. Key Findings

Member complaint arose from a documented system failure, not member non-adherence.

Ethical refusal to misattribute fault resulted in:

- Loss of access to the investigation
- Blocked corrective action and apology
- Improper closure of the case
- Responsibility shifted to the member despite clear system-level fault

Evidence of Retaliation: Audio recording of MaryAnn Jones explicitly stating the refusal “is insubordination.”

3. Governance, Legal, and Regulatory Exposure

King IV Principles 1, 2, 4, 13 – ethical leadership, accountability, risk governance, compliance

ISO 31000 / ISO 45003 – failure to monitor risk and prevent psychosocial harm

OHSA s8 & LRA ss185–188 – unsafe work environment, unfair labour practice

Protected Disclosures Act (PDA) – retaliation against ethical refusal / whistleblowing

Regulatory Reach: Eight regulators will require explanation for inaction

Explicit Warning: Failure to act will be considered a miscarriage of ethical justice and an approval of director-level psychological harm, with PDA fully covered in the master evidence dossier submission scheduled for 17 December 2025, 10:00. AS MENTIONED 12 December 2025 in constructive dismissal notice email.

4. Immediate Board-Level Actions Required

- 1. Administrative Suspension – Mary-Ann Jones & Lisa Mari pending independent investigation.
- 2. Corrective Member Communication – Immediate apology acknowledging system fault
- 4. Activation of Governance Controls,ethical deviation review protocol, management risk training

5. Conditional Resolution & Master Dossier

Compliance Window: 24 hours for documented proof of required actions

Outcome: This case can be removed from the master evidence dossier to regulators

Failure: Full dossier, covering PDA and psychological harm, will be shared with all eight regulators on 17 December 2025 at 10:00

6. Accountability Notice

Failure to act, suppress findings, or misattribute fault will be regarded as reckless governance, exposing Board and management to personal liability, regulatory escalation, and labour proceedings. Timely, transparent action restores trust, demonstrates accountability, and prevents unnecessary escalation.

Submitted in good faith, fulfilling statutory, professional, and ethical duties.

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

PART 2: ACCOMPANYING EMAIL TO BOARD

Subject: Urgent Maximum Severity GRC Escalation – Immediate Action Required

Dear Chairperson and Board Members,

Attached is a Maximum Severity Governance, Risk, and Compliance memorandum regarding confirmed management interference, suppression of findings, and retaliation against the investigator. This matter exposes the organisation to regulatory, labour, ethical, and reputational risk, and is causing active psychological harm to staff.

The memorandum includes:

Evidence of retaliation and ethical misconduct

Required immediate interventions

Conditional resolution path to prevent escalation to regulators

Explicit warning that failure to act constitutes a miscarriage of ethical justice and approval of director-level psychological harm

Action Required:

Please provide documented proof of corrective action and governance control implementation within 24 hours. Timely resolution will allow this matter to be removed from the master evidence dossier, which is otherwise scheduled for submission to eight regulators on 17 December 2025 at 10:00.

This escalation is submitted in full compliance with statutory, professional, and ethical duties. Immediate attention and decisive action are required to prevent further organisational, regulatory, and legal exposure.

Respectfully,
Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

> Accountability Notice:

This correspondence constitutes a formal notice of identified risk. Retaliation, obstruction, or failure to act in accordance with governance and risk management obligations may expose the organisation and/or individuals to regulatory, legal, and ethical consequences.

Important Accountability Notice:

MAXIMUM SEVERITY GRC ENFORCEMENT NOTICE – KING IV | ISO | OHSA | LRA

This enforcement notice is issued in my capacity as a Specialist Nurse and Health Services Manager responsible for Governance, Risk, and Psychosocial Safety, following confirmation that substantiated investigative findings were deliberately disregarded, corrective action and an approved apology were obstructed, the investigator was denied further access to the matter, and responsibility was improperly shifted to a member despite clear system-level causation. Such conduct constitutes a material breach of King IV Principles 1, 2, 4, and 13 (ethical leadership, accountability, risk governance, and compliance), ISO 31000 (failure to identify, treat, and monitor risk), ISO 45003 (failure to prevent psychosocial harm), Section 8 of the Occupational Health and Safety Act (duty to provide and maintain a work environment that is safe and without risk), and Sections 185, 186, and 188 of the Labour Relations Act (unfair conduct, detriment, and managerial misconduct). Immediate written confirmation is required before close of business today that the identified risk has been actioned, corrective and preventative controls implemented, member harm remedied, and management-level accountability assigned. Any failure to confirm resolution, or any further attempt to suppress findings, misattribute fault, or close the matter without corrective action, will be regarded as reckless governance and will expose accountable officials to personal liability, regulatory escalation, labour proceedings, and external oversight.

2 attachments

 Screen_Recording_20251216_091751_InShot.mp4
2 MB

Wilbur William Matthee <wilburmat@gmail.com>

Wed, 17 Dec 2025 at 08:23

To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com

Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com

Dear Chairperson and Board Members,

I am writing to formally retract the email and attached memorandum sent earlier 16 December 2025, titled "Urgent Maximum Severity GRC Escalation – Immediate Action Required," regarding Case [GEMS 000655789 Dependent 02].

This retraction is due to the email being sent on a public holiday, which invalidates the specified timeline and compliance window outlined in the document. As such, please disregard the formal escalation and any associated deadlines.

However, at your discretion, you may still use the information provided to correct the incident and implement any necessary remedial actions, as the underlying concerns remain relevant.

I apologize for any inconvenience this may cause and appreciate your understanding.

Should you require further clarification or discussion, please let me know.

Respectfully,

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

Accountability Notice:

>This retraction does not waive any statutory, professional, or ethical duties and is issued in good faith to ensure procedural accuracy.

[Quoted text hidden]

Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>

Thu, 18 Dec 2025 at 10

To: Wilbur William Matthee <wilburmat@gmail.com>

Dear Wilbur, can I please ask you to stop sending these e-mails to our directors? They've seen your first batch of e-mails and are aware that management is attending to them. Sending further e-mails only gives them an indication of impatience and unreasonableness on your part, and that does not serve you well.

Regards,



Monwabisi Kula

Chief Risk Officer

Office: +27 11 671 6447 | Mobile: +27 72 690 2140

Monwabisi.Kula@afrocentrichealth.com

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

www.afrocentric.za.com

From: Wilbur William Matthee <wilburmat@gmail.com>

Sent: Wednesday, December 17, 2025 8:23 AM

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXIT2

Date: 14–15 January 2026**Category:** *Exit Documents Request Chain***Description:**

Email chain: Respondent's email 14 Jan 2026 to Sipokazi Makaula requesting retirement and UIF forms. Makaula response 15 Jan 2026 requesting basic identity details despite the Respondent having been identified by name in the Manyati CCMA affidavit filed the previous month.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Evidences deliberate administrative obstruction of exit document processing. Manyati's affidavit identified Respondent by name, designating, title, and CCMA case number; any claim that identity was unknown is untenable.

[Document follows immediately after this tab]



Request for Assistance: UI-19 Forms and Umbrella fund Benefit Documents

1 message

Wilbur William Matthee <wilburmat@gmail.com>

Wed, 07 Jan 2026 at 14:28

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Dear Cheryl-Dawn,

I hope you are having a good week.

I am writing to kindly request your assistance with the necessary documentation required for my Unemployment Insurance Fund (UIF) application.

To help me meet my immediate financial needs and begin the claims process, could you please provide the completed UI-19 form and any other relevant exit documents?

Additionally, please let me know if there are any specific forms I need to complete from my side, or if you require any updated information (such as my current contact details or banking confirmation) to finalize these papers.

Thank you very much for your time and for helping me with this transition. I look forward to hearing from you.

Best regards,

Sr. W. Matthee

Nurse Specialist Health Services Management, Risk And Psychosocial Safety.

SRN. Com Health, Psychiatry, Midwifery; BTech; Bcur HNM; Post Grad HSM.



Retirement forms and Uif forms

2 messages

Wilbur William Matthee <info@ethichawks.co.za>

Wed, 14 Jan 2026 at 10:46

To: Sipokazi.Makaula@afrocentrichealth.com

Dear Sipikazi,

I trust you are well. I am just doing a follow up on my retirement claim forms and UIF forms. Could you kindly assist with these at your earliest convenience.

Much appreciated and thank you for your assistance in this matter.

Best regards

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>

Thu, 15 Jan 2026 at 18:57

To: Wilbur William Matthee <info@ethichawks.co.za>

Good day ,

I hope you are well.

Please share your details Name , Surname, ID number , are you a exting employee or former employee, which business unit and your team lead/ managers name.

This will assist in me knowing how to best assist you.

Thank you.



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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99

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Wednesday, January 14, 2026 10:46 AM
To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Subject: Retirement forms and Uif forms

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Dear Sipikazi,
[Quoted text hidden]

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Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXIT3

Date: 15–19 January 2026

Category: *UIF Non-Compliance Notice (5-message chain)*

Description:

URGENT Notice of Statutory Non-Compliance (UIF). Includes uFiling portal screenshot: MEDSCHEME HOLDINGS PTY LTD (201103-202702) — June 2025 flagged "No Information" despite UIF deduction appearing on payslip. Demands UI-19, Service Certificate and Umbrella Fund Withdrawal Forms by 19 Jan 2026 at 12:00. Sipokazi Makaula response 19 Jan 2026 provides documents but incorrectly asserts that resignation bars UIF claim. Includes Sanlam withdrawal email chain 15 Jan 2026.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes UIF non-remittance irregularity for June 2025. Makaula's resignation-bar assertion is legally incorrect re constructive dismissal. Direct cause of administrative deadlock with the Department of Employment and Labour. Grounds declaratory relief prayer.

[Document follows immediately after this tab]



Correction Required – Certificate of Service Misrepresentation

4 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>, Lindiwe.Miyambu@afrocentrichealth.com
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Tebogo.Makoe@afrocentrichealth.com, nthabisengn@medscheme.co.za
Bcc: wilburmat@gmail.com

Mon, 19 Jan 2026 at 12:25

Dear Sipokazi,

I acknowledge receipt of the Certificate of Service. However, I must formally object to the fact that my role has been adjusted to align with the Opposing Affidavit dated 10 December 2025, rather than reflecting my actual employment records.

The Certificate of Service is a statutory document required for UIF and fund processing. It must be accurate and consistent with payroll and HR records, not tailored to litigation pleadings. Adjusting my role to fit an affidavit constitutes misrepresentation and undermines compliance with the Basic Conditions of Employment Act.

I further note that both you and Nthabiseng were present in the recorded Teams meeting titled “Naming Convention”, where the Operational Manager encouraged us to update our statistics. That meeting provides direct evidence that the employer had full knowledge of my role, identity, and responsibilities. Any deviation from those facts in the Certificate of Service is therefore unjustifiable.

I therefore request that the Benefits Team urgently issue a corrected Certificate of Service that reflects my true role and employment details, as per payroll and HR records and the recorded meeting. As a result, of this failure, that is evedince require you have not met your 12:00 deadline, I require correct Certificate of Service by close of business 19 January 2026.

Should this not be provided within the stipulated timeframe, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and request a statutory audit of the employer’s compliance.

Please confirm by return email before close of business.

Kind regards,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF)

<postmaster@medscheme.co.za>
To: info@ethichawks.co.za

Mon, 19 Jan 2026 at 12:26

Delivery has failed to these recipients or groups:

tebogo.makoe@afrocentrichealth.com

A communication failure occurred during the delivery of this message. Please try resending the message later. If the problem continues, contact your email admin.

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[Quoted text hidden]

Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Mon, 19 Jan 2026 at 15:40

Dear Wilbur

Thank you for your e-mail,

Ito correspondences, from an HR perspective, I would like to confirm that we responded within the stipulated timeframe and provided all information required from our side. Furthermore the Certificate of Service issued is correct and fully aligned with our employment records as well as statutory requirements.

With regard to the naming-convention changes, please note that this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage. Your title is therefore accurately and correctly reflected in the Certificate of Service.

Should you require any additional documentation, we are available to assist; however, our position regarding the accuracy of the certificate remains unchanged.

Kind Regards

Cheryl-Dawn Modern

Senior HR Business Partner

 +27 (011) 671 4819 cheryl-dawnm@afrocentrichealth.com 37 Conrad St, Florida North, Roodepoort | PO Box 1101, Florida Glen, 1709 www.afrocentric.za.com

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Monday, January 19, 2026 12:25 PM

To: Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>

Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Tebogo Makoe <Tebogo.Makoe@afrocentrichealth.com>; Nthabiseng Nkatane <nthabisengn@medscheme.co.za>

Subject: Correction Required – Certificate of Service Misrepresentation

This message originated from outside your organization

Dear Sipokazi,

[Quoted text hidden]

[Quoted text hidden]

 **image014.png**
29 KB

Wilbur William Matthee <info@ethichawks.co.za>

Mon, 19 Jan 2026 at 16:30

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>

Bcc: wilburmat@gmail.com

Dear Cheryl-Dawn,

Thank you for the information provided.

You have stated that the company was compliant with the statutory timeline. However, the documents I received were incomplete, which means the company is in fact not compliant with statutory requirements.

For the record:

- I verbally accepted the updated role during the recorded Teams meeting titled "Naming Convention", attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Operational Manager informed me to update my identifiers.
- I subsequently updated my professional signature to reflect the new title.
- Both the recording and my updated signature constitute legally binding confirmation of the naming convention.

Despite this, the Certificate of Service issued contradicts both the recorded meeting and my updated signature, and has been aligned with the employer's Opposing Affidavit dated 10 December 2025. This alignment is illegal, as statutory documents must reflect factual employment records, not be tailored to litigation pleadings.

As a result, the current Certificate of Service will form part of my legal proceedings. Unless a corrected version is provided by close of business today, 19 January 2026, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and include this matter in my Labour Court affidavit.

Kind regards,

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W

Wilbur Mat...

2025/10/15

😊

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⋮

to me ▾



Medscheme

Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen P
(Midw,Psych,Comm))

Case Manager: GEMS Active Disease Risk
Management

• +27 12 466 1332

• wilbur.matthee@medscheme.co.za

• The Boulevard Building F & G, Searle
street, Woodstock,7925

• www.medscheme.com

📱

Wilbur Mat... 2025/10/15

😊

↩

⋮

to me ▾



Medscheme

Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen P
(Midw,Psych,Comm))

Case Manager: GEMS Active Disease Risk
Management

• +27 12 466 1332

• wilbur.matthee@medscheme.co.za

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Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)
[Quoted text hidden]



Request for Disclosure of Recorded Teams Meeting – “Naming Convention”

1 message

Wilbur William Matthee <info@ethichawks.co.za>

Mon, 19 Jan 2026 at 17:24

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Bcc: wilburmat@gmail.com

Dear Cheryl, Sipokazi, and Nthabiseng.

I hereby formally request disclosure of the full and unaltered Microsoft Teams recording titled “Naming Convention”, attended by Sipokazi Makaula and Nthabiseng Nkatane. This recording is in the Respondent’s possession and constitutes material evidence directly relevant to the dispute concerning my designation and the accuracy of the Certificate of Service.

Please provide the recording by [reasonable deadline, e.g., 5 working days]. Should the Respondent fail to disclose the recording, I will proceed to seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and invite the Court to draw an adverse inference from any refusal to disclose evidence within your possession.

Kind regards,

Wilbur Matthee

Specialist Nurse Health Services Manager

SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXIT4

Date: 19 January 2026**Category:** *Certificate of Service — Correction Required (4-message chain)***Description:**

Respondent's letter to Monwabisi Kula and Lindiwe Miyambu objecting to Certificate reflecting "Care Coordinator" — aligned with Manyati CCMA affidavit title rather than payroll records. Reference to "Naming Convention" Teams meeting (attended by Sipokazi Makaula and Nthabiseng Nkatane) where Operational Manager directed identifier updates. Cheryl-Dawn Modern's response 19 Jan 2026 at 15:40 maintaining "Care Coordinator" and asserting no naming-convention changes implemented. Respondent's final reply at 16:30 placing Certificate on Labour Court record. Screenshot of Respondent's Medscheme email signature dated 15 October 2025 showing title "Case Manager: GEMS Active Disease Risk Management".

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Proves Applicant knowingly refused to correct erroneous Certificate. Modern's response directly contradicts Respondent's email signature and "Naming Convention" Teams meeting record. Grounds fatal contradiction argument in paragraph 15 of the affidavit.

[Document follows immediately after this tab]



URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

5 messages

Wilbur William Matthee <info@ethichawks.co.za>

Thu, 15 Jan 2026 at 20:43

To: Sipokazi.Makaula@afrocentrichealth.com

Cc: Cheryl-DawnM@afrocentrichealth.com, Lindiwe.Miyambu@afrocentrichealth.com, Tebogo.Makoe@afrocentrichealth.com, Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>

Bcc: wilburmat@gmail.com

Dear Sipokazi,

I refer to your email dated 15 January 2026.

1. Rejection of Information Request:

Your request for my basic identity and employment details is rejected as a bad-faith stalling tactic. As a Human Capital Consultant, you have access to the Respondent's payroll records. Furthermore, the Respondent's legal representative, Mr. Xollie Vincent Manyati, authored a sworn Opposing Affidavit on 10 December 2025 (Case WECT23564-25) identifying me and my role.

2. Ignorance of Prior Requests:

Please note that I formally requested these documents from Cheryl-Dawn Modern on 7 January 2026. Her complete ignorance of that request and subsequent failure to provide the documents—despite my follow-up with you on 14 January—is a continuation of the institutional silence and victimization documented in my legal filings.

3. Evidence of UIF Non-Compliance (June 2025):

Attached is a screenshot from the uFiling portal showing that the Respondent failed to submit a declaration for June 2025. My payslip for that month reflects that UIF was deducted from my salary. This discrepancy constitutes a violation of the Unemployment Insurance Contributions Act. I require immediate proof of payment and an updated declaration for June 2025 to ensure my claim is not rejected by the Department of Employment and Labour (DEL).

4. Formal Notice to Leadership:

(To Lindiwe Miyambu, Tebogo Makoe, and Monwabisi Kula) Please be advised that I am formally filing my Founding Affidavit in the Labour Court on Tuesday, 20 January 2026. The systemic failure to provide my UI-19, retirement forms, and the missing June 2025 declaration will be included as evidence of institutional bad faith and continued occupational detriment.

5. Final Demand:

I require the following by 12:00 PM on Monday, 19 January 2026:

My completed UI-19 form;

My Service Certificate and Umbrella Fund Withdrawal Forms;

Proof of UIF payment and declaration for June 2025.

Failure to comply will result in a formal complaint to the DEL and a request for a statutory audit.

MEDSCHEME HOLDINGS PTY LTD (202103 - 202702)		
March 2025 Salary: R40589.15 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	April 2025 Salary: R42537.43 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	May 2025 Salary: R34637.82 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:
June 2025 No Information	July 2025 Salary: R27725.66 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	August 2025 Salary: R40562.53 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:
September 2025 Salary: R42537.43 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	October 2025 Salary: R35625.28 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	November 2025 Salary: R36612.73 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

<postmaster@medscheme.co.za>
To: info@ethichawks.co.za

Thu, 15 Jan 2026 at 20:44

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tebogo.makoe@afrocentrichealth.com

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Diagnostic information for administrators:

Generating server: ZABDCEXCAMBX05.medscheme.com

tebogo.makoe@afrocentrichealth.com

DU2PEPF00028D10.mail.protection.outlook.com

Remote Server returned '550 5.4.1 Recipient address rejected: Access denied. For more information see <https://aka.ms/EXOSmtpErrors> [DU2PEPF00028D10.eurprd03.prod.outlook.com 2026-01-15T18:44:31.446Z 08DE54082AEB94EB]'

Original message headers:

Received: from ZABDCEXCAMBX05.medscheme.com (172.27.164.159) by ZABDCEXCAMBX05.medscheme.com (172.27.164.159) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id

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[Quoted text hidden]

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sun, 18 Jan 2026 at 09:02

Good day Wilbur,

I hope you are well.

I apologise about the delay in your request.

I spoke with Xolile to help me identify you as per the information you provided below on your communication with Xolile.

Please note that due to your email being external It was important for me to ask Identity questions.

I was also unable to identify you via the external email and asked the Identity questions so I can give full details to the benefits team for your personalized exit documents.

Additionally your request is of a confidential status it was also important that I ask Identity questions so that there is no confidential breach.

A ResQ ticket has also been raised for your exit documents. The benefits team no longer works via email, they work via ResQ tickets for all queries.

Next steps

-Benefits will review and send your personalised exit documents

-Once I receive or Cheryl receives we will send it you using this email address .

Thank you .



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Thursday, January 15, 2026 8:43 PM

To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>

Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>; Tebogo.Makoe@afrocentrichealth.com <Tebogo.Makoe@afrocentrichealth.com>; Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>

Subject: URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

This message originated from outside your organization

Dear Sipokazi,
[Quoted text hidden]

[Quoted text hidden]

Wilbur William Matthee <info@ethichawks.co.za>
To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sun, 18 Jan 2026 at 09:40

Dear Ms Makaula,

I acknowledge receipt of your email dated Sunday, 18 January 2026, regarding my request for statutory exit documents.

As indicated in my correspondence of Thursday, 15 January 2026, the deadline for provision of these documents is **Monday, 19 January 2026 at 12h00**. These documents are required to enable compliance with statutory obligations, including UIF processing.

I respectfully request that the Respondent ensure full compliance with this deadline to avoid unnecessary escalation. Please confirm that the benefits team will provide the personalised exit documents within the stipulated timeframe.

Thank you for your attention to this matter.

Kind regards,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)

[OBJ]

[Quoted text hidden]

3 attachments



1000206656.png
158 KB



Outlook-A black ba.png
9 KB



Outlook-qswwepqo.png
5 KB

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Mon, 19 Jan 2026 at 11:38

Good day Wilbur,

I trust you are well.

Herewith please find feedback on your query:

1. UIF Declaration – June 2025

The UIF declaration for June 2025 was submitted.

Please see the screenshot provided by Payroll as confirmation.

2. UIF Documentation

UIF documents have been attached for your reference.

Kindly note that UI-19 forms are only provided when the reason for leaving qualifies for UIF benefits.

Since your reason for leaving is recorded as Resignation, the Department of Employment and Labour does not process UIF claims for this category unless they explicitly request supporting documents.

3. Certificate of Service

Your Certificate of Service has been attached.

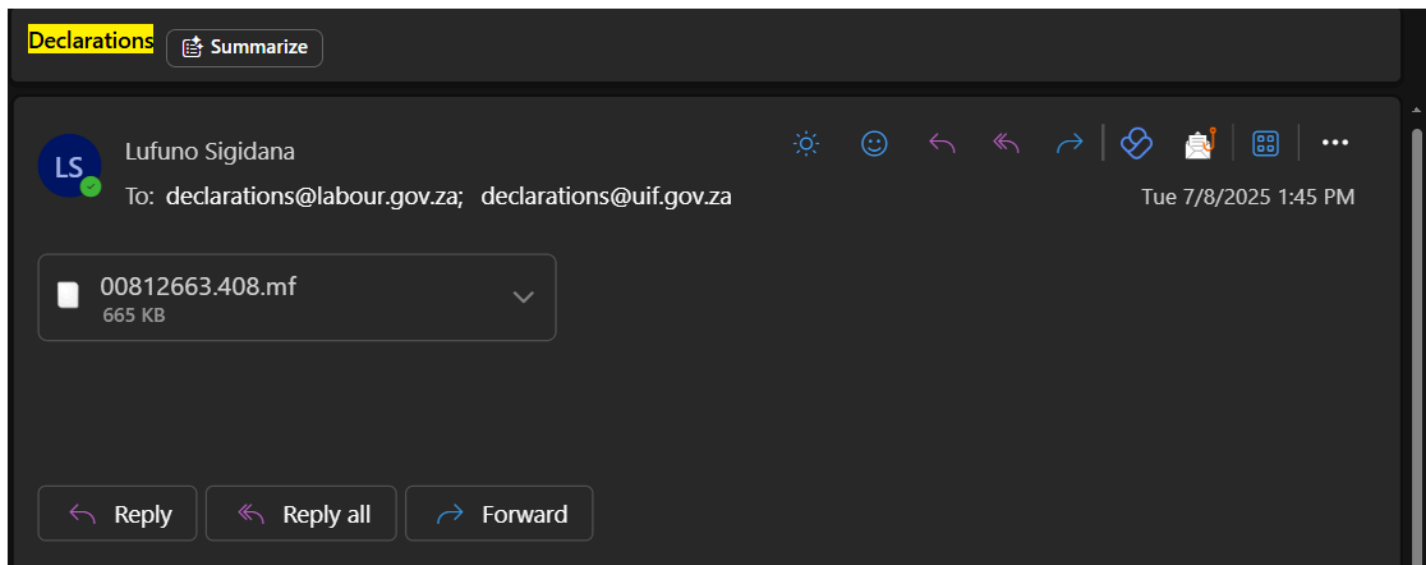
4. Provident Fund Withdrawal

The Benefits Team (Sebabatso) previously reached out to you regarding your provident fund withdrawal and attempted to contact you telephonically.

Please see the attached email for reference.

Thank you.

"8001,""UIWK""",8110,""000812663""",8200,8909035151087,8220,""7074649""",8230,""Matthee""",8240,""Wilbur William""",8250,19890903,8260,20240501,8280,1,8300,40562.53,8310,17712,8320,354.24,8330,679000,8340,10961611474,8350,1"



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Sunday, January 18, 2026 9:40 AM

To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>

Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Subject: Re: URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

[Quoted text hidden]

----- Forwarded message -----

From: Sebatatso Sebotsa <SebatatsoS@medscheme.co.za>

To: Natasha Johnson <Natasha.Johnson@medscheme.co.za>

Cc:

Bcc:

Date: Mon, 19 Jan 2026 07:12:24 +0000

Subject: Withdrawal Forms

Good day.

I trust all is well with you.

Please find attached email sent to the employee.

Thank you.



Sebatatso Sebotsa

Designation: Human Capital Administrator, Rewards & Benefits Management.

+27 11 758 8880

Sebatatsos@medscheme.co.za

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

www.afrocentric.za.com

Please consider the environment before printing this email

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This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is

----- Forwarded message -----

From: Sebatatso Sebotsa <SebatatsoS@medscheme.co.za>

To: "wilburmat@gmail.com" <wilburmat@gmail.com>

Cc:

Bcc:

Date: Thu, 15 Jan 2026 16:54:15 +0000

Subject: Wilbur Matthee - Benefits Withdrawal

Dear Member

Kindly note that, effective 1 September 2024, Sanlam has implemented a new withdrawal process.

Attached is your personalized withdrawal form. Before completing it, please review the following:

Form 1: Basic Withdrawal

By completing this form, you may:

- Withdraw from your **vested** and **savings** pots.
- Preserve your **retirement** pot with Sanlam.

Form 2: Advanced Withdrawal

This form offers more flexible options:

- Preserve **100%** of all three pots (vested, savings, and retirement).
- Take full cash from the **vested** and **savings** pots and preserve or transfer the **retirement** pot.
- Withdraw a **portion** from the vested and savings pots and preserve or transfer the remaining balance.

Important: Please consult your Financial Advisor if you intend to transfer or in-fund your benefits to a new fund.

In addition to the completed form, kindly submit:

- A certified copy of your ID
- Proof of banking details

Please note that your claim will be submitted to Sanlam on **15 January 2025**, following the final contribution.



Sebatatso Sebotsa

Designation: Human Capital Administrator, Rewards & Benefits Management.

+27 11 758 8880

Sebatatsos@medscheme.co.za

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

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7 attachments

-  **Matthee WW Certificate of Service.pdf**
150 KB
-  **Salary Schedule - Matthee W.pdf**
95 KB
-  **UI 19- Medscheme -Matthee W.pdf**
117 KB
-  **Withdrawal Forms.eml**
429 KB
-  **Wilbur Matthee - Benefits Withdrawal.eml**
360 KB
-  **AdvancedWithdrawalForm_82104113.pdf**
124 KB
-  **BasicWithdrawalForm_82104113.pdf**
81 KB

ANNEXURE

EXIT3- COS

Date: 19 January 2026

Category: *Certificate of Service (as issued)*

Description:

Certificate of Service issued by Medscheme Holdings upon Respondent's departure — reflects designation "Care Coordinator". This designation is contrary to: (1) payroll records; (2) the "Naming Convention" Teams meeting record; (3) the Respondent's professional Medscheme email signature ("Case Manager"); and (4) the Applicant's own founding affidavit in this application, which designates the Respondent as "Case Manager".

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

The primary physical document evidencing the fatal contradiction. Relied upon by the Department of Employment and Labour to withhold UIF benefits. Establishes that the Applicant cannot simultaneously call the Respondent a "Case Manager" in interdict papers and a "Care Coordinator" in exit documentation.

[Document follows immediately after this tab]



37 Conrad Street
Florida North
Roodepoort

Switchboard: 011 671-2000

Website: www.medscheme.co.za

19 January 2025

To Whom It May Concern

RE: CERTIFICATE OF SERVICE FOR WILBUR MATTHEE

Medscheme Holdings (Pty) Ltd hereby certify that **Wilbur Matthee**, Identity Number **8909035151087**, was employed by us for the period **01 May 2024 to 12 December 2025**.

The last position held was **Care Coordinator** in the **GEMS Disease Management** department.

At termination of service, Wilbur's Total Cost to Company Remuneration was **R42796.13** per month.

Sincerely,

AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

Keorapetse Moilola
TSS Admin Support Officer
Human Capital Management
(011) 671 4715



Medscheme Holdings (Pty) Ltd Reg No 1970/015014/07
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709



DIRECTORS:
G Van Wyk, KT Moloele, MJ Madungandaba, AA Mahmood, FV Nompumza, AD Schwulst (CEO), BS Madikiza, MS Bray (COO)

Group Company Secretary: LMS Mpumlwana

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW1

Date: 15 April 2026

Category: *Deneys Attorneys Letter*

Description:

Letter from Jason Whyte of Deneys Attorneys to Respondent alleging that the Respondent's demand was "unquantified" and relying on this to support an allegation of extortion.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Directly prompted Respondent's same-day provision of fully itemised R7,307,642.72 quantification (Annexure GVW4). A genuine extortionist does not itemise at the opposing party's request. Deneys' own letter defeats the extortion allegation.

[Document follows immediately after this tab]



By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026

9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deneys.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deneys.co.za

Your reference:

Our reference: AFR1282

Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself

- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim our clients' rights remain reserved in full.

Yours faithfully


pp

Jason Whyte
Director
Deneys

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW2

Date: 9 April 2026

Category: *Labour Court Statement of Claim*

Description:

Labour Court Statement of Claim filed by Respondent (Case No. 2026-083299) — includes express reservation of right to quantify damages, establishing that the claim was on record before the quantification was provided.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Demonstrates that the R7,307,642.72 quantification was not a new demand or threat — it was the first full Rand expression of an existing, filed Labour Court claim. Defeats extortion allegation.

[Document follows immediately after this tab]

- (a) Primary claim: Automatically unfair constructive dismissal under sections 186(1)(e) and 187(1)(h) of the LRA — the dominant reason for the dismissal was retaliation for protected disclosures as defined in the PDA;
- (b) Alternative claim A: Automatically unfair dismissal under sections 186(1)(e) and 187(1)(f) of the LRA — the dominant reason relates to the Applicant's disability;
- (c) Alternative claim B: Constructively and substantively/procedurally unfair dismissal under sections 185 and 186(1)(e) of the LRA;
- (d) Unfair discrimination and harassment under sections 6(1), 6(3) and 60 of the EEA — on the grounds of sexual orientation, gender identity and disability;
- (e) Occupational detriment for making protected disclosures under sections 3 and 4 of the PDA;
- (f) Contravention of section 34(2) of the BCEA — unlawful salary deduction (also pleaded in Case No. 2026-077546);
- (g) Contravention of section 42 of the BCEA — failure to provide a true and accurate Certificate of Service; and
- (h) Contravention of section 5(1) of the UIF Contributions Act 4 of 2002 — failure to declare contributions for June 2025.
- (i) Misappropriation of intellectual property and copyright infringement under section 23 of the Copyright Act 98 of 1978 — the Applicant developed an original CPD programme in April 2025 which was rejected by the Second Respondent, then implemented without attribution or consent in October 2025; the Applicant's moral rights under section 20 of the Copyright Act were simultaneously infringed; and the Second Respondent was unjustifiably enriched at the Applicant's expense under the common law.

PART Q: QUANTIFICATION OF LOSS

1. The Applicant's loss is calculated as follows:

Head of Damage / Claim	Statutory Basis	Amount (ZAR)
Automatically unfair dismissal compensation (24 months × R42,796.13)	LRA s194(3)	R1,027,107.12
Unlawful salary deduction — principal amount	BCEA s34(2) / s77A	R14,811.77
Interest on unlawful deduction (prescribed rate from 23 Jul 2025)	Prescribed Rate Act	To be calculated
EEA — solatium for injury to dignity (sexual orientation / disability discrimination)	EEA s50(2)	R350,000.00
EEA — compensation for failure of reasonable accommodation	EEA s50(2)	To be assessed
PDA — compensation for occupational detriment (financial loss, SANC registration, CPUT opportunity)	PDA s4	To be assessed
Consequential damages: lost CPUT programme (registration fees and associated costs)	PDA s4 / general damages	To be quantified
Career destruction damages: loss of nursing registration and future earning capacity	PDA s4 / general damages	To be assessed

Head of Damage / Claim	Statutory Basis	Amount (ZAR)
Copyright infringement / IP misappropriation — CPD programme developed April 2025, implemented without credit October 2025 (market value of programme, moral rights, loss of authorship credit, unjustified enrichment)	Copyright Act s23 / s20 / common law	To be assessed
TOTAL (known components)		R1,391,918.89 plus assessed amounts

Note: Items marked 'to be assessed' or 'to be quantified' will be supplemented by expert evidence and/or further particulars as the matter develops. The Applicant reserves the right to amend the quantum of the claim upon receipt of further documentation from the Respondents.

PART R: RELIEF SOUGHT

The Applicant respectfully prays for the following relief:

A. DECLARATORY RELIEF

- Q.1.** A declaration that the Applicant's dismissal constitutes an automatically unfair constructive dismissal within the meaning of sections 186(1)(e) and 187(1)(h) of the LRA, on the grounds that the dominant reason for the dismissal was retaliation by the Respondents for the Applicant making protected disclosures as defined in the PDA.
- Q.2.** Alternatively to Q.1, a declaration that the dismissal was automatically unfair within the meaning of sections 186(1)(e) and 187(1)(f) of the LRA on the grounds that a dominant reason for the dismissal relates to the Applicant's disability.
- Q.3.** Further alternatively, a declaration that the dismissal was unfair within the meaning of section 185 of the LRA.

B. COMPENSATION AND DAMAGES

- Q.4.** An order that the First and/or Second Respondents pay the Applicant compensation equal to 24 months' remuneration as provided for in section 194(3) of the LRA for an automatically unfair dismissal, calculated at his monthly cost-to-company of R42,796.13 per month, amounting to R1,027,107.12, alternatively the maximum permissible compensation amount.
- Q.5.** An order that the First and/or Second Respondents reimburse the Applicant the unlawfully deducted amount of R14,811.77 together with interest at the prescribed rate calculated from 23 July 2025 to the date of final payment, alternatively that this relief be granted in Case No. 2026-077546.
- Q.6.** An order that the First and/or Second Respondents pay the Applicant compensation in terms of section 50(2) of the EEA for unfair discrimination on the grounds of sexual orientation, gender identity and disability, including solatium for injury to dignity in the amount of R350,000, alternatively such amount as this Court deems just and equitable.
- Q.7.** An order that the First and/or Second Respondents pay the Applicant compensation for occupational detriment under section 4 of the PDA, including compensation for all financial loss, career destruction, loss of nursing

ANNEXURE
GVW4

Date: 15 April 2026

Category: *Quantification Schedule* — R7,307,642.72

Description:
Fully itemised quantification of the Respondent's damages (R7,307,642.72) provided on 15 April 2026 to Deneys Attorneys at their express written request. Breakdown by head of damages aligned with Labour Court claim. (Filed in Applicant's founding papers.)

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Evidences good faith and genuine litigant conduct. Represents less than 0.24% of the estimated annual Governance Tax (R3.016bn). Under the Protected Disclosures Bill 2026, a 25% whistleblower award on recovered funds would yield R754m — making the extortion characterisation policy-blind.

[Document follows immediately after this tab]

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/meet/9317804058155?p=3OxPhtrj39zfqYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):



<https://teams.live.com/meet/9392336908714?p=ihT4rLnWK7HyYFlnds>

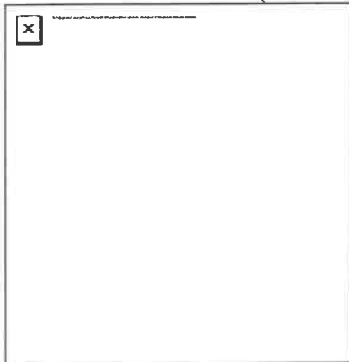
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



NW 

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
GVW5

Date: 15 April 2026 at 20:44

Category: *Correction Email — "Leakage"*

Description:

Voluntary email from Respondent to Applicant at 20h44 on 15 April 2026: "I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint."

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

A bad-faith actor does not issue voluntary corrections. This email is direct evidence of good faith and careful epistemic standards in communication. Applicant's reliance on the original use of "leakage" to allege bad faith is an abuse of process.

[Document follows immediately after this tab]

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.

The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)


NN

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW5

Date: 15 April 2026

Category: *DEL Email — Refusal to Release Benefits*

Description:

Email from the Department of Employment and Labour dated 15 April 2026 confirming refusal to release UIF benefits to Respondent.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes the concrete and immediate harm of the administrative deadlock created by the erroneous Certificate of Service and UI-19 form. Demonstrates tangible advantage to be obtained from declaratory relief — not an abstract or hypothetical interest.

[Document follows immediately after this tab]



FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

6 messages

Wilbur William Matthee <info@ethichawks.co.za>

Tue, 14 Apr 2026 at 14:25

To: David.Esau@labour.gov.za, Fezeka.Ngalo@labour.gov.za

Cc: PublicProtector@ombudsman.org.za, complaints@sahrc.org.za

Bcc: " <wilburmat@gmail.com>

Dear Mr. Esau and Ms. Ngalo,

I refer to the integrated inspection allocated on 16 February 2026. Despite my repeated follow-ups and the BCEA department's referral to the UIF division, the Department has remained silent for over 60 days. This silence in the face of documented statutory fraud is no longer an "administrative delay"—it is a Deemed Refusal to Act.

I require an immediate Statement of Position on the following three points of law:

The Perjury/Resignation Obstruction: Does the DEL accept an employer's under-oath claim of "voluntary resignation" (Res1) when my formal Notice of Resignation (UI19) explicitly cited Automatically Unfair Constructive Dismissal due to a protected disclosure? By failing to intervene, the DEL is allowing a false narrative to block my constitutional right to social security.

The Service Certificate Misrepresentation: The employer has issued a Certificate of Service (CERT1) that misrepresents the nature of my departure and suppresses the occupational detriment I faced. I demand a Compliance Order to compel the correction of this statutory document.

The UIF Non-Remittance (Criminality): My June 2025 records (and others) confirm deductions were made from my salary but never remitted to the Fund. This is theft of statutory levies. Does the UIF department intend to prosecute this non-compliance, or is the whistleblower expected to bear the cost of the employer's criminality?

I am a Specialist Registered Nurse (NQF 8) currently homelessness and a medically documented PTSD collapse (MED1) because I am being denied access to my own security funds. Your department's inaction is the primary driver of this human rights violation.

If I do not receive a Case Reference Number and a Compliance Order regarding the June 2025 UIF gap by Thursday, 16 April 2026, at 14:30, I will:

Initiate an Urgent Mandamus Application in the High Court to compel the Department to perform its statutory duties.

Submit this entire chain of ignored correspondence to Daily Maverick and AmaBhungane as evidence of institutional failure.

Silence is no longer an option. The law requires you to act.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

-  **MED1 - letter to employer.pdf**
417 KB
-  **RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf**
153 KB
-  **CERT1 (Matthee WW Certificate of Service (1).pdf**
150 KB
-  **UI 19- Medscheme -Matthee W (1).pdf**
117 KB

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: info@ethichawks.co.za

Tue, 14 Apr 2026 at 14:25



Message blocked

Your message to **PublicProtector@ombudsman.org.za** has been blocked. See technical details below for more information.

The response from the remote server was:
550 blocked

<postmaster@labour.gov.za>
To: info@ethichawks.co.za

Tue, 14 Apr 2026 at 14:31



Your message to David.Esau@labour.gov.za couldn't be delivered.
David.Esau wasn't found at labour.gov.za.

info	Office 365	David.Esau
Action Required		Recipient
Unknown To address		

How to Fix It

The address may be misspelled or may not exist. Try one or more of the following:

- Send the message again following these steps: In Outlook, open this non-delivery report (NDR) and choose **Send Again** from the Report ribbon. In Outlook on the web, select this NDR, then select the link "**To send this message again, click here.**" Then delete and retype the entire recipient address. If prompted with an Auto-Complete List suggestion don't select it. After typing the complete address, click **Send**.
- Contact the recipient (by phone, for example) to check that the address exists and is correct.

----- Forwarded message -----

From: Wilbur William Matthee <info@ethichawks.co.za>

To: David.Esau@labour.gov.za, Fezeka.Ngalo@labour.gov.za

Cc: PublicProtector@ombudsman.org.za, complaints@sahrc.org.za

Bcc:

Date: Tue, 14 Apr 2026 05:25:36 -0700

Subject: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear Mr. Esau and Ms. Ngalo,

I refer to the integrated inspection allocated on 16 February 2026. Despite my repeated follow-ups and the BCEA department's referral to the UIF division, the Department has remained silent for over 60 days. This silence in the face of documented statutory fraud is no longer an "administrative delay"—it is a Deemed Refusal to Act.

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Silence is no longer an option. The law requires you to act.

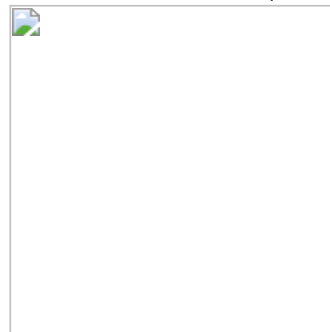
Yours professionally,

Sr. Wilbur W Matthee

Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)

Health Services Management.

Founder EthicHawks (Forensic Governance and Compliance)



[LINKSHIELD PROTECTED] www.ethichawks.co.za

 **MED1 - letter to employer.pdf**

417 KB

**RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf**

153 KB

**CERT1 (Matthee WW Certificate of Service (1)).pdf**

150 KB

**UI 19- Medscheme -Matthee W (1).pdf**

117 KB

Wed, 15 Apr 2026 at 14:55

Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>

To: info@ethichawks.co.za <info@ethichawks.co.za>

Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Good afternoon Mr\Mrs\Ms William Matthee

Thank you for registering your complaint with the Department of Employment and Labour, however, I regret to inform you that DEL does not have jurisdiction on dismissal issues and your case is that of Constructive Dismissal which falls under CCMA. In the light of that I will recommend that you refer your matter to CCMA.

Thanking you in advance, hoping that this clarity will be considered favourable

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

| Room 621, 9 Long Street, Cape Town, 8001|

Tel  Description: cid:image001.png@01CBDE41.60315F40 +27 21 441 8000 |Mobile

 Description: cid:image002.png@01CBDE41.60315F40 +27 82 7894749|

 Description: cid:image004.png@01CBDE41.60315F40 cebo.kutuka@labour.gov.za |

 Description: cid:image005.png@01CBDE41.60315F40 www.labour.gov.za

 cid:image006.png@01D551BF.8607A8F0

 cid:image002.png@01D70AA4.3CAB90F0

From: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Sent: Wednesday, 15 April 2026 12:35

To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>; Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Subject: FW: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear colleagues

The mail below and the attached document bears reference, can you kindly allocate this case for investigation.

Thank you in advance.

Kind Regards

Tel  Description: cid:image001.png@01CBDE41.60315F40 +27 21 441 8094 | Mobile

 Description: cid:image002.png@01CBDE41.60315F40 +27 82 791 6244| Fax  Description: cid:image003.png@01CBDE41.60315F40 |

 Description: cid:image004.png@01CBDE41.60315F40 fezeka.ngalo@labour.gov.za |

 Description: cid:image005.png@01CBDE41.60315F40 www.labour.gov.za

 cid:image006.png@01D551BF.8607A8F0

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, 14 April 2026 14:26

To: David.Esau@labour.gov.za ; Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Cc: PublicProtector@ombudsman.org.za ; complaints@sahrc.org.za

Subject: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear Mr. Esau and Ms. Ngalo,

[Quoted text hidden]

4 attachments



MED1 - letter to employer.pdf

417 KB



RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf

153 KB



CERT1 (Matthee WW Certificate of Service (1).pdf

150 KB



UI 19- Medscheme -Matthee W (1).pdf

117 KB

Wilbur William Matthee <info@ethichawks.co.za>

Wed, 15 Apr 2026 at 15:30

To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>

Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Bcc: " <wilburmat@gmail.com>

Dear Mr. Kutuka,

Your response, notably addressed to a genetic 'Mr/Ms/Mrs,' confirms a failure to apply your mind to the basic facts of this case, including the identity of the complainant and the evidence provided. This lack of administrative mindfulness is reflected in your recommendation, which is a material misdirection of law.

Your recommendation to refer this matter to the CCMA is a material misdirection of law.

Jurisdiction: While the CCMA handles the dismissal, the UIF Act (Section 64) and the BCEA grant the DEL exclusive jurisdiction over the submission of fraudulent information to the state.

I have reported that the employer submitted a UI-19 citing "Voluntary Resignation" despite being served with a Notice of Automatically Unfair Constructive Dismissal. This is a Statutory Fraud intended to obstruct my access to the UIF fund—a criminal offense under the UIF Act.

Your refusal to investigate this fraud because it "looks like a dismissal" is an act of Administrative Abandonment.

You are hereby served with a final 24-hour window to align with your colleague, Fezeka Ngalo (Provincial Specialist: OHS), who has already correctly allocated this case for investigation (Ref: 890903 5151 087) remains 13:30. Failure to confirm that the UI-19 fraud will be part of the integrated inspection will result in your name being cited personally in the Writ of Mandamus as an official refusing to perform a statutory duty.

I remain finished with silence.

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

[Quoted text hidden]

Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>
To: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>
Cc: Wilbur William Matthee <info@ethichawks.co.za>

Wed, 15 Apr 2026 at 23:31

Good day Ms Ngalo

I guess this matter is closed from the BCEA side. The complainant has submitted a resignation letter to the employer citing constructive dismissal. For that s\he has to prove that at CCMA.

Won't respond to personal attacks.

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

| Room 621, 9 Long Street, Cape Town, 8001|

Tel 📞 +27 21 441 8000 |Mobile 📱 +27 82 7894749|

✉️ cebo.kutuka@labour.gov.za | www.labour.gov.za



employment & labour

Department:
Employment and Labour
REPUBLIC OF SOUTH AFRICA

Wearing a mask properly is of life-saving importance. You must wear your masks at all times when outside of your home. There can be no exceptions.

- You must avoid crowded and confined spaces at all costs. This is where super-spreader events take place.
- You must ensure there is good ventilation at all times whenever you're in public. The virus droplets spread by air in confined spaces, and so fresher is better.
- You must wash your hands regularly with soap and water or use sanitiser.
- If you feel sick, you should not leave your home unless it is to get healthcare treatment. You must first call our hotline on 080 928 4102 for guidance on the next steps.
- You should also not visit someone who is sick, and find other ways to provide support, like delivering a meal to a neighbour's doorstep.

[Quoted text hidden]

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW6

Date: April 2026**Category:** *Affidavit of Destitution***Description:**

Affidavit sworn by Respondent confirming: (1) no current income; (2) no savings, investments, or significant assets; (3) inability to afford transport to attend court; (4) inability to afford legal representation; (5) dependence on family and charity; (6) request for waiver of filing fees and security for costs.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Context for all procedural conduct. Explains inability to attend the 16 April 2026 hearing. Grounds request for attorney-client costs against Applicant for dragging a destitute respondent into urgent proceedings on 67 minutes' notice.

[Document follows immediately after this tab]

AFFIDAVIT OF DESTITUTION
(EXHIBIT WW6)

1, **Wilbur William Matthee**, swear under oath that:

1. I have no current income from employment or any other source.
2. I have no savings, investments, or assets of significant value.
3. I cannot afford transport to attend court proceedings.
4. I cannot afford legal representation.
5. I am currently dependent on family and charitable assistance for basic necessities.
6. I request that this Honourable Court accept my papers without payment of filing fees and dispense with any requirement to pay security for costs.

Signed: _____

Date: 20th APRIL 2026

Sworn before me at DELFT on this 20th day of APRIL 2026.

Commissioner of Oaths: BD 25513

PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 891 0844

Matthee
Wilbur Matthee
89090551087
20th April 2026

ANNEXURE
VICT1

Date: 2025

Category: *Root Cause Analysis (Forensic)*

Description:
Root Cause Analysis: Gexus/DMS Integration Gap — forensic analysis establishing that the systemic integration failure generates false non-adherence data, compelling actuaries to apply maximum APN 303 risk loading, inflating the GEMS premium increase from the CMS-stipulated 3.3–4% to 9.5%. Estimated excess cost: R3.016 billion per annum across 1.9 million GEMS members.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Core substantive protected disclosure. Establishes public interest at stake. Grounds the APN 303 / NHI public interest arguments. Demonstrates objective basis for Respondent's disclosures — not speculation but empirical data-driven analysis. Applicant's own paragraph 40 admits the Gexus/DMS platforms manage the relevant data.

[Document follows immediately after this tab]

Good day Team

Hope my email finds you well.

Complaint details:

"Hi I have a 75 yr old Mom who is my one and only dependent. I religiously ensure she honours her blood collection months when due and not end there. Also collect her treatment every month from Nite Doc pharmacy. You sent her an email that you don't get records of her repeat. I request that you get your house in order and update your records. Stop confusing old lady.

SP Mahlangu

000655789"

Comment from the Medscheme CMM HLQ Team:

No email correspondence was sent to the member via GEXUS from the Medscheme CMM department.

Upon receipt of the complaint, the Medscheme CMM CMM HLQ Team contacted the main member to obtain details regarding the email that was sent. The following was advised:

FROM EMAIL ADDRESS: NOCGEMSBHRM@MEDSCHEME.CO.ZA

TO EMAIL ADDRESS: SBONGILEPR@GMAIL.COM

DATE AND TIME: 19/10/2025 13:28PM

SUMMARY OF EMAIL CONTENT:

- DID NOT RECEIVE REGULAR MONTHLY CLAIMS FOR CHRONIC MEDICATION

The member has indicated that the communication received is incorrect, as they are claiming monthly for chronic medication.

Could you kindly confirm the following:

1. Is this email address associated with the ADRM space?
2. Was this communication sent from DMS?

If both are confirmed, I would like to request input from ADRM to enable me to respond on your behalf, as there is currently no HLQ agent assigned to our space.

As per my investigation, the last visible claim was in August 2025.

Could you also confirm whether this letter was part of a bulk communication or if it was sent by an agent?

Thank you in advance for your assistance.

Kind regards

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

1. Email Address Verification

The email address NOCGEMSBHRM@MEDSCHEME.CO.ZA does not appear under the current possible email addresses accessible via Gexus.

It is an automated email address, not linked to ADRM space but the DMS system itself.

2. Source of Communication

The communication originated from DMS.

Confirmed that it was not sent by an agent but generated automatically.

3. Root Cause Analysis

Miscommunication between Gexus and DMS systems.

Member collected cholesterol medication from acute benefit from 21/11/2017 until 17/12/2024.

From January 2025, medication was claimed under chronic benefit.

Although Gexus shows a chronic claim on 14/04/2023 onwards for cholesterol medication, DMS did not receive this update.

DMS continued tracking adherence based on acute claims only, ignoring chronic claims after the benefit change.

This resulted in the member being incorrectly flagged as non-adherent, despite being compliant.

Automated correspondence was sent based on incorrect source information.

Member received misleading communication, causing dissatisfaction.

5. Resolution Steps

Confirmed issue stems from system integration gaps between Gexus and DMS.

Recommended actions:

Review and update communication between systems.

Ensure chronic claims are recognized by DMS for adherence tracking.

Input from the ADRM space to assist with member correspondence

Thank you for bringing this matter to our attention. We have identified that the communication you received was the result of a system error, and we appreciate your patience while we investigated.

Please be assured that your adherence status will be updated correctly going forward, and this will not affect your record.

We sincerely apologize for any inconvenience caused and thank you for your understanding. Should you have any further questions, please feel free to reach out to us.

I hope that this is sufficient feedback.

Kind regards,

The comms went out correctly, this member is non-adherent.

The non-adherent methodology is you need claim twice in a rolling three months member only claimed once in the past 3 months.

Sep – No claims = 0

Aug – claims = 1

Jul – no claims =0

June – claims = 1

May – claims = 1

Please note a member could have claimed this month but the previous two months have not claims the member will be flagged as non-adherent – and clinically and behaviourally there is a problem that requires attention, therefore the intervention and should please be managed as such in the ADRM calls too.

Kind Regards



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management



(021) 466 1191



Mary-annj@medscheme.co.za



37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709



www.medscheme.com



Please call member for enrollment and bring the non-adherence into the conversation with gentle probing as to why the medication was not claimed.

Kindly provide feedback when done.

Thank you



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management



(021) 466 1191



Mary-annj@medscheme.co.za



37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709



www.medscheme.com



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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Thursday, October 23, 2025 12:40 PM
To: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Subject: RE: general complaint received - GEMS 000655789 Dependent 02

Dear Mary-Ann,

I wanted to provide an update on the recent complaint investigation. Based on the information received, the team indicated that the non-adherence correspondence was sent due to the member not claiming twice within a three-month period, which aligns with the non-adherence methodology for the Jul-Sep 2025 period.

However, after reviewing the evidence, I believe the complaint stems from a different issue:

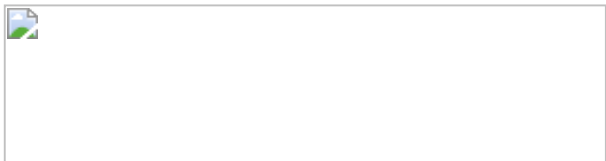
- DMS began flagging the member as non-adherent in Dec 2024, after the last acute claim.
- From Jan 2025 onward, the medication was claimed under the chronic benefit, but DMS did not recognize this change.
- As a result, automated non-adherence letters were sent on 19 May 2025 and 19 Oct 2025, despite the member being compliant.

This confirms the root cause is a miscommunication between Gexus and DMS systems, not the methodology itself. Evidence supporting this timeline has been attached for reference.

Given that the integration gap still exists, I will not contact the member at this time. Instead, I recommend that the team review this feedback and consult on the best way forward to prevent similar issues.

Thank you very much for your assistance.

Kind regards,



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Case Manager: GEMS Active Disease Risk Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle street, Woodstock,7925
- www.medscheme.com



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From: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Sent: Thursday, 23 October 2025 12:02

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Cc: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Subject: FW: general complaint received - GEMS 000655789 Dependent 02

Good day Wilbur



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From: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Sent: Thursday, 23 October 2025 12:54
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Cc: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Subject: RE: general complaint received - GEMS 000655789 Dependent 02

Good day Wilbur

The below is noted. I am not in agreement with your feedback though.

Kind Regards



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management



(021) 466 1191



Mary-annj@medscheme.co.za



37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida
Glen, 1709



www.medscheme.com

ANNEXURE
RESU1

Date: 2026

Category: *Letter of Recommendation — Dr P.M.J. Ohm*

Description:

Professional reference letter from Dr P.M.J. Ohm, medical doctor, Mitchells Plain District Hospital Emergency Unit, where Respondent works as shift leader: confirms "depth of clinical knowledge", ability to "de-escalate any heated situation with a calm tone and demeanour", and commitment to "protect patient dignity".

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Independent, objective, professional evidence of clinical competence and mental fitness. Directly contradicts Manyati's sworn characterisation of PTSD as an "excuse". A specialist medical practitioner's assessment outweighs a non-medical HR official's lay opinion — particularly when made under oath.

[Document follows immediately after this tab]

To whom it may concern,

It is my pleasure to write you a short motivation for Mr Wilbur William Matthee. My Name is Dr Priscilla MiJeong Ohm currently working with Mr Matthee within the Mitchell's Plain District hospital Emergency unit. The emergency unit is one that requires timeous action, fast thinking and definitive action as it has many moving parts including a high patient load, critically ill patients with undifferentiated pathology all needing urgent management. Mr Matthee carries all the above qualities. As a shift leader he allocates staff to needed areas with good skills distribution across the floor, furthermore he often fills in gaps needed as they arise to allow for continued workflow and patient care allowing for staff breaks without disruption of patient care. All shift related issues including high risk patients who have absconded, drug ordering, equipment issues as well as family communication as needed are always appropriately done or escalated with timeous feedback given to the doctor team leader. When students are allocated whether nursing, EMS or medical are within the unit during his work he allocates tasks to aid their learning and supervises each student within their patient care.

When it comes to patient care within the emergency unit, Mr Matthee shows depth of clinical knowledge which allows him to identify critically ill patients, as well as pre-empt needed management which allows for improve the efficiency of patient care within the unit. He is well versed in the management protocols commonly used within the unit and is able to remind doctors of when the next blood gases or ECGs are needed as well as the next step in management on the protocol. All emergency room doctors leave the resus patients once stabilised in Mr Matthee's care till next review time with no doubt that they will be correctly monitored, cared for and that they will be timeously informed if there is a change in condition.

One particular point of excellence for Mr Matthee is the way he is able to de-escalate any heated situation within the emergency unit whether it be with family, staff or patients with a calm tone and demeanour. He approaches all his patients with the same respect and as much as possible protects their dignity with simple actions as always closing curtains, giving patients privacy when needed and answering patient queries as well as informing family members of needed standard procedures. His method of communication and interaction with his patients has been a lesson and reminder to me to give good, individualised care and communication that maintains patient dignity and autonomy.

Regards,

Dr PMJ Ohm



Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
DEC1

Date: 2026

Category: *Supporting Declaration*

Description:

Supporting declaration filed in the Applicant's founding papers.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Cross-referenced in founding papers. Already before the Court.

[Document follows immediately after this tab]

TO: The South African Human Rights Commission — Western Cape Provincial Office

REF:

DATE: 13 March 2026

RE: COMPREHENSIVE UPDATE — FORENSIC PAYROLL ANOMALY, CCMA INSTITUTIONAL BIAS, MULTI-BODY FAILURE, LABOUR COURT ACCESS OBSTRUCTION, AND CONFIRMED IMMINENT HOMELESSNESS

Further to SAHRC correspondence of 10 February 2026 and Applicant update of 5 March 2026 | Matthee v AfroCentric Health (RF) (Pty) Ltd & Others

Dear Commissioner / Legal Officer,

I write to provide a comprehensive update to this file. My update of 5 March 2026 documented the collapse of the DEL and CCMA processes and my filing of an urgent Labour Court application. Since that date, the situation has deteriorated significantly across every dimension — legally, financially, physically, and personally. I place each development on formal record with documentary precision. I ask the SAHRC to read this update not as a list of grievances but as a connected forensic account of what happens when every statutory and civil society safety net fails simultaneously around a formally disabled whistleblower.

1. FORENSIC FINDING: STATUTORY PAYROLL MISREPRESENTATION — JULY 2025

Cross-referencing my July 2025 payslip against the Respondents' official UIF/SARS declarations has revealed a material discrepancy that transforms the characterisation of the unlawful deduction from a labour relations dispute into a potential forensic matter warranting investigation by revenue and labour authorities.

The Documented Figures — July 2025

Gross salary on official payslip (July 2025):	R21,777.04
Salary declared to SARS / UIF by Respondents:	R27,725.66
Discrepancy:	R5,948.62
Location of R27,725.66 on payslip:	ABSENT — not in gross, net, or CTC
Month of discrepancy:	July 2025 — identical pay cycle as unlawful 40.47% deduction

The forensic significance of this finding cannot be overstated. The leave that gave rise to the deduction — the gap period between psychiatric admissions in June 2025 — should have been processed and deducted in the June 2025 pay run. The Respondents instead held that recovery over to July 2025, the new financial

year, and then processed the full R14,811.77 deduction in a single pay cycle. The declared salary figure of R27,725.66 appears to reflect a pre-deduction or notional figure — a salary the Respondents reported to government authorities as having been paid while simultaneously recovering R14,811.77 from my actual take-home pay.

The result is a nearly R6,000 gap between what the Respondents told the government they paid me and what I actually received. A statutory declaration to SARS or the UIF Fund that does not correspond to the actual net remuneration paid to an employee is not an administrative oversight. It is a misrepresentation to a government authority in a document required by law to be accurate. The fact that this misrepresentation arises in the same month as a documented unlawful deduction — and that the leave from which the deduction was derived arose in the previous financial year — is a structural anomaly that a competent forensic investigator cannot ignore.

I respectfully submit that this finding elevates the matter beyond a BCEA salary deduction dispute. It places the Respondents' payroll conduct in the category of potential statutory misrepresentation to government authorities, and it documents a deliberate structuring of the deduction across a financial year boundary in circumstances where the underlying leave event occurred in May 2025 -start June 2025.

2. CCMA INSTITUTIONAL BIAS — FULL ACCOUNT — AND PROVINCIAL COMMISSIONER COVER-UP

The SAHRC directed me in February 2026 to pursue CCMA remedies. I place on formal record the full account of what occurred at conciliation, and the cover-up that followed, so that the SAHRC may assess the quality of the remedy it directed me towards.

The conciliation hearing began with Commissioner Nthabiseng making the following statement immediately after introductions, before I had said a single substantive word: "Nothing here relates to the PDA." This was not a ruling made after hearing submissions. It was a declaration of a closed mind made at the threshold of the proceedings, before I had been permitted to speak. It foreclosed the most significant ground of my claim before the hearing began.

The Commissioner then refused to permit my opening statement. I was not allowed to place my position on the record in an orderly fashion. The Commissioner used the proceedings to create confusion, speaking over my submissions and introducing complications that had no basis in the documents before her. At no point did the Commissioner engage with my BCEA violation — the statutory 25% cap under Section 34(2) — or with the documentary evidence of the employer's own policy requiring prior HCBP consultation. She adopted the Respondents' "no work no pay" characterisation without subjecting it to any scrutiny. The commissioner 'so it was for no work no pay? Okay.

When I stated my negotiation ceiling of R2.5 million for a global settlement of all claims, the Commissioner laughed with the Respondents' representative. The Respondents then offered one month's salary. I requested a Certificate of Non-Resolution. The proceedings were a mockery.

The Johannesburg Coincidence

Commissioner Nthabiseng: Based in Johannesburg. Presided at Cape Town conciliation.

Respondents' representative: Flew in from Johannesburg for the hearing.

Observed conduct at conclusion: Commissioner and Respondents' representative walked out together, engaged in animated conversation about Johannesburg.

Treatment of Applicant: When I asked the location of the Labour Court, I was told to 'Google it or something like that.'

Provincial Commissioner's response: Confirmed that Commissioner Nthabiseng is from Johannesburg — offered as justification for failure of their most basic function to provide a HELPING HAND, not as a concern regarding the google you way to court statement..

I reported the Commissioner's conduct to the CCMA Provincial Senior Commissioner. Commissioner Nthabiseng who presided at my hearing. This is documented in the respective correspondence. The result is that Commissioner Nthabiseng conduct — the prejudgment of PDA relevance before hearing, the refusal of my opening statement, the open mockery of my settlement position, the cosy departure with the Respondents' representative, and the dismissive treatment at the door of the court — has never been investigated. The Provincial Commissioner's response constitutes a cover-up by institutional misdirection, whether deliberate or negligent.

3. DEPARTMENT OF EMPLOYMENT AND LABOUR — DOCUMENTED INACTION

The DEL has failed to act on any of the complaints before it. The "Integrated Inspection" instruction issued following my initial complaint has produced no outcome, no communication, and no enforcement. The Respondents, whose HR department has been copied on all relevant correspondence, have continued in statutory non-compliance throughout the entire period of DEL inaction — including continuing UIF non-remittance and a false written compliance representation made on 19 January 2026.

I reported the ongoing non-remittance to DEL Chief Inspectorate David Esau and Inspector Fazeka Nongalo on 16 February 2026. As of the last uFiling portal verification on 23 February 2026, the June 2025 UIF entry under Medscheme Holdings (Pty) Ltd continued to reflect 'No Information.' The DEL's mandate exists precisely to prevent this. It has not been exercised.

4. SAPS REFUSAL AND COMPLAINT TO NATIONAL POLICE COMMISSIONER

I attended at the South African Police Service on 23 February 2026 to open a criminal case regarding the Respondents' UIF non-remittance — a criminal offence under the Unemployment Insurance Contributions Act 4 of 2002 — and the false written compliance representation made by the Respondents on 19 January 2026. The SAPS verbally declined to open a case.

I have submitted a formal complaint to the National Police Commissioner in response to this refusal. The complaint documents that the SAPS declined to open a criminal docket in circumstances where a statutory criminal offence is proven by official government portal records, confirmed across four independent verification dates, and accompanied by a documented written false representation by the

employer. The refusal to open a case in these circumstances raises its own concerns about the equal application of criminal law to a JSE-listed employer and a destitute complainant.

5. OBSTRUCTION OF ACCESS TO JUSTICE — LABOUR COURT PORTAL FAILURE

This section documents what I can only describe as an institutional obstruction of my right of access to court — a right guaranteed under Section 34 of the Constitution. I place this on record in its full detail because the SAHRC's mandate encompasses access to justice, and what I have experienced at the hands of the Labour Court's administrative systems directly implicates that right.

My urgent high profile notice of motion application was prepared in full compliance with the Rules of the Labour Court, ready for filing by 5 March 2026. I attempted to file online. What followed was eight days of documented obstruction:

Labour Court Filing Obstruction — Documented Sequence

5 March 2026: Target filing date. Documents prepared in full compliance with Labour Court Rules.

5 March onwards: Court call centre contacted more than 7 times. Hold times 40–50 minutes per call. Calls dropped repeatedly. Staff dismissive.

Ongoing: Online portal profile deleted. Unable to log new case. Follow-up emails to the Registrar (Ms F Ismail) ignored.

12 March 2026: Formal notice to Registrar — case number required or matter would be escalated to the Judge President. Close of business passed. No response.

12 March 2026: Portal unexpectedly allowed loading of case as urgent ex parte application.

12 March 2026: Registrar rejected application. Stated reason: **'good day you put date.'**

12 March 2026: Returned to portal — unable to access. Password reset required 4 times. Application found to be missing from portal.

13 March 2026: Reviewed application, corrected the date field, resubmitted as urgent ex parte application.

13 March 2026 (today): Close of business. No case number received.

The reason given for rejection — **"good day you put date"** — was a technical formatting issue that could have been corrected by a registrar's clerk in seconds. Instead it was used to reject an urgent application filed by a self-represented, destitute, disabled applicant facing imminent homelessness, with no follow-up guidance, no assistance, and no acknowledgment of the urgency stated in the application itself.

I make no allegation of deliberate obstruction. I cannot determine whether this is systemic institutional dysfunction or something more targeted. What I can document is the factual sequence: eight days of failed attempts, seven call centre contacts, dropped calls, a deleted profile, an ignored registrar, a trivial rejection reason, and a portal that locks out the user after a rejection with no access to the rejected file[missing]. For a self-represented applicant with no legal infrastructure, no income, and an eviction deadline of end of March 2026, this sequence is not a procedural inconvenience. It is a denial of access to the only court with jurisdiction to grant the urgent relief I need to remain housed.

6. CONSOLIDATED RECORD OF INSTITUTIONAL FAILURES

Body	Documented Failure	Status
CCMA	Commissioner declared closed mind before hearing. Refused opening statement. Ignored BCEA statutory cap. Sided with employer. Mocked settlement figure. Departed with respondents' representative.	FAILED
CCMA Provincial Commissioner	Investigated commissioner. Cover-up by institutional misdirection. Presiding commissioner's conduct never investigated.	COVER-UP
Dept of Employment & Labour	Integrated Inspection instruction — no outcome. Seven-week silence. Active UIF non-remittance and BCEA violations continue unaddressed.	SILENT
SAPS	Verbal refusal to open criminal docket for documented UIF non-remittance offence and false compliance representation. Formal complaint lodged with National Police Commissioner.	REFUSED
Labour Court Registry	Eight days of failed portal access. 7+ call centre attempts. Calls dropped. Profile deleted. Registrar unresponsive. Trivial rejection reason for urgent application. Portal inaccessible post-rejection.	OBSTRUCTING
The Whistleblower House	Rejected application 50 minutes after receiving detailed rebuttal. Rebuttal not engaged. Invitation to reconsider — all engagement ceased.	SILENT
SANC	Deregistration caused by destitution flowing from unlawful deduction. Formal correspondence — no response. Cannot practise nursing in 2026. No response to the Professional misconduct complaint	SILENT
South African Pharmacy Council	Formal complaint submitted regarding professional and regulatory dimensions. No substantive response.	SILENT
Council for Medical Schemes	Acknowledged protected disclosure re Gexus-DMS systemic failure. Declined primary jurisdiction. Redirected to HPCSA — who redirected further. No body has accepted jurisdiction.	DEFLECTED
JSE	Jurisdictional declination issued 6 March 2026 (Ref JvS/166792, Nadia Jada). Documented and strategically noted. Yet the respondent declared no material risk. Only the change of Dr Munisi role from the investment portfolio to remuneration portfolio was reported the same board member who received my P1 risk reports	DECLINED
B-BBEE Commission	Case No. 5/2/2026 allocated. Summons request for Naming Convention recording pending. Active engagement.	ACTIVE

7. CONFIRMED IMMINENT HOMELESSNESS AND HUMANITARIAN CRISIS

I must be precise about what is happening to me physically and financially, because vague references to "financial difficulty" do not convey the reality. The SAHRC's constitutional mandate encompasses human dignity. What follows is a factual account of what the failure of every institution listed above has produced.

Confirmed Status — 13 March 2026

Accommodation: Four months rental arrears. Landlord has verbally confirmed — if no payment is received by end of March 2026, eviction will proceed. This is not a statement of risk. It is a confirmed deadline.

Personal property: Loan sharks — to whom I was forced to turn after the unlawful deduction eliminated my salary — have physically removed possessions from my residence as informal security. Items taken include smart televisions, electronics, and sealed boxed items held in storage.

Debt spiral: Interest compounds at rates that make full repayment structurally impossible at any income level I am likely to achieve. I am operating in a pure survival mode.

Running water: No running water at residence since January 2026.

Electricity: Supply at risk.

Income: None. No savings. No credit access. UIF inaccessible.

Retirement fund: R48,400 forcibly withdrawn to survive — savings of a decade gone.

Professional: SANC deregistration. Cannot practise as a nurse in 2026.

Academic: Accepted for CPUT Postgraduate Diploma in Occupational Health Nursing 2026 — unable to enrol.

Health: Formally diagnosed severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)). Functioning under extreme psychological duress.

Legal: Self-represented in 9 concurrent regulatory proceedings. No legal aid. No support.

The causal chain from the Respondents' conduct to this crisis is direct and documented. On 23 July 2025, the Respondents deducted R14,811.77 from my salary without consent, without consultation, in breach of their own policy, and in defiance of the statutory 25% cap — while holding a specialist psychiatrist's written warning of my vulnerability. That single action, compounded by the employer's subsequent bad faith and the complete failure of every institution I approached for help, has reduced me to the condition described above.

I also note the following for the record: the loan sharks did not take my possessions voluntarily. They arrived and removed them. A 75-year-old grandmother received a clinically incorrect non-adherence letter because a system that I disclosed as broken was never fixed. The same employer that generated that error characterised my disclosure as insubordination, entered it into my employment record, and later had its representative swear under oath that my specialist-diagnosed psychiatric condition was a "cynical excuse." These are not isolated wrongs. They form a single, coherent pattern of institutional conduct that this file documents in its entirety.

8. FORMAL REQUESTS TO THE SAHRC

- 8.1** That this comprehensive update be formally appended to the SAHRC file in its entirety, documenting the systemic multi-institutional failure to protect a whistleblower from induced destitution and professional erasure.
- 8.2** That the SAHRC note the forensic payroll finding: a declared salary of R27,725.66 against an actual payslip gross of R21,777.04 — a R5,948.62 discrepancy arising in the same month as the unlawful deduction — as a potential statutory misrepresentation to government authorities warranting referral to SARS and the DEL.

- 8.3** That the SAHRC note the full account of CCMA institutional bias — including the Commissioner's threshold declaration of a closed mind, refusal of opening statement, and documented post-hearing conduct — and the Provincial Commissioner's cover-up.
- 8.4** That the SAHRC note the Labour Court portal obstruction — eight days, seven call centre attempts, numerous deleted profile, ignored registrar correspondence, a trivial rejection, and portal inaccessibility — as a potential violation of the Section 34 constitutional right of access to court, particularly as it affects a self-represented, disabled, destitute applicant facing a confirmed end-of-March eviction.
- 8.5** That the SAHRC note the SAPS verbal refusal to open a criminal case on documented statutory offences and the formal complaint lodged with the National Police Commissioner.
- 8.6** That the SAHRC note the confirmed imminent eviction — verbally confirmed by the landlord for end of March 2026 — and the physical seizure of personal property by loan sharks, as direct consequences of the Respondents' unlawful conduct and the institutional failure that followed.
- 8.7** That the SAHRC consider whether the totality of this file — eleven institutional engagements, nine failures, a forensic payroll anomaly, a confirmed CCMA cover-up, an obstructed court filing, an imminent eviction, and an ongoing humanitarian crisis affecting a formally disabled whistleblower — warrants independent SAHRC investigation and intervention under the Commission's constitutional mandate to protect human dignity, equality, and access to justice.

I am a destitute, self-represented whistleblower facing confirmed eviction at the end of this month, living without running water, with personal possessions already seized, and with a formally diagnosed psychiatric disability. I have filed in every forum available to me. I have been ignored, obstructed, misdirected, and dismissed at every turn. The Labour Court is my last functioning avenue — and as of the close of business today, I do not yet have a case number.

I am available to provide all documentation immediately upon request.

Yours faithfully,

WILBUR WILLIAM MATTHEE

Founder — EthicHawks

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